

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30				1. REQUISITION NUMBER 156630		PAGE 1 OF 94							
2. CONTRACT NO.		3. AWARD/EFFECTIVE DATE		4. ORDER NUMBER		5. SOLICITATION NUMBER 2031ZA24R00004		6. SOLICITATION ISSUE DATE 02/29/2024					
7. FOR SOLICITATION INFORMATION CALL: 				a. NAME Lawrence, Terry Dean		b. TELEPHONE NUMBER (No collect calls) (817) 847-3813		8. OFFER DUE DATE/ LOCAL TIME 04/01/2024 12:00PM					
9. ISSUED BY BEP-ACQUISITION Bureau of Engraving and Printing, Office of Acquisition, 301 14th Street SW Washington, DC, 20228-0001, US				CODE 2031ZA		10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR: ☒ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM NAICS: 561621 ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☐ EDWOSB ☐ 8 (A) \$ 25.0 Million SIZE STANDARD:							
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE		12. DISCOUNT TERMS		☐ 13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)		13b. RATING							
15. DELIVER TO See Schedule				CODE		16. ADMINISTERED BY Same As Issuing Office							
17a. CONTRACTOR/ OFFEROR		CODE		FACILITY CODE		18a. PAYMENT WILL BE MADE BY CODE							
TELEPHONE NO.				17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER ☐									
18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM													
19. ITEM NO.		20. SCHEDULE OF SUPPLIES/SERVICES				21. QUANTITY		22. UNIT		23. UNIT PRICE		24. AMOUNT	
		See Schedule The purpose of this acquisition is for the everyday operations and maintenance of the security equipment and components at the Western Currency Facility. This action will also include the repair and replacement of damaged or outdated security equipment and components (materials, parts, equipment). This contract includes 24-hour preventative maintenance, corrective maintenance, and emergency maintenance of the WCF Integrated Security System (ISS) and ISS components. (Use Reverse and/or Attach Additional Sheets as Necessary)											
25. ACCOUNTING AND APPROPRIATION DATA								26. TOTAL AWARD AMOUNT (For Govt. Use Only)					
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☒ ARE NOT ATTACHED								☐ ARE ☐ ARE NOT ATTACHED					
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED													
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED								☐ 29. AWARD OF CONTRACT: REF. OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:					
30a. SIGNATURE OF OFFEROR/CONTRACTOR						31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)							
30b. NAME AND TITLE OF SIGNER (Type or print)				30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (Type or print)				31c. DATE SIGNED			
						Terry Lawrence				02/29/2024			
AUTHORIZED FOR LOCAL REPRODUCTION PREVIOUS EDITION IS NOT USABLE												STANDARD FORM 1449 (REV. 2/2012) Prescribed by GSA - FAR (48 CFR) 53.212	

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	See Schedule				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED

☐ INSPECTED

☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32c. DATE

32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER

34. VOUCHER NUMBER

35. AMOUNT VERIFIED
CORRECT FOR

36. PAYMENT

37. CHECK NUMBER

☐ PARTIAL ☐ FINAL

☐ COMPLETE ☐ PARTIAL ☐ FINAL

38. S/R ACCOUNT NO.

39. S/R VOUCHER NUMBER

40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT

42a. RECEIVED BY *(Print)*

41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER

41c. DATE

42b. RECEIVED AT *(Location)*

42c. DATE REC'D *(YY/MM/DD)*

42d. TOTAL CONTAINERS

TABLE OF CONTENTS:

1. Listing of Incorporated Purchase Requisitions	4
2. Section B - Supplies or Services and Prices/Costs	4
3. Section C - Description/Specifications/Work Statement.....	9
4. Section D - Packaging and Marking.....	39
5. Section E - Inspection and Acceptance Terms.....	39
6. Section F - Delivery or Performance	40
7. Section G - Contract Administration Data	44
8. Section H - Special Contract Requirements	46
9. Section I - Contract Clauses.....	59
10. Section J - List of Documents, Exhibits, and other Attachments	77
11. Section K - Representations, Certifications, and Other Statements of Offerors.....	78
12. Section L - Instructions, Conditions and Notices to Offerors.....	82
13. Section M - Evaluation Factors for Award.....	89

1. Listing of Incorporated Purchase Requisitions

Incorporated Purchase Requisition Numbers:

156630

2. Section B - Supplies or Services and Prices/Costs

The Bureau of Engraving and Printing (BEP) Western Currency Facility (WCF) located in Fort Worth, TX requires contractor support for everyday operations and maintenance (O&M) of the Integrated Security System (ISS) and ISS components, including cameras, card readers, locks, safes, alarms and systems, x-ray machines, metal detectors, etc. This support also includes the repair and replacement of damaged or outdated security equipment and components (materials, parts, equipment). This contract requires 24-hour preventative maintenance, corrective maintenance, and the availability for unscheduled emergency maintenance.

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
0001		Operations & Maintenance Support, Base Year	12	Each (Month)
Contract Type: Firm Fixed Price				
			Unit Price	
			Extended Price	
Description: O&M Services, 12 Months Period of Performance: 05/01/2024 through 04/30/2025				
Purchase Requisitions		156630		

IDC Type: Not Applicable

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
0002		Materials & Supplies, Base Year	374575	USD
Contract Type: Firm Fixed Price				
			Unit Price	
			Extended Price	
Description: Materials and Supplies, 12 Months Period of Performance: 05/01/2024 through 04/30/2025				
Purchase Requisitions		156630		

IDC Type: Not Applicable

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
0003		Emergency Support Services, Base Year	50000	USD
Contract Type: Firm Fixed Price				
			Unit Price	
			Extended Price	

Description: Unscheduled Emergency Support, 12 Months Period of Performance: 05/01/2024 through 04/30/2025			
Purchase Requisitions		156630	
IDC Type:		Not Applicable	

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
1001		Option Year (OY) 1 Operations & Maintenance Support	12	Each (Month)
Contract Type: Firm Fixed Price				
			Unit Price	
			Extended Price	
Description: O&M Services, 12 Months Period of Performance: 05/01/2025 through 04/30/2026				
Purchase Requisitions				
IDC Type:		Not Applicable		

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
1002		OY1 Materials & Supplies		USD
Contract Type: Firm Fixed Price				
			Unit Price	
			Extended Price	
Description: Materials and Supplies, 12 Months Period of Performance: 05/01/2025 through 04/30/2026				
Purchase Requisitions				
IDC Type:		Not Applicable		

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
1003		OY1 Emergency Support Services		USD
Contract Type: Firm Fixed Price				
			Unit Price	
			Extended Price	
Description: Unscheduled Emergency Support, 12 Months Period of Performance: 05/01/2025 through 04/30/2026				
Purchase Requisitions				
IDC Type:		Not Applicable		

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
2001		OY2 Operations & Maintenance	12	Each (Month)
Contract Type: Firm Fixed Price				
			Unit Price	
			Extended Price	
Description: O&M Services, 12 Months Period of Performance: 05/01/2026 through 04/30/2027				
Purchase Requisitions				

IDC Type: Not Applicable

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
2002		OY2 Materials & Supplies		USD
Contract Type: Firm Fixed Price				
			Unit Price	
			Extended Price	
Description: Materials and Supplies, 12 Months Period of Performance: 05/01/2026 through 04/30/2027				
Purchase Requisitions				

IDC Type: Not Applicable

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
2003		OY2 Emergency Support Services		USD
Contract Type: Firm Fixed Price				
			Unit Price	
			Extended Price	
Description: Unscheduled Emergency Support, 12 Months Period of Performance: 05/01/2026 through 04/30/2027				
Purchase Requisitions				

IDC Type: Not Applicable

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
3001		OY3 Operations & Maintenance	12	Each (Month)
Contract Type: Firm Fixed Price				
			Unit Price	

		Extended Price	
	Description: O&M Services, 12 Months Period of Performance: 05/01/2027 through 04/30/2028		
Purchase Requisitions			

IDC Type: Not Applicable

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
3002		OY3 Materials & Supplies		USD
Contract Type: Firm Fixed Price				
			Unit Price	
			Extended Price	
	Description: Materials and Supplies, 12 Months Period of Performance: 05/01/2027 through 04/30/2028			
Purchase Requisitions				

IDC Type: Not Applicable

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
3003		OY3 Emergency Support Services		USD
Contract Type: Firm Fixed Price				
			Unit Price	
			Extended Price	
	Description: Unscheduled Emergency Support, 12 Months Period of Performance: 05/01/2027 through 04/30/2028			
Purchase Requisitions				

IDC Type: Not Applicable

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
4001		OY4 Operations & Maintenance	12	Each (Month)
Contract Type: Firm Fixed Price				
			Unit Price	
			Extended Price	
	Description: O&M Services, 12 Months Period of Performance: 05/01/2028 through 04/30/2029			
Purchase Requisitions				

IDC Type: Not Applicable

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
4002		OY4 Materials & Supplies		USD
Contract Type: Firm Fixed Price				
			Unit Price	
			Extended Price	
Description: Materials and Supplies, 12 Months Period of Performance: 05/01/2028 through 04/30/2029				
Purchase Requisitions				

IDC Type: Not Applicable

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
4003		OY4 Emergency Support Services		USD
Contract Type: Firm Fixed Price				
			Unit Price	
			Extended Price	
Description: Unscheduled Emergency Support, 12 Months Period of Performance: 05/01/2028 through 04/30/2029				
Purchase Requisitions				

IDC Type: Not Applicable

[END OF SECTION]

3. Section C - Description/Specifications/Work Statement

PERFORMANCE WORK STATEMENT (PWS)

Western Currency Facility
Security Device Operations & Maintenance

PART 1 GENERAL INFORMATION

1. General: This is a non-personal services contract to provide on-site operations and maintenance services for the Bureau of Engraving & Printing (BEP) Western Currency Facility's Security devices and components. The Government shall not exercise any supervision or control over the contract service providers performing the services herein. Such contract service providers shall be accountable solely to the Contractor who, in turn is responsible to the Government. Services procured under this PWS shall not be personal services, advisory and assistance, or inherently governmental in nature.

Operation and Maintenance of the security equipment includes scheduled preventive maintenance, unscheduled corrective maintenance/repairs, operations, and maintenance of all sub-components (e.g., access control, intrusion detection, closed circuit television, etc.), and other related miscellaneous work. The Contractor shall, to the extent possible, minimize impacts on facility operations when performing all maintenance services. The Contractor shall establish and maintain a Preventative and Corrective Maintenance Program which is subject to approval by the Contracting Officer's Representative.

The contractor shall provide all personnel, equipment, tools, materials, supervision, management, labor, supplies and other items, as necessary, to plan, schedule, perform the operation & maintenance, reconfiguration and re-engineering, monitoring, and emergency repairs of the security equipment and all sub-components.

1.1 Description of Services/Introduction: The contractor shall provide all personnel, equipment, supplies, management, labor, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform security device operations and maintenance services as defined in this Performance Work Statement except for those items specified in Part 3 as government furnished property and services. The contractor shall perform to the standards in this contract.

1.2 Background: The Western Currency Facility is a high security facility providing a complete physical security solution to augment the protection of BEP securities, its personnel, and visitors.

1.3 Objectives: Provide high quality preventative and remedial maintenance services to insure proper operational condition of equipment such that, downtime is kept to an absolute minimum, and the service life of the hardware reaches its full potential.

1.4 Scope: The contractor shall provide all personnel, equipment, tools, supervision, management, labor, materials, supplies, transportation and other items as necessary to plan, schedule, perform; operations, maintenance, reconfiguration and re-engineering, monitoring, and emergency repairs as defined in this performance-based work statement (PWS), except as specified in Part 3 as government-furnished property and services, at the Western Currency Facility, 9000 Blue Mound Road, Fort Worth, Texas. The contractor shall perform to the standards in this contract. The deliverables schedule is listed in Technical Exhibit 2, Deliverables.

Under this effort the contractor will be responsible for all security equipment field components. This includes all sub-components and all associated parts, equipment, and infrastructure (i.e., intrusion detection, access control devices, security cameras, secure portals, magnetometers, X-ray machines, time clocks, and all associated elements and infrastructure such as wiring, cabling, controller boards, junction boxes, electrical and conduit both internal and external to the facility.) The headend servers are maintained by others.

The Contractor is expected to comply with all required Federal, State, and Local laws, licenses, and regulations. It is the responsibility of the Contractor to comply and be current with all applicable laws and licensing requirements. It is especially important to note that the National Institute of Standards and Technology (NIST) Special Publication 800-53 rev 5, Security and Privacy controls for Federal Information Systems and Organizations, and the Federal Information Security Management Act (FISMA) require government offices to install and maintain an alarm system that monitors physical access to the location to prevent breaches of personal identifiable information in both electronic systems as well as paper documents.

All equipment, devices, software, and hardware must be compatible with the existing equipment and software. Any software additions or upgrades must be fully supported by the manufacturer and not proprietary to any other company. All equipment software and hardware must possess the capability to feed back to the facility's security suite. Items found to be non-compatible will be replaced by the persons who installed it at no additional cost to the government.

1.5 Period of Performance: The period of performance shall be for one (1) Base Year of 12 months and (4) four 12-month option periods. The Period of Performance reads as follows:

Base Year	01 May 2024 through 30 April 2025
Option Period 1	01 May 2025 through 30 April 2026
Option Period 2	01 May 2026 through 30 April 2027
Option Period 3	01 May 2027 through 30 April 2028
Option Period 4	01 May 2028 through 30 April 2029

1.6 General Information

1.6.1 Quality Control: Quality Control is the responsibility of the contractor. The contractor is responsible for the delivery of quality services/supplies to the Government in accordance with the Quality Assurance Surveillance Plan (QASP).

The Contractor shall develop, implement, and maintain an effective Quality Control System which includes a written Quality Control Plan (QCP). The QCP shall implement standardized procedure/methodology for monitoring and documenting contract performance to ensure all contract requirements are met. The Contractors' QCP must contain a systematic approach to monitor operations to ensure acceptable services/products are provided to the Government. The QCP, as a minimum, shall address continuous process improvement; procedures for scheduling, conducting and documentation of inspection; discrepancy identification and correction; corrective action procedures to include procedures for addressing Government discovered non-conformances; procedures for root cause analysis to identify the root cause and root cause corrective action to prevent re-occurrence of discrepancies; procedures for trend analysis; procedures for collecting and addressing customer feedback/complaints. The contractor shall upon request provide to the Government their quality control documentation.

The QCP is to be delivered to the CO and COR within 30 days after contract award. After acceptance of the quality control plan the contractor shall receive the Contracting Officer's acceptance in writing of any proposed change to their QC system.

1.6.2 Quality Assurance: The government shall evaluate the contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan. This plan is a government only document primarily focused on what the Government must do to assure that the contractor has performed in accordance with the requirements of the contract.

1.6.3 Federal Government Holidays: Contractor is not required to perform routine services on holidays. For a complete list of Federal Holidays visit:

<https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/#url=Overview>

1.6.4 Hours of Operation: The Contractor shall staff and operate the Video Monitoring Center 24-hours a day, 7-days a week, 365-days a year. The Video Monitoring Center may be closed at the COR's discretion. The Contractor shall perform the preventive and corrective maintenance services required under this contract from 0630-2330 (CST), 7 days a week, except Federal holidays or when the Government facility is closed due to local or

national emergencies, administrative closings, or similar Government directed facility closings. The workday shall be an 8-hour day plus the amount of lunch time. The Contractor may begin work at any pre-agreed upon time within the core hours. At a minimum, contractor will maintain at least four (4), two-person Electronics Technician III teams onsite daily from 0700-1530 Monday – Friday and at a minimum will maintain at least one (1), two-person Electronics Technician III team onsite from 1430-2300 Monday – Friday, and from 0700 – 1530 Saturday and Sunday. The Contractor shall be required to adjust the standard workday to support production schedules, shift changes, or as deemed necessary by the COR.

The Contractor must maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons. The minimum level of effort is shown below. When hiring personnel, the Contractor shall keep in mind that the stability and continuity of the workforce is essential.

Position	Minimum Level of Effort Annually (Hours)
Contract Manager / Deputy Manager	4160
Project Manager / Quality Control	2080
Senior Electronics Technician III	2080
Electronics Technician III	24960
Operations Supervisor	2080
Operations Personnel	26280
Locksmith	2080
Stock/Inventory Clerk	2080
Service Order Dispatcher	4160
Laborer	8320
	Estimated Level of Effort Annually (Emergency Hours)
Contract Manager / Deputy Manager	40
Project Manager / Quality Control	40
Senior Electronics Technician III	40
Electronics Technician III	312
Operations Supervisor	24
Operations Personnel	24
Locksmith	40

Stock/Inventory Clerk	0
Service Order Dispatcher	0
Laborer	80

1.6.5 Place of Performance: The work to be performed under this contract will be performed at the Western Currency Facility, 9000 Blue Mound Road, Fort Worth, Texas.

1.6.6 Type of Contract: The government will award a firm fixed price contract.

1.6.7 Security Requirements: Contractor personnel (to include subcontractors) performing work under this contract must have the required level of security clearance or as deemed in the best interest of the Government. The Government will notify the Contractor concerning such restriction in access.

1.6.7.1 Physical Security: The Contractor shall be responsible for safeguarding all government equipment, information and property provided for Contractor use under this Contract. This Contract requires access into the Controlled Industrial Area of the WCF. The Contractor personnel shall recognize that BEP deals with sensitive information and other proprietary information, which are valuable, special, and unique assets. All information pertinent to BEP's information technology resources is highly sensitive and may not be released to third parties without the expressed, written consent of BEP. This information requires strict control procedures to preclude unauthorized disclosure or dissemination. Information pertinent to personnel is protected from unauthorized disclosure under the provisions of the Privacy Act of 1974 (5 U.S.C. 552a). Contractor personnel shall not divulge, disclose, or communicate in any manner, any information to any third party without prior written consent of the BEP. Contractor personnel shall protect information and treat it as strictly confidential and will abide by the security requirements of BEP. A violation of this paragraph shall be a material violation of this Contract. Should the Contractor receive or suspect they have learned of unauthorized sensitive or classified information, the Contractor shall identify and report suspicions to the COR. Contractor personnel performing work under this Contract shall be subjects of background investigations, conducted by BEP's Office of Personnel Security, prior to start of work under this Contract. Each Contractor employee performing under this Contract must successfully complete the Government required background check form at time of the proposal submission and must maintain the level of security required for the life of the Contract.

1.6.7.2 Key Control. The Contractor shall establish and implement methods of making sure all keys/key cards issued to the Contractor by the Government are not lost or misplaced and are not used by unauthorized persons. NOTE: All references to keys include key cards also. No keys issued to the Contractor by the Government shall be duplicated. The Contractor shall develop procedures covering key control that shall be included in the Quality Control Plan. Such procedures shall include turn-in of any issued keys by personnel who no longer require access to locked areas. The Contractor shall immediately report any occurrences of lost or duplicate keys/key cards to the Contracting Officer.

1.6.7.2.1. In the event that keys, other than master keys, are lost or duplicated, the Contractor shall, upon direction of the Contracting Officer, re-key or replace the affected lock or locks; however, the Government, at its option, may replace the affected lock or locks or perform re-keying. When the replacement of locks or re-keying is performed by the Government, the total cost of re-keying or the replacement of the lock or locks shall be deducted from the monthly payment due to the Contractor. In the event a master key is lost or duplicated, all locks and keys for that system shall be replaced by the Government and the total cost deducted from the monthly payment due to the Contractor.

1.6.7.2.2. The Contractor shall prohibit the use of Government issued keys/key cards by any persons other than the Contractor's employees. The Contractor shall prohibit the opening of locked areas by Contractor employees to permit entrance of persons other than Contractor employees engaged in the performance of assigned work in those areas, or personnel authorized entrance by the Contracting Officer.

1.6.8 Post Award Conference/Periodic Progress Meetings: The Contractor agrees to attend any post award conference convened by the contracting activity or contract administration office in accordance with Federal Acquisition Regulation Subpart 42.5, Post Award Orientation. The Contracting Officer, COR, and other Government personnel, as appropriate, may meet periodically with the contractor to review the contractor's performance. At these meetings the Contracting Officer will apprise the contractor of how the government views the contractor's performance and the contractor will apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the Government.

1.6.9 Contracting Officer Representative (COR): The COR will be identified by separate letter by the CO. The COR monitors all technical aspects of the contract and assists in contract administration. The COR is authorized to perform the following functions: assure that the Contractor performs the technical requirements of the contract; perform inspections necessary in connection with contract performance; maintain written and oral communications with the Contractor concerning technical aspects of the contract; issue written interpretations of technical requirements, including Government drawings, designs, and specifications; monitor Contractor's performance and notify both the Contracting Officer and Contractor of any deficiencies; coordinate availability of government furnished property; and provide site entry of Contractor personnel. A letter of designation issued to the COR, a copy of which is sent to the Contractor, states the responsibilities and limitations of the COR, especially regarding changes in cost or price, estimates or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting order.

1.6.10 Key Personnel: The following are positions are considered key personnel by the government: Contract Manager/Deputy, Project Manager & Quality Control Inspector, Senior Electronics Technician, Senior Operator, Technical Personnel, and Operations Personnel. The Contractor shall provide and identify within fourteen (14) business days after contract award. Upon request the Contractor shall provide resumes and references so the government can validate qualifications.

1.6.10.1. Contract Manager. The contractor shall provide a Contract Manager / Deputy who shall be responsible for the performance of the daily work and adherence to the QASP; and who will be in communication with the Government to discuss status and any problems that may arise during the performance of this contract. The names of these person(s) must be designated in writing to the Contracting Officer.

1.6.10.1.1. The contract manager / deputy shall have the full authority to act for the contractor on all contract matters relating to daily operation of this contract.

1.6.10.1.2. The contract manager / deputy shall be available during normal duty hours within 30 minutes to meet with government personnel (designated by the contracting officer) to discuss problem areas. After normal duty hours, the manager or deputy shall be available within (2) two hours of the request.

1.6.10.1.3. The contract manager / deputy shall be able to read, write, speak, and understand English.

1.6.10.1.4. The contract manager / deputy will be required to utilize the BEP LAN for internal communication and shall be proficient in Microsoft Office suite (e.g. Outlook, Excel, Word).

1.6.10.1.5. The contract manager / deputy should have minimum 3-5 years of experience managing the quality assurance of similar types of security operations & maintenance plans.

1.6.10.2. Project Manager & Quality Control Inspector. The contractor shall provide at least one Project Manager/Quality Control Inspector, to ensure the schedule, budget estimates, project design, and details of a given work task are well organized, and administratively complete, and the completed "as-built" files are electronically supplied to the Government. The Project Manager will collaborate directly with the Contract Manager/Deputy, and Physical Security Project Managers to ensure all stay informed about project status, and recommended corrections/changes for implementation. This individual should possess a Senior Electronics Technician background and have a working knowledge of the ISS systems currently utilized at the WCF, and can create, understand, and modify project designs utilizing autoCAD. This individual will also serve as the Contractor's quality control inspector, ensuring compliance with regulations, quality standards, project designs, and implementing quality management actions for the Contractor, prior to a project's Bureau Acceptance Testing.

1.6.10.3. Senior Electronics Technician. The Contractor shall provide at least one Senior Electronic Technician capable of design and installation of devices such as cameras, alarm points, and access control devices with 10-years of documented experience. The Department of Labor defines an Electronics Technician III as one who applies advanced technical knowledge to solve unusually complex problems that typically cannot be solved solely by referencing manufacturers' manuals or similar documents. Examples of such problems include determining the location and density of circuitry, evaluating electromagnetic radiation, isolating malfunctions, and incorporating engineering changes. Work typically requires a detailed understanding of the interrelationships of circuits. Exercises independent judgement in performing such tasks as making circuit analyses, calculating wave forms, and tracing relationships in signal flow. Uses complex test instruments such as high frequency pulse generators, frequency synthesizers, distortion analyzers, and complex computer control equipment. Work may be reviewed by supervisor for general compliance with accepted practices. May provide technical guidance to lower-level technicians.

1.6.10.4. Senior Operator. The Contractor shall provide at least one Senior Operator to manage the day-to-day operations and staffing of the Video Monitoring Center (titled the Product Security Station). This individual will ensure the Video Monitoring Center is always staffed to appropriate levels, with trained operators. Serve as the focal point for video monitoring and investigative assignments, facilitate expedient processing of monitoring and recording service forms received. Ensure the appropriate documentation, tracking, filing, and storage of all official video recording activities performed. Work may be reviewed by supervisor for general compliance with accepted practices. May provide technical guidance, instruction, and assign work to lower-level operators.

1.6.10.5. Technical Personnel. The Contractor shall provide enough qualified electronics technicians to fulfill the level of effort required to perform preventive maintenance, corrective maintenance, modifications, and additions of all security system equipment identified under this contract.

1.6.10.5.1. Qualifications. The Contractor shall provide at least 75% of its technical staff that have more than five (5) years of experience installing, repairing, maintaining, troubleshooting, testing, and calibrating security devices, components, and associated materials.

1.6.10.5.2. Skill Levels. The Contractor shall provide technical staff at the Electronic Technician III level. Department of Labor defines an Electronics Technician III as one who applies advanced technical knowledge to solve unusually complex problems that typically cannot be solved solely by referencing manufacturers' manuals or similar documents. Examples of such problems include determining the location and density of circuitry, evaluating electromagnetic radiation, isolating malfunctions, and incorporating engineering changes.

1.6.10.5.3 Certifications and Training. The Contractor shall certify personnel for the programming, operations, installation, maintenance, testing, and calibrations of security equipment and all its sub-components, to include but not limited to:

1.6.10.5.3.1. Fiber Optic Installation, Service, and Support

1.6.10.5.3.2. Intrusion Detection Subcomponents

1.6.10.5.3.2.1. Fence Protection System Processor

1.6. 10.5.3.2.2. Perimeter Microwave System

1.6. 10.5.3.2.3. Ported Coaxial Cable System

1.6. 10.5.3.3. CCTV Subcomponents

1.6. 10.5.3.3.1. Installation and configuration

1.6. 10.5.3.3.2. Fiber Optic Transceivers

1.6. 10.5.3.3.3. Identiv UTrust Velocity integration.

1.6. 10.5.3.3.4. Pivot 3 Milestone integration

1.6. 10.5.3.3.5. IP Cameras

1.6. 10.5.3.3.6. Analog Cameras

1.6. 10.5.4.4. Identiv Access Control Systems (Card readers, MX series controllers).

1.6. 10.5.4.5. AutoCAD.

1.6. 10.5.4.6. Medeco Lock products.

1.6. 10.5.4.7. Corbin Lock products.

1.6.10.6. Operations Personnel. The Contractor shall provide enough Operations personnel to fulfill the 26,280-hour requirement for the operation of the Video Monitoring Center (titled the Product Security Station) during the stated hours of operation. The Contractor shall provide qualified personnel suited to perform the work as described in the WCF standard operating procedures which includes but is not limited to the technical operation and understanding of video recording software, the ability to acquire, catalog, and maintain video, observation monitoring, video packaging and saving to various media for official use/distribution.

1.6.11. Substitution of Key Contract Personnel: During the performance of this contract, the contractor shall make no substitutions of key personnel unless the substitution is necessitated by illness, death, or termination of employment. The contractor shall notify the COR of this contract no later than five (5) calendar days after the occurrence of any of these events. The contractor shall include the circumstances necessitating the proposed replacement of the key personnel and shall provide to the Contracting Officer the name, resume of the proposed replacement. All replacement personnel require written approval from the Contracting Officer prior to their beginning work under this contract. When required, the contractor shall provide replacement employees that comply with requirements of this PWS. Any disputes regarding the substitution of key personnel after resume review will be decided by the Contracting Officer. The Government reserves the right to require the contractor to reassign key contractor employees who are deemed incompetent, careless, unsuitable, or otherwise objectionable, or whose continued use under this contract is deemed contrary to the best interests of the Government. The Contracting Officer will provide a written notice to the contractor of such reassignment.

1.6.12. Contractor Employee General Requirements. The contractor shall not employ persons for work on this contract if such employees are considered by the Contracting Officer to be a potential threat to the health, safety, security, general well-being, or operational mission of the facility. All Contractor personnel shall present a neat appearance and be easily recognized as contractor personnel and shall wear a uniform shirt clearly identifying the company name.

1.6.12.1. The contractor shall determine the appropriate number of personnel to perform all aspects of this contract and at a minimum shall have employees with the following current and valid professional certifications and/or experience, as noted, before starting work under this contract.

1.6.12.2. Certifications. The Contractor shall maintain on file all training certificates and certifications. Certificates/certifications shall be available for review by the COR.

1.6.12.3. The contractor shall not employ any person who is nor was an employee of the U.S. Government if employing that person would create a conflict of interest.

1.6.12.4. Identification of Contractor Employees: All contract personnel (to include subcontractors) attending meetings, answering Government telephones, and working in other situations where their contractor status is not obvious to third parties are required to identify themselves as such to avoid creating an impression in the minds of members of the public that they are Government officials. They must also ensure that all documents or reports produced by Contractors are suitably marked as Contractor products or that Contractor participation is appropriately disclosed. All Contractor personnel shall clearly identify themselves as a Contractor and shall be required to wear

identification (ID) badges in a visible location on the front of exterior clothing, above the waist, (except when safety or health reasons prevent such placement). ID badges shall be worn at all times when performing work. ID badges shall have an identification picture and shall state the name of the individual and the company they represent. A listing of issued identification cards shall be furnished to the Contracting Officer prior to the contract performance start date and updated as needed to reflect Contractor and Subcontractor personnel changes. Contractor personnel are prohibited from possessing weapons, firearms, or ammunition, on themselves or within their Contractor-owned or privately owned vehicle while on BEP premises.

1.6.12.5. Supervision of Contractor Employees: The Government will not exercise any supervision or control over Contractor or subcontractor employees while performing work under the contract. Such employees shall be accountable solely to the Contractor, not the Government. The Contractor, in turn, shall be accountable to the Government for Contractor or subcontractor employees.

1.6.13. Other Direct Costs: None.

1.6.14. Data Rights: The Government has unlimited rights to all documents/material produced under this contract. All documents and materials, to include the source codes of any software, produced under this contract shall be Government owned and are the property of the Government with all rights and privileges of ownership/copyright belonging exclusively to the Government. These documents and materials may not be used or sold by the contractor without written permission from the Contracting Officer. All materials supplied to the Government shall be the sole property of the Government and may not be used for any other purpose. This right does not abrogate any other Government rights.

1.6.15. Organizational Conflict of Interest: Contractor and subcontractor personnel performing work under this contract may receive, have access to, or participate in the development of proprietary or source selection information (e.g., cost or pricing information, budget information or analyses, specifications, or work statements, etc.) or perform evaluation services which may create a current or subsequent Organizational Conflict of Interests (OCI) as defined in FAR Subpart 9.5. The Contractor shall notify the Contracting Officer immediately whenever it becomes aware that such access or participation may result in any actual or potential OCI and shall promptly submit a plan to the Contracting Officer to avoid or mitigate any such OCI. The Contractor's mitigation plan will be determined to be acceptable solely at the discretion of the Contracting Officer and in the event the Contracting Officer unilaterally determines that any such OCI cannot be satisfactorily avoided or mitigated, the Contracting Officer may affect other remedies as he or she deems necessary, including prohibiting the Contractor from participation in subsequent contracted requirements which may be affected by the OCI.

1.6.16. PHASE IN /PHASE OUT PERIOD: To minimize any decreases in productivity and to prevent possible negative impacts on additional services, the Contractor shall have personnel on board, during the *thirty (30) day* phase in/ phase out periods. During the phase in period, the Contractor shall become familiar with performance requirements to commence full performance of services after conclusion of the phase in/phase out period.

PART 2 DEFINITIONS & ACRONYMS

2. DEFINITIONS AND ACRONYMS:

2.1. DEFINITIONS:

2.1.1. **CONTRACT SPECIALIST**. The official Government representative delegated authority by the Contracting Officer to administer a contract. This individual is normally a member of the appropriate Contracting/Procurement career field and advises on all technical contractual matters.

2.1.2. **CONTRACTOR**. A supplier or vendor awarded a contract to provide specific supplies or services to the

government. The term used in this contract refers to the prime.

2.1.3. **CONTRACTING OFFICER.** A person with authority to enter into, administer, and/or terminate contracts, and make related determinations and findings on behalf of the government. Note: The only individual who can legally bind the government.

2.1.4. **CONTRACTING OFFICER'S REPRESENTATIVE (COR).** An employee of the U.S. Government appointed by the contracting officer to administer the contract. Such appointment shall be in writing and shall state the scope of authority and limitations. This individual has authority to provide technical direction to the Contractor as long as that direction is within the scope of the contract, does not constitute a change, and has no funding implications. This individual does NOT have authority to change the terms and conditions of the contract.

2.1.5. **DEFECTIVE SERVICE.** A service output that does not meet the standard of performance associated with the Performance Work Statement.

2.1.6. **DELIVERABLE.** Anything that can be physically delivered but may include non-manufactured things such as meeting minutes or reports.

2.1.7. **GOVERNMENT-FURNISHED PROPERTY (GFP) OR GOVERNMENT PROPERTY (GP).** Property in the possession of, or directly acquired by, the Government and subsequently made available to the Contractor.

2.1.8. **KEY PERSONNEL.** Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the Key Personnel listed in the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the persons that are listed in the proposal.

2.1.9. **PHYSICAL SECURITY.** Actions that prevent the loss or damage of Government property.

2.1.10. **QUALITY ASSURANCE.** The government procedures to verify that services being performed by the Contractor are acceptable in accordance with established standards and requirements of this contract.

2.1.11. **QUALITY ASSURANCE SPECIALIST.** An official Government representative concerned with matters pertaining to the contract administration process and quality assurance/quality control. Acts as technical advisor to the Contracting Officer in these areas.

2.1.12. **QUALITY ASSURANCE SURVEILLANCE PLAN (QASP).** An organized written document specifying the surveillance methodology to be used for surveillance of contractor performance.

2.1.13. **QUALITY CONTROL.** All necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

2.1.14. **SUBCONTRACTOR.** One that enters into a contract with a prime contractor. The Government does not have privity of contract with the subcontractor.

2.1.15. **WORKDAY.** The number of hours per day the Contractor provides services in accordance with the contract.

2.1.16. **WORK WEEK.** Sunday through Saturday, except for Federal holidays unless specified otherwise.

2.2. ACRONYMS:

ACOR	Alternate Contracting Officer's Representative
BEP	Bureau of Engraving and Printing
COR	Contracting Officer Representative
COTS	Commercial-Off-the-Shelf
FAR	Federal Acquisition Regulation
HIPAA	Health Insurance Portability and Accountability Act of 1996
CO	Contracting Officer

OCI	Organizational Conflict of Interest
ODC	Other Direct Costs
PIPO	Phase In/Phase Out
POC	Point of Contact
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QAP	Quality Assurance Program
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Plan
TE	Technical Exhibit

PART 3
GOVERNMENT FURNISHED PROPERTY, EQUIPMENT, AND SERVICES

3. GOVERNMENT FURNISHED ITEMS AND SERVICES:

3.1. Facilities: The government will furnish or make available facilities described in Technical Exhibit 5. Government facilities have been inspected for compliance with the Occupational Safety and Health Act (OSHA). No hazards have been identified for which a work-around has been established. Should a hazard be subsequently identified, the government will correct OSHA hazards according to government developed and approved plans of abatement taking into account safety and health priorities. A higher priority for correction will not be assigned to the facilities provided hereunder merely because of this contracting initiative. The fact that no such conditions have been identified does not warrant or guarantee that no possible hazard exists, or that work-around procedures will not be necessary or that the facilities as furnished will be adequate to meet the responsibilities of the contractor.

3.1.1. Compliance with the OSHA and other applicable laws and regulations for the protection of employees is exclusively the obligation of the contractor. Further, the government will assume no liability or responsibility for the contractor's compliance or noncompliance with such requirements, except for the aforementioned requirement to make corrections according to approved plans of abatement subject to facility-wide priorities. Before any modification of the facilities performed by the contractor at his or her expense, the contractor shall furnish the contracting officer documentation describing, in detail, the modification requested.

3.1.2. No alterations to the facilities may be made without specific written permission from the Contracting Officer. In the case of alterations necessary for compliance with the OSHA, such permission must not be unreasonably withheld. The contractor shall return the facilities to the government in the same condition as received, fair wear and tear and approved modifications excepted. These facilities must only be used in performance of this contract.

3.2. Utilities/Services: The Government will provide utilities to include electricity, water, and sewage. The Contractor (to include subcontractors) shall instruct employees in utilities conservation practices. The contractor shall be responsible for operating under conditions that preclude the waste of utilities, which include turning off the water faucets or valves after using the required amount to accomplish cleaning vehicles and equipment.

3.2.1. Government-Furnished Utilities. The government will provide utilities to include electricity, water, and sewage.

3.2.2. Telephone Services. The government will provide telephone services within the contractor's workspace.

3.2.3. Custodial Services. The government will provide basic custodial/janitorial services in the contractor's on-site

office area.

3.2.4 Computers, LAN and E-Mail Accounts. The government will provide accounts for computer LAN, Internet, and email access. The COR will request accounts be established for all contractor personnel as requested by the Contractor. All contractor personnel shall meet BEP IT training requirements and sign a BEP IT Rules Agreement.

3.2.5 Security, Safety, and Workplace Training. The government will provide time and materials for any training the BEP deems required by contractor personnel.

3.2.6. Environmental, Health, and Safety Requirements. Contracted services must be performed in a manner consistent with the Bureau of Engraving and Printing (BEP) Environmental, Health, and Safety (EHS) policy, and applicable EHS laws, regulations and other applicable requirements, codes, and standards. The BEP contractually transfers responsibility to its contractors for compliance with applicable environmental, health, and safety laws and regulations, BEP policies, and for adherence to standards identified in contracts.

All contractors must comply with the requirements and procedures established through the BEP WCF Environmental Management System (EMS). These requirements include those contained in this document and those that are communicated by the COR or the EHS Branch.

3.2.6.1. All contractors conducting construction or other services at the Western Currency Facility must carry out their contractual services in a manner that is consistent with the principles and commitments reflected in BEP's Environmental Health and Safety (EHS) Policy.

It is the policy of the BEP to produce the currency of the United States of America and other securities in a manner that minimizes negative environmental, health and safety impacts of our operations and products to the fullest extent possible. Specifically, the Bureau commits to:

- The preservation of human and natural resources through injury and illness risk reduction and environmental stewardship.
- Work to continually improve the Bureau's environmental, health and safety management system by identifying and analyzing EHS aspects and impacts, developing plans and programs to minimize negative impacts and to periodically evaluate the results.
- Integrate EHS considerations into all business decisions, including forecasting changes to the internal and external business environment and establishing direction to address anticipated changes.
- Comply with all applicable Federal, state, and local environmental, health and safety laws and regulations, Executive Orders and other requirements.
- Implement pollution prevention practices to realize overall improvements in environmental performance outcomes; and
- Support all Bureau personnel at all levels in their responsibilities to prevent pollution to the environment and eliminate risks to human health and safety wherever and whenever possible.

3.3. Equipment: The government will provide the contractor equipment listed in Technical Exhibit 3.

3.4. Initial Inventory. An initial inventory of Government furnished property shall be made jointly by the Contractor and the COR or his or her designate, on or before the contract start date. The operational or condition status shall be jointly determined. Any item found to be not in working order, or not suitable for its intended purpose, will be recorded. The COR and the Contractor shall certify the joint inventory as accurate, with signatures. All inventory listings will utilize an electronic spreadsheet to record inventory data. The Contractor shall keep the inventory listing current. The Contractor shall be accountable to the COR for equipment and supplies received for use during the contract.

PART 4
CONTRACTOR FURNISHED ITEMS AND SERVICES

4. CONTRACTOR FURNISHED ITEMS AND RESPONSIBILITIES:

4.1 General: The Contractor shall furnish all supplies, equipment, facilities, and services required to perform work under this contract that are not listed under Part 3 of this PWS.

4.2 Tools, Lifts, Other Equipment: The Contractor shall provide all necessary tools, lifts, safety equipment, and other equipment and PPE required to accomplish the work by this contract. All tools, lifts and equipment must in good operating condition and are subject to inspection and review by the COR.

PART 5
SPECIFIC TASKS

5. Specific Tasks:

5.1. Basic Services. The contractor shall provide services for Operations and Maintenance of the security equipment which includes scheduled preventive maintenance, unscheduled corrective maintenance, operations and maintenance of all sub-components (e.g., access control, intrusion detection, closed circuit TV, etc.), and other miscellaneous work. The Contractor shall, to the extent possible, minimize impacts on facility operations when performing all maintenance services. The Contractor shall establish and maintain a Preventative and Corrective Maintenance Program which is subject to approval by the COR.

The contractor shall provide all personnel, equipment, tools, supervision, management, labor, materials, supplies and other items as necessary to plan, schedule, perform operations, maintenance, reconfiguration and re-engineering, monitoring, and emergency repairs of the security equipment and all sub-components.

5.2. WCF Integrated Security System (WISS) Scheduled Preventive Maintenance (PM).

5.2.1. Perform on-site PM for items, equipment, parts, devices, or materials needed or used to make the Integrated Security System fully functional. It includes, but is not limited to cameras, card readers, relay expansion boards, controllers, alarm devices, isolation zone sensors, ported coax sensors, electric door strikes, magnetic locks, balance magnetic switches, controller boards, wire ways, x-ray machines, magnetometers, turnstiles, portals, under vehicle inspection systems, vault doors, safes, locks, vehicle barriers, perimeter lighting, and microwave heads.

5.2.2. In addition, PM is required for items, equipment, parts, or materials needed by the Security Division to perform its mission, such as, but not all inclusive of, vehicle access devices, barriers, gates, gate openers, turnstiles, attack-resistant bi-fold doors and vault doors (Federal Reserve Vault, Plate Vault, and Visitor Center Vault doors).

5.2.3. The Contractor shall submit a Preventative and Corrective Maintenance Program to ensure that all WISS sub-systems, equipment and materials operate and function within specified manufacturer parameters and criteria (100% of the time). The Contractor shall abide by the manufacturers recommended / suggested preventative calibration and testing requirements and shall electronically submit a monthly Performance/Inspection Records detailing the dates, times, discrepancies, and technician(s) that completed each PM, by the 5th of every month. This record will also include any security problem notifications. The Contractor will track and maintain the date and time a notification was received, who made the notification, date, and time the work was assigned to the technician(s), the date and time the work was completed, whether the work was routine or emergency, and the hours outside of normal business hours it took to correct, if any. The COR will sign and date the Performance/Inspection Report (PIR) log identifying completed PM and security problem notifications monthly. The Contractor shall maintain a log of

weekly, monthly, and quarterly scheduled and completed PM's. The contractor shall keep the schedule current.

5.2.3.1. Schedules. The Contractor shall electronically submit the initial weekly, monthly, and quarterly schedule ten (10) working days prior to contract start date and will continue provide monthly updates to the COR throughout the duration of the contract.

5.2.4. Other Requirements Related to Operation and Maintenance

5.2.4.1. Meetings. Contractor's Project Manager shall attend regular meetings as convened by the COR and/or designee to review matters related to the contract, discuss problems, recommend solutions, and to discuss ongoing/upcoming projects.

5.2.4.2. Isolation Zone. The Contractor shall maintain the ground surface between the exterior perimeter security fences to ensure that devices located between the fences operate as specified. Such maintenance shall include eliminating all visible signs of vegetation between the fences as well as noticeable protrusions or indentations of surface gravel between the fences.

5.2.4.3. Exterior Lighting. The Contractor shall provide corrective maintenance / repair, for exterior lighting, on a quarterly basis. Corrective maintenance / repair will be done during the same period the exterior camera preventative maintenance is being done. Weather conditions must be taken into consideration in determining when the corrective maintenance /repair will be completed.

5.2.4.4. Magnetometers and X-Ray Machines. The contractor shall provide preventative and corrective maintenance, test, and calibration (as required) for the magnetometers and X-Ray machines on a weekly basis and/or as directed by the COR. Maintenance will be reported on the monthly performance/inspection records. Procedures / regulations will be provided by the government.

5.2.4.5. As-Built Drawings. The Contractor shall maintain As-Built drawings of all Integrated Security System components. Drawings will be kept electronically on the BEP LAN and printed as requested by the COR. Drawings will be updated no later than 5 days after a system alteration. Drawings, regardless of media type shall not be removed from the facility without explicit written permission from the COR, Physical Security Branch Manager, or Security Division Manager.

5.2.4.6. Electronic Communication. The primary means of electronic communication or file transfer shall be made using the BEP Local Area Network (LAN). The secondary means of file transfer may be accomplished via BEP approved media (e.g. BEP provided thumb drive, external hard drive). When files are provided by this media, encryption and passwords are not necessary. The above-mentioned media will be marked as required by the COR. Use of non-BEP networks or email systems is strictly prohibited.

5.2.4.7. Bench Stock. The contractor shall identify and present recommended bench stock quantities to have on hand for immediate employment as directed, 30 days after contract award and then monthly thereafter. These recommendations shall be electronically submitted to the COR for approval. Upon approval, the contractor shall obtain the materials and supplies and appropriately store them in a government provided storage area.

5.2.4.8. Property Accountability. The Contractor shall maintain an up-to-date, detailed inventory of all O&M equipment. All new equipment shall be added to the inventory and any disposed of/removed equipment will be deleted from the inventory. The inventory will be maintained in MS Excel and electronically submitted to the COR monthly. In addition, the spreadsheet will be stored and available on the BEP LAN for review at any time by the COR. For all equipment designated for disposal; the Contractor shall complete the required paperwork for COR approval, before executing disposal actions.

5.2.4.9. Locks. The Contractor shall be responsible for all WCF locksmith services for doors, safes, portals, padlocks, lockers, and other security related mechanisms. This includes, but is not limited to PMs, hardware replacement, changing and rekeying, and the cutting and stamping of keys. Locksmith service requests will be completed within 1 day for low security locks and within 4 hours for high security locks. The BEP utilizes a Medco and Corbin keyways.

5.2.4.10. Lifecycle Management. During the duration of the contract the Contractor is responsible for ensuring compatibility & integration between all software and equipment. This term will be in place during the duration of the contract and Option Years. All equipment installed during the duration of the contract will have a one (1) year warranty for software, hardware, and workmanship related to the construction/ setup of equipment. Contractor is responsible for ensuring that equipment will maintain an operational functionality for a term of 1 year where if any failure of software, hardware, or errors in labor are discovered, then it is the responsibility of the contractor to update, correct, troubleshoot, reset, replace, or rewire during the duration of the 1-year limited warranty of the equipment and labor performed. The contractor will be responsible for any failures that occur because of the labor of a subcontracted party and thus held liable for all repairs and integration of the software, hardware, and/or workmanship.

5.2.4.11. Miscellaneous Assistance and Release of Information. The Contractor shall provide required assistance, information, and/or release of information as directed by the COR to other Contractors and/or other WCF employees in regard to the WISS and any security related equipment, element, or activity.

5.3. Unscheduled Corrective Maintenance. Perform corrective (unscheduled) maintenance on failed or malfunctioning systems, sub-systems, components, or on any item due to normal wear and tear, damage from natural or man-made causes or technological reasons. Corrective maintenance will be performed in the most efficient and cost-effective manner for any item, equipment, parts, or materials listed or covered by this contract. Corrective maintenance is classified into two categories (routine or emergency) depending on the severity of the malfunction and impact that it may cause on the security of the facility and/or production.

5.3.1. All corrective maintenance will be considered routine repair and corrected during normal duty hours. The Contractor shall respond upon notification from the COR. Notification may occur, via email, telephone, or in person. Corrective maintenance shall be completed by the close of the second business day following notification.

5.3.2. Emergency Corrective Maintenance. Upon notification from the COR of an emergency corrective action response, the Contractor shall respond within 2 hours (in good weather and barring traffic issues and within 4 hours during inclement weather), assess and make immediate repairs. Emergency corrective maintenance includes times outside normal work hours, e.g., nights, holidays, and work that exceed normal work hours.

5.4. Product Security Station CCTV Sub-system Operation. The Contractor shall:

5.4.1. Monitor and Record Live Camera Coverage. The Product Security Station (PSS) will be staffed at all times (24/7/365) by no less than three (3) operators. The first and second CCTV operator positions will be staffed with fully trained and qualified individuals. The first and second CCTV operator positions will be responsible for monitoring live camera coverage from the PSS CCTV Sub-system Monitoring Consoles as outlined in the PSS Operating Procedure.

Note: As directed by the COR, the PSS CCTV operators may be directed to retrieve, monitor, and review recorded video on a case-by-case basis.

5.4.1.1. Break Relief. The first and second CCTV operator positions are authorized two (2) 15-minute breaks and one (1) 30-minute lunch break away from the PSS during an eight (8) hour shift. Other break relief from the PSS may be granted on a case-by-case basis. Each CCTV operator shall be relieved by one another and/or by another trained and qualified CCTV operator prior to departing the PSS for a break, lunch, or end of shift.

5.4.1.2. Training and Qualifications. All operators will be trained in accordance with the PSS Training Plan. Training will be provided by the contractor and the BEP.

5.4.1.3. Location. The first and second CCTV operator positions will conduct operations in the Product Security Station (PSS), unless otherwise directed by the COR.

5.4.2. Review, Monitor, Retrieve, and Maintain Recorded Video. A third CCTV operator position is required to be staffed at all times (24/7/365). The third CCTV operator position will be staffed with a fully trained and qualified individual. The third CCTV operator position will be responsible for reviewing, monitoring, retrieving, and maintaining recorded video as outlined in the Product Security Station Operating Procedure. The third CCTV operator will augment and/or individually relieve the other two PSS operators for authorized breaks and meals.

5.4.2.1. Hours of Operation. The third CCTV operator position, as noted above, will be staffed 24 hours/day, 7 days week. Note: As directed by the COR, the PSS staffing may be reduced if the Production Area is shut down for an extended period, on a case-by-case basis.

5.4.2.2. Break Relief. The third CCTV operator position is authorized two (2) 15-minute breaks and one (1) 30-minute lunch break away from the PSS during an eight (8) hour shift. Other break relief from the Product Security Station may be granted on a case-by-case basis. The third CCTV operator position will be relieved by another trained and qualified CCTV operator prior to departing the PSS at the end of shift.

5.4.2.3. Requirements. At a minimum, the third CCTV operator will be responsible for performing the following duties listed below:

5.4.2.3.1. Review recorded video for areas that have been identified as a critical area by the BEP on a daily and/or scheduled basis.

5.4.2.3.2. Expediently retrieve any video data kept in storage, as needed, by BEP representatives.

5.4.2.3.3. Duplicate video data in multiple media format, as needed, by BEP representatives.

5.4.2.3.4. Provide special monitoring and recording for investigations, special events, and/or projects.

5.4.2.3.5. Search and retrieve video data of incidents or events from previous recordings as per instructions based on request form for services.

5.4.2.3.6. Generate, prepare, and analyze reports related to monitoring the CCTV sub-system.

5.4.2.3.7. Provide quality assurance reviews / preventative maintenance checks for recorded video on a scheduled basis.

5.4.2.3.8. Exchange all video data (supporting DVRS Libraries, etc.) on a recurring basis as determined by the system's capacity and/or BEP requirements.

5.4.2.3.9. Maintain all video data with adequate controls for inventory and storage using available tools and equipment such as bar code scanners, labeling machines, or signage on shelves, for efficient operation requirements.

5.4.2.3.10. Monitor camera recording system logs/status reports.

5.4.2.3.11. Training and Qualifications. All operators will be trained in accordance with the Product Security Station Training Plan. Training will be provided by the contractor and the BEP. The COR will approve changes or deviations to the training plan.

5.4.2.3.12. Location. The third CCTV operator position will conduct operations in the room (A-250) identified as the Product Security Station (PSS) and the room (A175) identified as the Training and Maintenance Room (T&M), or the room (A102) identified as Post 13.

5.4.2.4. Schedule of Shift Changes. The contractor shall provide, for COR approval, a schedule of shift changes for the operation of the Product Security Station. Shift changes shall not coincide with the WCF production shift changes.

5.4.2.5. Video Evidence Data. The contractor (and individuals serving as CCTV operator) shall maintain video data, that could be used as evidence, in a secure location and ensure that proper controls are in place to maintain a chain of custody.

5.4.2.6. Testify / Deposition. The contractor (and individuals serving as CCTV operators) shall be available to testify or give depositions as to the authenticity of the video data and the chain of custody of any video data used in legal

matters.

5.4.2.7. PSS Report. The Contractor shall electronically submit a monthly report, for the duration of the contract, that lists all case numbers, projects, tasks, and efforts. The PSS Report may be included, as a separate section, in the Performance/Inspection Report.

5.4.2.8. Association/Fraternization Prohibition. The duties of PSS can be highly sensitive in nature and personnel may be exposed to administrative or criminal information, sensitive currency design initiatives, personal information, trade secrets, or other information which unauthorized disclosure could result in damage operations or ongoing investigations. PSS personnel must be able to impartially carry out their assignments without bias or risk of compromise. Therefore, fraternization between PSS personnel and other BEP employees and contractors is prohibited. This includes familial relationships, dating, socializing, and friendships.

5.5. Reconfiguration and Re-engineering Requirements.

5.5.1. General. The WCF Integrated Security System is a dynamic system and will require some level of re-engineering and modifications to the ISS throughout the period of the contract due to changed conditions and/or obsolete/emerging technologies. The Government may request the contractor to make any project installations or required changes/repairs to existing security system as part of this contract and Option Years. Efforts may include, but are not limited to; installation/equipping new areas, adding/removing devices, adding security door controls, replacement of cabling, reprogramming, demolition of existing devices, etc.

5.5.2. Reconfiguration and Re-engineering. Within the scope of this contract, the Contractor shall be responsible for the periodic review, identification, and assessment of the security equipment. Review operational requirements relating to the equipment and recommend changes in hardware and software to accomplish the functional changes. Re-engineering/reconfiguration shall include any work due to changed conditions, new areas, or special projects or tasks that may require moving or installing temporary or permanent security devices, changing and re-configuring and/or adding, replacing, removing, and relocating equipment, components, subcomponents, parts or any other items related to the security equipment supporting the overall security posture at the WCF. Reconfiguration and re-engineering may be directed to:

- Improve or increase efficiency.
- Reduce operating costs.
- Increase the effectiveness of the security system.
- Increase other security activities/requirements in any form or manner.
- Adapt to new areas or requirements.
- Implement new technologies.

5.5.3. Procedures. Within the scope of this contract, the procedures for any work to be done under Reconfiguration and Re-engineering and/or Work-for-Others (within the WCF) are:

5.5.3.1. Work Order (WO). The Government will submit a WO to the Contractor identifying the requirement. These work orders will be within the scope of this contract and completed at no additional cost to the government. The Contractor will notify the COR if there are not sufficient funds remaining in the contract to accomplish the requirement. WOs will be submitted through, the BEP's Automated Work Order System. The WO will include, at a minimum, the following:

- Name of Project.
- Project Manager.

- Design Due Date (if different from the requirement below).
- Priority – Routine or Emergency.
- Background.
- Scope/Description of Work.
- Tasks or deliverables.
- Completion date(s) for tasks/deliverables.

5.5.3.2. Contractor's Design. Within the scope of this contract, the Contractor shall submit a proposed design electronically to the COR no later than 8:00 a.m. on the third workday after a WO is received. For example, if the WO is received on Friday anytime during the business hours, the Contractor's design will be due Wednesday at 8:00 a.m. The Contractor's design will contain as a minimum the following:

5.5.3.2.1. Name of project and date of design.

5.5.3.2.2. Objective and Scope.

5.5.3.2.3. Detailed description of work.

5.5.3.2.4. List of personnel resources and estimated labor hours for each.

5.5.3.2.5. List of materials, costs, and lead times, if applicable.

5.5.3.2.6. List of databases that require change/update/programming.

5.5.3.2.6. Estimated schedule, by duration, not date, and any phasing required.

5.5.3.2.7. Production/Operational Impacts.

5.5.3.2.8. Risks.

5.5.3.2.9. Drawings.

5.5.3.2.10. Any assistance or other resources needed.

5.5.3.3. Notice to Proceed. The COR shall evaluate the Contractor's design and if acceptable the COR will notify the Contractor via email proceed with the work.

5.5.3.3.1. Upon completion of work, and QA/QC inspection by the Government, the Contractor shall submit, at a minimum, the following documentation to close out the work order.

- A) Description of actual work completed
- B) Date(s) and time(s) work was completed.
- C) Actual hours and costs expended.
- D) As-builts.
- E) Contractor Quality Inspection Closeout Report.

5.5.3.4. Work Acceptance. The Government will conduct a Bureau Acceptance Test to inspect and accept all work. This test will include a sampling or complete test of all components, alarm points, and infrastructure to ensure functionality and integration.

5.5.4. Technical Assistance. At the request of the Government the Contractor will assist others (WCF

representatives, other U.S. Government agencies, vendors, integrators, contractors, sub- contractors, etc.) with design, consulting, installation, integration, partnering, or troubleshooting as directed by the COR.

5.5.5. Parts and Materials. All parts and materials will be FULLY COMPATIBLE with installed system and existing system related equipment and of the same or better quality and workmanship. If any possibilities become available during the execution of the contract, then contractor is responsible for alerting both COR and CO that new integration possibilities are present to create a more streamlined and compatible system of security, reduce redundancy of equipment, and save space.

5.6. Materials and Supplies.

5.6.1. Consumable Supplies. The Contractor shall be responsible for maintaining and storing consumable supplies that have a unit price value of twenty-five dollars (\$25.00) or less. The Contractor has authority to expend up to \$1,000.00 per month for such items. Consumable supplies include items such as, but not limited to connectors, terminal strips, switches, terminators, tie wraps, video tapes, labels, screws, printer ribbon and toner, and electric tapes. The Contractor shall invoice these costs and provide the supplier's invoice.

5.6.2. Major Items. The Contractor shall provide a list of recommended parts needed and three (3) price quotes for each part. The COR will approve items for purchase that are necessary to meet the scope of this contract, and do not exceed the funds allocated for the current contract period. After approval is granted, the Contractor shall make such purchases. Reimbursement for any item purchased under this contract will be for the actual cost of the item only. When invoicing for any material purchases, the Contractor shall provide a copy of the supplier's invoice to the COR. Items purchased under this paragraph shall be delivered to the COR or the representative of the COR and added to the inventory.

PART 6 APPLICABLE PUBLICATIONS

6. APPLICABLE PUBLICATIONS (CURRENT EDITIONS):

6.1. The Contractor (to include subcontractors) must abide by all applicable federal, local, and state regulations, publications, manuals, and local policies and procedures.

PART 7 – ATTACHMENT/TECHNICAL EXHIBIT LISTING

Technical Exhibit List:

Technical Exhibit 1 – Performance Requirements Summary

Technical Exhibit 2 – Deliverables Schedule

Technical Exhibit 3 – Government Furnished Equipment

Technical Exhibit 4 – EH&S Requirements for Construction and Services Contractors

TECHNICAL EXHIBIT 1 - PERFORMANCE REQUIREMENTS SUMMARY

The Contractor tasks requirements summarizes the performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of work required for each requirement. These thresholds are critical to mission success.

Performance Objective	Performance Standard	Performance Threshold Acceptable Quality Level (AQL)	Incentives (Positive or Negative)
5.2 Scheduled Preventive Maintenance (PM).	1) Submit a detailed Preventive Maintenance Plan consistent with manufacturer's recommendations within 30 days of contract award. 2) Conduct PM IAW approved plan during the performance period.	1) No deviation. 2) 85% of all items in the plan completed on time.	Positive / Negative CPARS evaluation.
5.2.4.2. Isolation Zone	The Contractor shall maintain the ground surface between the exterior perimeter security fences to ensure that devices located between the fences operate as specified. Such maintenance shall include eliminating all visible signs of vegetation between the fences as well as noticeable protrusions or indentations of surface gravel between the fences.	10% deviation.	Positive / Negative CPARS evaluation.
5.2.4.3. Exterior Lighting	The Contractor shall provide corrective maintenance / repair, for exterior lighting, on a quarterly basis. Corrective maintenance / repair will be done during the same period of time the exterior camera preventative maintenance is being done. Weather conditions must be taken into consideration in determining when the corrective maintenance / repair will actually be done.	10% deviation.	Positive / Negative CPARS evaluation.
5.2.4.4 Magnetometers and X-Ray Machines	The contractor shall provide preventative and corrective maintenance, test, and calibration (as required) for the magnetometers and X-ray machines on a weekly basis	No deviation.	Positive / Negative CPARS evaluation.
5.2.4.5 As-Built Drawings	The Contractor shall maintain As-Built drawings of all Integrated Security System components. Drawings will be kept electronically on the BEP LAN and printed as requested by the COR, as he/she deems necessary. Drawings will be updated no less than 5 days after a system alteration. Drawings, regardless of media type shall not be removed from the facility without explicit written permission from the COR, Physical Security Branch Manager, or Security Division Manager.	10% deviation.	Positive / Negative CPARS evaluation.

5.2.4.6 Electronic Communication	The primary means of electronic communication or file transfer shall be made using the BEP Local Area Network (LAN). The secondary means of file transfer may be accomplished via BEP approved media (e.g. BEP provided thumb drive, external hard drive). When files are provided by this media, encryption and passwords are not necessary. The above-mentioned media will be marked as required by the COR. Use of non-BEP networks or email systems is strictly prohibited.	No deviation.	Positive / Negative CPARS evaluation.
5.2.4.7 Bench Stock	The contractor shall identify and present recommended bench stock quantities to have on hand for immediate employment as directed, 30 days after contract award and then monthly thereafter. These recommendations shall be electronically submitted to the COR for approval. Upon approval, the contractor shall obtain the materials and supplies and appropriately store them in a government provided storage area.	10% deviation.	Positive / Negative CPARS evaluation.
5.2.4.8 Property Accountability	The Contractor shall maintain an up-to-date detailed inventory of all O&M equipment. All new equipment shall be added to the inventory and any disposed of/removed equipment will be deleted from the inventory. The inventory will be maintained in MS Excel and electronically submitted to the COR monthly. In addition, the spreadsheet will be stored and available on the BEP LAN for review at any time by the COR.	10% deviation.	Positive / Negative CPARS evaluation.
5.2.4.9 Locks	The Contractor shall be responsible for all locksmith services. This includes PMs, changing and rekeying, and the cutting and stamping of keys. Locksmith service requests will be completed within 1 day for low security locks and within 4 hours for high security locks.	10% deviation.	Positive / Negative CPARS evaluation.
5.3 Unscheduled Corrective Maintenance	Contractor will respond and correct all routine repairs by end of second full duty day.	10% deviation.	Positive / Negative CPARS evaluation.
5.3.2 Emergency Corrective Maintenance	Contractor will respond to emergency corrective maintenance within 2 hours of notification and Contractor shall correct/repair problem.	10% deviation.	Positive / Negative CPARS evaluation.
5.4 Product Security Station CCTV Sub-system Operation	Contractor will provide monitoring, reviewing, retrieving services 24/7.	No deviation.	Positive / Negative CPARS evaluation.

5.5 Reconfiguration and Re-engineering Requirements	1) Contractor shall provide proposed designs NLT third day after WO received. 2) Design shall include provisions IAW 5.5.3.2. 3) Contractor shall complete the work IAW approved design and timelines.	1) 10% deviation. 2) 10% deviation. 3) 10% deviation.	Positive / Negative CPARS evaluation.
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TECHNICAL EXHIBIT 2 – DELIVERABLES SCHEDULE

This Technical exhibit lists any reports or documentation that is required as deliverable to include the frequency, # of copies, medium/format and who/where it is to be submitted. A deliverable is anything that can be physically delivered but may include non-physical things such as meeting minutes. Note: All PWS deliverables should be included in this exhibit.

One Time Submittals	Submittal Name	Document Description	Comment	Format
NLT post award conference.	Quality Control Program (1.6.1)	The plan must include provisions, at a minimum those listed in 1.6.1.	Note: This must be accepted and approved by the CO before contract start date.	Electronically to COR and CO.
NLT 30 after contract award	Equipment: Initial Inventory (3.4)	An inventory of government-furnished equipment must be completed not later than 30 calendar days from start of the contract, within 30 calendar days of the start of any option periods, and not later than 30 calendar days before completion of the contract period (including any option periods).	This must be conducted jointly with the COR or designee.	MS Excel Spreadsheet electronically to the COR and stored on the BEP LAN.
NLT 30 after contract award	Scheduled Preventive Maintenance Program (5.2)	A detailed document that describes the Preventive Maintenance Program and includes at a minimum; the devices, frequency, work, documentation methods, manufacturers' recommendations, and projected schedule for the performance period.	This is the finalized copy that must be approved by the COR.	Electronically to the COR and stored on the BEP LAN.
Prior to NTP being issued	Safety & Fire Prevention Plan	The Plan shall demonstrate that the Contractor understands the relevant safety, health, and fire prevention requirements necessary for the project. See Exhibit 4, Section 4.3.1	This must be submitted to the COR and approved by BEP EHS.	Electronically via email to the COR and stored on the BEP LAN.
Recurring Submittals	Submittal Name	Description	Comment	Format
Monthly	Preventive and Corrective Maintenance Log (5.2.3)	Detailed report listing all preventive and corrective maintenance completed to include date of action, any discrepancies corrected, and name of technician.	The Preventive Maintenance Log and Unscheduled & Emergency Corrective Maintenance Log may be combined into one comprehensive submittal, however, should maintain distinct and separate sections. The LOG	Electronically via email to the COR.

			is due NLT the 5 th of every month.	
Monthly	Unscheduled & Emergency Corrective Maintenance Log (5.3)	Detailed report listing all unscheduled and emergency corrective maintenance performed, nature of the problem, name(s) of technicians tasked.	The Preventive Maintenance Log and Unscheduled & Emergency Corrective Maintenance Log may be combined into one comprehensive submittal I, however should maintain distinct and separate sections. The LOG is due NLT the 5 th of every month.	Electronically via email to the COR.
Monthly	Inventory: Property Accountability (5.2.3.1.8)	The Contractor shall maintain an up-to-date detailed inventory of all O&M equipment. All new equipment shall be added to the inventory and any disposed of/removed equipment will be deleted from the inventory. The inventory will be maintained in MS Excel and submitted to the COR monthly. In addition, the spreadsheet will be stored and available on the BEP LAN for review at any time by the COR.	The inventory shall be current and stored on the BEP LAN for immediate reference by the COR in addition to electronic submission to COR NLT the 5 th of every month.	Electronically
Monthly	Performance/Inspection Report (PIR) 5.2.3)	Contractor shall submit a weekly report that contains details dates, times, discrepancies, and the technician completing the maintenance.	This report will be due weekly NLT Tuesday at 0900 for the previous week.	Electronically to the COR via email.
Monthly	Product Security Station Report (5.4.2.7)	Contractor shall submit a weekly report that lists all case numbers, projects, tasks, and efforts that the PSS worked on.	This may be submitted as a standalone report or included as a separate section of the weekly PIR.	Electronically to the COR via email.
Monthly	Bench Stock (5.2.3.1.7)	Contractor shall identify and present recommended bench stock quantities to have on hand for immediate employment.	These recommendations shall be submitted to the COR NLT the 5 th of every month. This may be submitted independently or included as a distinct and separate sections.	Electronically to the COR via email.

TECHNICAL EXHIBIT 3 – GOVERNMENT FURNISHED PROPERTY

Government Furnished Equipment					
<u>Sub System</u>	<u>Item</u>	<u>Manufacturer</u>	<u>Model</u>	<u>Fielded</u>	<u>Spares</u>
<u>ACS</u>	<u>Electric Sliding Gate Operators (Rolling Decorative Gate Associated)</u>	<u>Hy-Security</u>	<u>HSG 120 E</u>	<u>3</u>	<u>0</u>
<u>ACS</u>	<u>Gate Arms</u>	<u>Hy Security</u>	<u>HTG 360</u>	<u>4</u>	<u>1</u>
<u>ACS</u>	<u>Hydraulic Gate Arm Operators</u>	<u>Hy-Security</u>	<u>VSHSG-600-(333-MS-VS)</u>	<u>14</u>	<u>0</u>
<u>ACS</u>	<u>Hydraulic Vehicle Barriers</u>	<u>Western Industries, Inc.</u>	<u>Magnum Series K12L3, Tandem</u>	<u>4</u>	<u>0</u>
<u>ACS</u>	<u>Rolling Chain Link Gate</u>	<u>Custom Fabricated</u>	<u>16'0" x 8'0"</u>	<u>2</u>	<u>0</u>
<u>ACS</u>	<u>Rolling Chain Link Gates</u>	<u>Custom Fabricated</u>	<u>28'7½" x 8'0"</u>	<u>2</u>	<u>0</u>
<u>ACS</u>	<u>Rolling Decorative Steel Sliding Gates</u>	<u>Custom Fabricated</u>	<u>28'7½" x 8'0"</u>	<u>2</u>	<u>0</u>
<u>ACS</u>	<u>Vehicle Presence Loop Detectors</u>	<u>Microsense</u>	<u>MXB-SII-100VAC</u>	<u>2</u>	<u>2</u>
<u>ACS</u>	<u>Vehicle Presence Roadway Loop Wire</u>	<u>Beldon</u>	<u>9438</u>	<u>4</u>	<u>0</u>
<u>ACS</u>	<u>Cardreaders</u>	<u>Idenitv</u>	<u>uTrust TS</u>	<u>470</u>	<u>38</u>
<u>ACS</u>	<u>Ultra Sonic Presence Detector</u>	<u>Von Duprin</u>	<u>AO-367</u>	<u>7</u>	<u>0</u>
<u>ACS</u>	<u>Computer, PC</u>	<u>DELL</u>	<u>DIMENSION V400</u>	<u>1</u>	<u>1</u>
<u>ACS</u>	<u>Printer, badge</u>	<u>DATACARD</u>	<u>IMAGECARD MAGNA SERIES</u>	<u>1</u>	<u>1</u>
<u>ACS</u>	<u>Printer, color ink jet</u>	<u>HEWLETT PACKARD</u>	<u>DESKJET 882C</u>	<u>1</u>	<u>0</u>
<u>ACS</u>	<u>Portals:</u> <u>(doors, bi-folds, turnstiles, gates, etc).</u> <u>Each portal has any combination of the following: BMS, Panic Release Device, Magnetic Lock, Card Readers, Electric Strike, Bolt Switch, Push Button, DRS, Tamper, Logical Control Unit, Switch Indicator, Mini Power Booster, etc...</u>	<u>Various</u>	<u>Various</u>	<u>548</u> <u>BMS Doors: 307</u> <u>-</u> <u>Reader Controlled Doors: 241</u> <u>-</u>	<u>N/A</u>
<u>ACS</u>	<u>Alarm Access Network</u>	<u>AMD</u>	<u>AAN-100</u>	<u>13</u>	<u>3</u>
<u>ACS</u>	<u>MINI UPS Battery for AANs</u>	<u>AMD</u>	<u>BP12-12V 12AH</u>	<u>8</u>	<u>0</u>
<u>ACS</u>	<u>MINI UPS for AANs</u>	<u>AMD</u>	<u>VDC-10</u>	<u>8</u>	<u>1</u>
<u>CCTV</u>	<u>Cameras</u>	<u>COHU, Javelin, Sony, Skyway, Diamond, Axis</u>	<u>COHU: 4835-3040, 4865-3040, 4814-3040</u> <u>Sony:</u> <u>SSC-DC30/34/50/54/80</u> <u>Skyway: Mini-dome,</u> <u>Diamond: Smartscan, KD6, HD6, ACUIX</u> <u>Axis:</u>	<u>1175</u>	<u>141</u>

			P3245/P3265-V, Q1615 MKIII, P3719, P3807-PVE, P3715- PVE, Q6075-E, Q16 Series		
<u>CCTV</u>	<u>Infrared Lights ME</u>	<u>GTE</u>	<u>500W-IR-MF-F&L</u>	<u>91</u>	<u>20</u>
<u>CCTV</u>	<u>Infrared Lights NSP</u>	<u>GTE</u>	<u>500W-R-NSP-F&L</u>	<u>43</u>	<u>20</u>
<u>CCTV</u>	<u>Infrared Lights SP</u>	<u>GTE</u>	<u>500W-IR-SP-F&L</u>	<u>12</u>	<u>20</u>
<u>CCTV</u>	<u>Pan-Tilt Drives</u>	<u>Pelco</u>	<u>PT1253P</u>	<u>32</u>	<u>11</u>
<u>CCTV</u>	<u>Digital PTZ Controller</u>	<u>Diamond</u>	<u>CRX-801</u>	<u>32</u>	<u>5</u>
<u>CCTV</u>	<u>Video Monitors</u>	<u>Javelin, Sony, Tote Vision</u>	<u>Javelin: 9", 13"</u> <u>Sony: 14", 20"</u> <u>Tote-Vision: 7" and 15"</u> <u>Panasonic: 19", 42"</u> <u>Marshall: 22"</u>	<u>68</u>	<u>19</u>
<u>CCTV</u>	<u>Touch Screen Controllers</u>	<u>ELO</u>	<u>12"</u>	<u>11</u>	<u>2</u>
<u>CCTV</u>	<u>Video Recorder (W/ RS232 Control)</u>	<u>Javelin</u>	<u>JR43601232, JR4360A/232</u>	<u>3</u>	<u>0</u>
<u>CCTV</u>	<u>Video Recorder</u>	<u>Sony</u>	<u>SVT-150/3050/RA40</u>	<u>14</u>	<u>1</u>
<u>CCTV</u>	<u>Video Recorder</u>	<u>Toshiba</u>	<u>KV6200A</u>	<u>8</u>	<u>0</u>
<u>CCTV</u>	<u>Digital Video Recorder</u>	<u>Toshiba</u>	<u>Surveillix</u>	<u>1</u>	<u>1</u>
<u>CCTV</u>	<u>Video Multiplexer, 16Ch w/ Keyboard</u>	<u>Dedicated Micros</u>	<u>Uniplex</u>	<u>3</u>	<u>0</u>
<u>CCTV</u>	<u>Port Expander Card</u>	<u>Javelin</u>	<u>JO20041SC/8</u>	<u>2</u>	<u>1</u>
<u>CCTV</u>	<u>CCTV Controller Port Expander</u>	<u>Javelin</u>	<u>Start Data Unit J0310SDU</u>	<u>3</u>	<u>1</u>
<u>CCTV</u>	<u>CCTV CPU Host Interface Unit</u>	<u>Javelin</u>	<u>J0326DP</u>	<u>1</u>	<u>0</u>
<u>CCTV</u>	<u>CCTV Driver Software</u>	<u>Javelin</u>	<u>Quest</u>	<u>1</u>	<u>0</u>
<u>CCTV</u>	<u>CTC Card (Matrix Switcher)</u>	<u>Javelin</u>	<u>JO2005CTC</u>	<u>30</u>	<u>3</u>
<u>CCTV</u>	<u>Fiber Optic Transceivers</u>	<u>American Fibertek, Fiber Options, IFS</u>	<u>American Fibertek: MT-2000 (Field) and RR-2000 (Rack) Fiber Options: 130V-T/4SAIC and 130V-R/4SAIC IFS: V7010WDMA</u>	<u>805</u>	<u>71</u>
<u>CCTV</u>	<u>Freeze Frame Units</u>	<u>Colorado Video</u>	<u>491-1, 491-2</u>	<u>100</u>	<u>31</u>
<u>CCTV</u>	<u>Keyboard for Javelin CPU</u>	<u>EECO</u>	<u>218600201C</u>	<u>20</u>	<u>-</u>
<u>CCTV</u>	<u>Power Supplies (Matrix Switcher)</u>	<u>Javelin</u>	<u>JO1005PS, JO1006PS, JO2005PS</u>	<u>42</u>	<u>5</u>
<u>CCTV</u>	<u>Sync Generator</u>	<u>Sigma</u>	<u>CSG-160</u>	<u>1</u>	<u>1</u>
<u>CCTV</u>	<u>Title Insert Panel</u>	<u>Javelin</u>	<u>J0221T1</u>	<u>21</u>	<u>0</u>
<u>CCTV</u>	<u>Video Distribution Card</u>	<u>Javelin</u>	<u>JO1006VDAC</u>	<u>100</u>	<u>7</u>
<u>CCTV</u>	<u>Video Distribution Frame</u>	<u>Javelin</u>	<u>JO1006VDA</u>	<u>10</u>	<u>1</u>
<u>CCTV</u>	<u>Video Gathering Frame (CCTV Matrix Video Switcher)</u>	<u>Javelin</u>	<u>JO2005VGF</u>	<u>30</u>	<u>2</u>
<u>CCTV</u>	<u>Video Loss Detector</u>	<u>American Dynamic</u>	<u>AD1608</u>	<u>14</u>	<u>7</u>

<u>CCTV</u>	<u>Video Switch Card</u>	<u>Javelin</u>	<u>JO2005VSC</u>	<u>300</u>	<u>17</u>
<u>CCTV</u>	<u>Digital Video Recorder</u>	<u>Sony</u>	<u>HSR-1, HSR-2</u>	<u>27</u>	<u>3</u>
<u>CCTV</u>	<u>Distribution Amplifiers</u>	<u>Leitech</u>	<u>FR-684</u>	<u>160</u>	<u>0</u>
<u>DVRS</u>					
<u>FIP</u>	<u>Computer, Main CPU</u>	<u>DEC</u>	<u>VAX FT3000 VMS</u>	<u>1</u>	<u>0</u>
<u>FIP</u>	<u>MB ISE for VAX FT3000 (381)</u>	<u>DEC</u>	<u>ORF31-KA</u>	<u>4</u>	<u>0</u>
<u>FIP</u>	<u>DECserver 300</u>	<u>DEC</u>	<u>DSRVP-BA</u>	<u>5</u>	<u>1</u>
<u>FIP</u>	<u>Local Network Interconnect</u>	<u>DEC</u>	<u>DELNI-BA</u>	<u>2</u>	<u>1</u>
<u>IDS</u>	<u>Fence Protection System Processor</u>	<u>Perimeter Products</u>	<u>FPS-2-2R</u>	<u>8</u>	<u>3</u>
<u>IDS</u>	<u>Intrusion Detection Grills</u>	<u>Safeguard</u>	<u>MP-001-00</u>	<u>2</u>	<u>0</u>
<u>IDS</u>	<u>Perimeter Microwave System K-Band</u>	<u>Southwest Microwave</u>	<u>Transmitter: 310B- 33253T</u>	<u>17</u>	<u>4</u>
<u>IDS</u>	<u>Perimeter Microwave System K-Band</u>	<u>Southwest Microwave</u>	<u>Receiver: 310B- 33253R</u>	<u>17</u>	<u>4</u>
<u>IDS</u>	<u>Perimeter Microwave System X-Band</u>	<u>Southwest Microwave</u>	<u>Transmitter: 300B- 33252T</u>	<u>34</u>	<u>8</u>
<u>IDS</u>	<u>Perimeter Microwave System X-Band</u>	<u>Southwest Microwave</u>	<u>Receiver: 300B- 33252R</u>	<u>34</u>	<u>6</u>
<u>IDS</u>	<u>Perimeter Microwave System X-Band</u>	<u>Southwest Microwave</u>	<u>Transceiver: 385</u>	<u>8</u>	<u>2</u>
<u>IDS</u>	<u>Ported Coax Cable Set-100 meter</u>	<u>Senstar</u>	<u>CS3-2</u>	<u>3</u>	<u>0</u>
<u>IDS</u>	<u>Ported Coax Cable Set-150 meter</u>	<u>Senstar</u>	<u>0S3-3</u>	<u>11</u>	<u>0</u>
<u>IDS</u>	<u>Ported Coax Cable Set-50 meter</u>	<u>Senstar</u>	<u>CS3-1</u>	<u>2</u>	<u>0</u>
<u>IDS</u>	<u>Ported Coax Sys.- Control Module</u>	<u>Senstar</u>	<u>CM1-1</u>	<u>1</u>	<u>1</u>
<u>IDS</u>	<u>Ported Coax Sys.- Transceiver</u>	<u>Senstar</u>	<u>TMIOO-2</u>	<u>8</u>	<u>3</u>
<u>IDS</u>	<u>Vehicle Presence Detectors</u>	<u>Detector Systems</u>	<u>816-3</u>	<u>3</u>	<u>3</u>
<u>IDS</u>	<u>Alarm Input Panels (AIA)</u>	<u>AMDI</u>	<u>222-002</u>	<u>135</u>	<u>9</u>
<u>IDS</u>	<u>Relay Output Module (ROM-100)</u>	<u>AMDI</u>	<u>226-000</u>	<u>58</u>	<u>11</u>
<u>ME</u>	<u>Exterior Pole Lights, 400w metal halide lamps</u>	<u>GE</u>	<u>49656 (MVR 400/CNBU)</u>	<u>92</u>	<u>24</u>
<u>ME</u>	<u>Perimeter Security Fence</u>	<u>USX Cyclone</u>	<u>9 gauge fabric, 2U mesh galvanized on 2 ½" OD line post, minimum horizontal force: 1,000 lbs</u>	<u>Entire Perimeter</u>	<u>0</u>
<u>ME</u>	<u>Photocell Control</u>	<u>Tork</u>	<u>21 01</u>	<u>9</u>	<u>0</u>
<u>ME</u>	<u>Fans in FDB Boxes</u>	<u>Globe</u>	<u>A31-B15A-15W3000</u>	<u>165</u>	<u>33</u>
<u>ME</u>	<u>Photo Control Unit</u>	<u>GTE</u>	<u>SLPCSAT120V</u>	<u>2</u>	<u>0</u>
<u>ME</u>	<u>Enclosures</u>	<u>Hoffman</u>	<u>Stainless steel NEMA type 4X 36"x48"x16"</u>	<u>N/A</u>	<u>N/A</u>
<u>ME</u>	<u>Enclosures</u>	<u>Hoffman</u>	<u>Stainless steel NEMA type 4X and type 12 16"x16"x6"</u>	<u>N/A</u>	<u>N/A</u>
<u>ME</u>	<u>Enclosures</u>	<u>Hoffman</u>	<u>Stainless steel NEMA type 4X & type 12 24"x24"x8"</u>	<u>N/A</u>	<u>N/A</u>
<u>ME</u>	<u>Enclosures</u>	<u>Hoffman</u>	<u>Stainless steel NEMA type 4X & type 12 10"x 8"x6"</u>	<u>N/A</u>	<u>N/A</u>

<u>ME</u>	<u>Enclosures</u>	<u>Hoffman</u>	<u>Stainless steel, NEMA type 4X & type 12 12"x10" x6"</u>	<u>N/A</u>	<u>N/A</u>
<u>ME</u>	<u>Moisture Detectors</u>	<u>Winland</u>	<u>VM-200</u>	<u>24</u>	<u>5</u>
<u>ME</u>	<u>Multi-Outlet Power Strips</u>	<u>SPC Technology</u>	<u>B061 1 906BT,BTO61 1 900B5</u>	<u>N/A</u>	<u>6</u>
<u>ME</u>	<u>Power Supplies</u>	<u>Abbott</u>	<u>Z24B5, Z12B10, Z5B20</u>	<u>N/A</u>	<u>43</u>
		<u>Cosel</u>	<u>PBA150F</u>		
<u>ME</u>	<u>Relays</u>	<u>Potter & Brumfield</u>	<u>KRPA- II AG-24</u>	<u>73</u>	<u>26</u>
<u>ME</u>	<u>Surge Protectors</u>	<u>MCG Electronics</u>	<u>DLP-20/25</u>	<u>43</u>	<u>4</u>
<u>ME</u>	<u>Surge Protectors</u>	<u>MCG Electronics</u>	<u>DLP-33</u>	<u>16</u>	<u>0</u>
<u>ME</u>	<u>Surge Protectors</u>	<u>MCG Electronics</u>	<u>MCG-415</u>	<u>179</u>	<u>23</u>
<u>ME</u>	<u>Tamper Switches</u>	<u>Sentrol</u>	<u>1085T, 2700, 3025T</u>	<u>N/A</u>	<u>N/A</u>
<u>ME</u>	<u>AC Control Relay</u>	<u>Square D</u>	<u>Class 8501</u>	<u>26</u>	<u>12</u>
			<u>Type X Series A</u>		
<u>ME</u>	<u>Fans</u>	<u>Nidec</u>	<u>TA450</u>	<u>150</u>	<u>4</u>
<u>ME</u>	<u>Fiber Optic Transceiver</u>	<u>American Fibertek</u>	<u>MR-10M/ST</u>	<u>32</u>	<u>0</u>
<u>ME</u>	<u>Relay with Timer</u>	<u>Potter & Brumfield</u>	<u>CNS-35-96</u>	<u>15</u>	<u>4</u>
<u>ME</u>	<u>Transformers</u>	<u>Stancor</u>	<u>P8617, P8662, P8664</u>	<u>N/A</u>	<u>57</u>
<u>ME</u>	<u>Transformers</u>	<u>Signal</u>	<u>A41-80-24</u>	<u>N/A</u>	<u>0</u>
<u>ME</u>	<u>Transformers</u>	<u>Custom Coil</u>	<u>8881-02</u>	<u>N/A</u>	<u>35</u>
<u>ME</u>	<u>Relay</u>	<u>Original</u>	<u>SRU-SH-124D-24VDC</u>	<u>10</u>	<u>0</u>
<u>MMI</u>	<u>Monitors</u>	<u>Sassi</u>	<u>19RIT</u>	<u>17</u>	<u>2</u>
<u>MMI</u>	<u>CPU(for Sassi graphics),</u>	<u>Texas Microsystems</u>	<u>OPTIPLEX GX1</u>	<u>17</u>	<u>4</u>
			<u>3014</u>		
<u>MMI</u>	<u>Keyboard</u>	<u>Digital</u>	<u>LK201/401</u>	<u>16</u>	<u>11</u>
<u>MMI</u>	<u>Monitor</u>	<u>Digital</u>	<u>VT320/520</u>	<u>16</u>	<u>12</u>
<u>MMI</u>	<u>Printer</u>	<u>OTC Duralinep 100</u>	<u>48001120</u>	<u>8</u>	<u>0</u>
<u>MMI</u>	<u>Printer, high speed line</u>	<u>Digital</u>	<u>LGO2-A2</u>	<u>1</u>	<u>0</u>
<u>MMI</u>	<u>Printer, Inkjet</u>	<u>Epson</u>	<u>PR104</u>	<u>1</u>	<u>0</u>
<u>MMI</u>	<u>Printer, Laser</u>	<u>Digital</u>	<u>OLNO5-A2</u>	<u>2</u>	<u>0</u>
<u>SE</u>	<u>Intercom System</u>	<u>Stentofon</u>	<u>Outdoor Station</u>	<u>5</u>	<u>4</u>
<u>SE</u>	<u>Vault doors</u>	<u>Chubb Security Safe</u>	<u>N/A</u>	<u>4</u>	<u>0</u>
<u>SE</u>	<u>Intercom System</u>	<u>Stentofon</u>	<u>Desk/Wall Station 7072</u>	<u>23</u>	<u>1</u>
<u>SE</u>	<u>Intercom System</u>	<u>Stentofon</u>	<u>Wall Station 6294</u>	<u>30</u>	<u>6</u>
<u>SE</u>	<u>Vault door</u>	<u>Lefebure</u>	<u>N/A</u>	<u>2</u>	<u>0</u>
<u>SE</u>	<u>Magnetometers / Metal Detector</u>	<u>Rapiscan</u>	<u>N/A</u>	<u>4</u>	<u>0</u>
<u>SE</u>	<u>Magnetometers / Metal Detector</u>	<u>Garrett</u>	<u>6500i</u>	<u>6</u>	<u>0</u>
<u>SE</u>	<u>X-Ray Machine</u>	<u>Rapiscan</u>	<u>520 DV</u>	<u>4</u>	<u>1</u>
<u>SE</u>	<u>X-Ray Machine</u>	<u>Rapiscan</u>	<u>527 DV</u>	<u>1</u>	<u>0</u>
<u>SE</u>	<u>Turnstile, glass door</u>	<u>Horton</u>	<u>Series 9000</u>	<u>3</u>	<u>0</u>
<u>SE</u>	<u>X-Ray Machine</u>	<u>Rapiscan</u>	<u>519</u>	<u>1</u>	<u>0</u>
<u>SE</u>	<u>Turnstile (Glass segmented revolving doors)</u>	<u>Horton</u>	<u>Series 9200</u>	<u>3</u>	<u>0</u>
<u>SE</u>	<u>Turnstile (metal</u>	<u>Central Acs, Inc</u>	<u>CA427S</u>	<u>39</u>	<u>0</u>

	<u>segmented revolving doors)</u>	<u>Alvarado</u>	<u>MSTX-6X</u>		
<u>SE</u>	<u>Access Control Security Portal w/ Magnetometer</u>	<u>Secure Access</u>	<u>200 BR MD AP</u>	<u>2</u>	<u>0</u>
<u>SE</u>	<u>Intercom System</u>	<u>Stentofon</u>	<u>Alphacom 80+</u>	<u>1</u>	<u>0</u>
<u>SE</u>	<u>Intercom System</u>	<u>Mackenzie</u>	<u>M2 Audio Player</u>	<u>1</u>	<u>0</u>

TECHNICAL EXHIBIT 4 – EH&S REQUIREMENTS FOR CONSTRUCTION AND SERVICES CONTRACTORS



Technical Exhibit 4.
75W08004 Restricted

[END OF SECTION]

4. Section D - Packaging and Marking

The following outlines the Bureau of Engraving and Printing's packaging slip requirements to ensure efficient processing of shipments to the BEP:

- The Bureau of Engraving and Printing requires that all packaging slips be placed in a self-adhesive pack list envelope and affixed to the outside of a shipment.
- The packing slip shall include, at a minimum, the following information:
 - Contract Number – The contract number BEP assigned to this purchase.
 - Shipping Address – Point from which the merchandise was shipped.
 - Telephone Number – The telephone number of the vendor contact to be called for inquiries related to merchandise.
 - Customer Information – The name and telephone number of the party to which the merchandise is being shipped.
 - Total Weight of Packages, Total Number of Items within shipment
 - Item Number – Item number assigned by manufacturer/supplier for product identification.

[END OF SECTION]

5. Section E - Inspection and Acceptance Terms

A.1 FAR CLAUSE 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this address: www.acquisition.gov/

(End of Clause)

CLAUSE NUMBER	TITLE	DATE
52.246-2	INSPECTION OF SUPPLIES—FIXED-PRICE	AUG 1996
52.246-4	INSPECTION OF SERVICES – FIXED PRICE	AUG 1996
52.246-16	RESPONSIBILITY FOR SUPPLIES	APR 1984

A.2 INSPECTION AND ACCEPTANCE

This paragraph details the means for testing and acceptance of any support equipment, new, and/or replacement materials/supplies/systems delivered under this contract. In order for the systems to be acceptable to the Government, the equipment must meet all requirements outlined in Section C of the contract. If the systems do not meet the requirements as outlined in Section C, then the systems will be deemed unacceptable. Therefore, final acceptance and payment for each system will not be made until the Bureau has fully accepted the systems. Inspection and acceptance of the systems to be provided hereunder shall be made in accordance with FAR Clause 52.246-2, Inspection of Supplies – Fixed Price. The Contracting Officer (CO) will appoint a Contracting Officer Representative (COR) at award to provide oversight on behalf of the CO.

This paragraph details the means of inspection of any services performed under this contract. The contractor shall provide and maintain an inspection system acceptable to the Government covering the services under this contract. Complete records of all inspection work performed by the contractor shall be maintained and made available to the Government during contract performance and for as long afterwards as the contract requires. In order for the services to be acceptable to the Government, the services must meet all requirements outlined in Section C of the contract. If the services do not meet the requirements as outlined in Section C, then the services will be deemed unacceptable. Therefore, final acceptance and payment for services will only be made for services deemed acceptable by the Bureau. The COR will provide oversight on behalf of the CO. In accordance with FAR Clause 52.246-4, if the Contractor fails to promptly perform the services again or to take necessary action to ensure future performance in conformity with contract requirements, the Government may –

- (1) By contract or otherwise, perform the services and charge to the Contractor any cost incurred by the Government that is directly related to the performance of such service; or
- (2) Terminate the contract for default.

When supplies and/or services are rejected for noncompliance, written notification of the rejection will be furnished by the Contracting Officer, within ten (10) calendar days after inspection has been completed. The notification shall include an explanation of the deficiencies noted during inspection, the reasons for the rejection, and the Government's terms as to what remedies will be made by the Contractor. All parts found insufficient or damaged must be replaced at the contractor's expense.

[END OF SECTION]

6. Section F - Delivery or Performance

The period of performance shall be for one (1) Base Year consisting of 12 months; and four (4) 12-month option periods.

Line Item: 0001

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address
5/1/24	4/30/25	BEP-WCF 9000 Blue Mound Road Fort Worth Tarrant US 76131-3304

Line Item: 0002

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address
5/1/24	4/30/25	BEP-WCF 9000 Blue Mound Road Fort Worth Tarrant US 76131-3304

Line Item: 0003

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address
5/1/24	4/30/25	BEP-WCF 9000 Blue Mound Road Fort Worth Tarrant US 76131-3304

Line Item: 1001

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address
5/1/25	4/30/26	BEP-WCF 9000 Blue Mound Road Fort Worth Tarrant US 76131-3304

Line Item: 1002

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address
5/1/25	4/30/26	BEP-WCF 9000 Blue Mound Road Fort Worth Tarrant US 76131-3304

Line Item: 1003

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address
5/1/25	4/30/26	BEP-WCF 9000 Blue Mound Road Fort Worth Tarrant US 76131-3304

Line Item: 2001

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address
5/1/26	4/30/27	BEP-WCF 9000 Blue Mound Road Fort Worth Tarrant US 76131-3304

Line Item: 2002

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address
5/1/26	4/30/27	BEP-WCF 9000 Blue Mound Road Fort Worth Tarrant US 76131-3304

Line Item: 2003

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address
5/1/26	4/30/27	BEP-WCF 9000 Blue Mound Road Fort Worth Tarrant US 76131-3304

Line Item: 3001

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address
5/1/27	4/30/28	BEP-WCF 9000 Blue Mound Road Fort Worth Tarrant US 76131-3304

Line Item: 3002

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address
5/1/27	4/30/28	BEP-WCF 9000 Blue Mound Road Fort Worth Tarrant US 76131-3304

Line Item: 3003

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address
5/1/27	4/30/28	BEP-WCF 9000 Blue Mound Road Fort Worth Tarrant US 76131-3304

Line Item: 4001

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address
5/1/28	4/30/29	BEP-WCF 9000 Blue Mound Road Fort Worth Tarrant US 76131-3304

Line Item: 4002

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address
5/1/28	4/30/29	BEP-WCF 9000 Blue Mound Road Fort Worth Tarrant US 76131-3304

Line Item: 4003

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address
5/1/28	4/30/29	BEP-WCF 9000 Blue Mound Road Fort Worth Tarrant US 76131-3304

F.1 FAR CLAUSE 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): www.acquisition.gov/

(End of Clause)

CLAUSE NUMBER	TITLE	DATE
52.242-15	Stop-Work Order	AUG 1989
52.242-17	Government Delay of Work	APR 1984
52.247-34	F.O.B. Destination	NOV 1991
52.247-35	F.O.B. Destination Within Consignee's Premises	APR 1984

F.2 PLACE OF PERFORMANCE / DELIVERY

Performance of this contract, along with the delivery of any equipment and supplies identified, shall take place at the following premises:

- Bureau of Engraving and Printing
- Western Currency Facility
- 9000 Blue Mound Road
- Fort Worth, Texas 76131

Electronic copies shall be delivered using Microsoft Office suite of tools (i.e Word, Excel, PowerPoint, Project, or Access formats), unless otherwise specified by the COR. Electronic submission shall be made via email, unless otherwise agreed to by the COR.

F.3 NOTIFICATION OF DELIVERY

The Contractor shall be responsible for providing all materials and services required for the delivery and placement of the equipment and all support equipment and supplies at the designated installation site(s) within the BEP. The delivery services shall also include all freight, rigging, unpacking, and removal of packing materials from BEP premises. The BEP will not provide any assistance during deliveries.

The contractor shall develop and submit a delivery plan to the COR seven (7) days prior to scheduling any deliveries to the BEP. The following information should be provided for all deliveries to BEP facilities:

- Name of supplier/manufacturer
- Contract/Purchase Order Number
- Total number of cartons or pallets
- Total weight
- Date and Time of Delivery

(1) Deliveries to the Western Currency Facility:

9000 BLUE MOUND ROAD, FORT WORTH, TEXAS: Vendors must contact WCF General Stores/Receiving at (817) 231-4125 or (817) 847-3855 at least twenty-four (24) hours in advance to notify of approximate delivery time and date. Deliveries are accepted during the operating hours of 7:00 am to 2:15 pm. After hours contact numbers are (817) 231-4125 or (817) 231-4167. WCF General Stores/Receiving operating hours are from 7:00 am to 2:30 pm local time, Monday through Friday, excluding holidays. To resolve any delivery issue, please contact WCF General Stores/Receiving management at (817) 231-4167 or (817)847-3855.

F.4 DOCUMENTATION

Delivery of all technical data and documentation shall be in accordance with Section D & F and shall be F.O.B. destination, within consignee's premises, to the locations specified in Section F.2 of this solicitation, to the attention of the COR identified in the contract.

F.7 BEP YEAR END SHUTDOWN (YES) PERIOD AND FEDERAL HOLIDAYS

BEP observes the federal holidays that are listed on the Office of Personnel website at: <https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/#url=2017>. BEP's Y.E.S. Period typically occurs December 25th through January 1st of each calendar year.

[END OF SECTION]

7. Section G - Contract Administration Data

Requesting Office Address	
BEP-SECURITY_WCF Bureau of Engraving and Printing Security Division 9000 Blue Mound Road Fort Worth TX 76131-3304 Phone: (817) 847-3870	
Fax:	
Contact Details: Armistead, Michael Vernon Michael.Armistead@bep.gov	
COR Office Address	
BEP-SECURITY_WCF Bureau of Engraving and Printing Security Division 9000 Blue Mound Road Fort Worth TX 76131-3304 Phone: (817) 847-3997	
Fax:	
Contact Details: Goodenough, Keith Allen Keith.Goodenough@bep.gov	
Issuing Office Address	
BEP-ACQUISITION Bureau of Engraving and Printing Office of Acquisition 301 14th Street SW Washington DC 20228-0001 Phone:	
Fax:	
Contact Details: Lawrence, Terry Dean Terry.Lawrence@bep.gov	

G.1 CONTRACT ADMINISTRATION DATA

The Contractor shall provide sufficient management to ensure that this contract is performed efficiently, accurately, on-time, and in compliance with the requirements of this document. Specifically, the Contractor shall designate a single manager to oversee this contract and supervise staff assigned to this contract.

G.2 CONTRACTING OFFICER'S AUTHORITY

The Contracting Officer is the only person authorized to make or approve any changes in any of the requirements of this contract, and, notwithstanding any provisions contained elsewhere in this contract, the said authority remains solely in the Contracting Officer. In the event the Contractor makes any changes at the directions of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made to the contract terms and conditions, including price.

G.3 DTAR 1052.201-70, Contracting Officer's Representative (COR) Appointment and Authority (APR 2015)

(a) The COR **SHALL BE APPOINTED AT CONTRACT AWARD.**

(b) Performance of work under this contract is subject to the technical direction of the COR identified above, or a representative designated in writing. The term "technical direction" includes, without limitation, direction to the Contractor that directs or redirects the labor effort, shifts the work between work areas or locations, and/or fills in details and otherwise serves to ensure that tasks outlined in the work statement are accomplished satisfactorily.

(c) Technical direction must be within the scope of the contract specification(s)/work statement.

The COR does not have authority to issue technical direction that:

- (1) Constitutes a change of assignment or additional work outside the contract specification(s)/work statement;
- (2) Constitutes a change as defined in the clause entitled "Changes";
- (3) In any manner causes an increase or decrease in the contract price, or the time required for contract performance;
- (4) Changes any of the terms, conditions, or specification(s)/work statement of the contract;
- (5) Interferes with the Contractor's right to perform under the terms and conditions of the contract; or
- (6) Directs, supervises or otherwise controls the actions of the Contractor's employees.

(d) Technical direction may be oral or in writing. The COR must confirm oral direction in writing within five workdays, with a copy to the Contracting Officer.

(e) The Contractor shall proceed promptly with performance resulting from the technical direction issued by the COR. If, in the opinion of the Contractor, any direction of the COR or the designated representative falls within the limitations of (c) above, the contractor shall immediately notify the Contracting Officer no later than the beginning of the next Government workday.

(f) Failure of the Contractor and the Contracting Officer to agree that technical direction is within the scope of the contract shall be subject to the terms of the clause entitled "Disputes."

(End of clause)

G.2 DTAR 1052.232-7003, Electronic Submission of Payment Requests (APR 2015)

(a) Definitions. As used in this clause—

- (1) "Payment request" means a bill, voucher, invoice, or request for contract financing payment with associated supporting documentation. The payment request must comply with the requirements identified in FAR 32.905(b), "Content of Invoices" and the applicable Payment clause included in this contract.

(b) Except as provided in paragraph (c) of this clause, the Contractor shall submit payment requests electronically using the Invoice Processing Platform (IPP). Information regarding IPP, including IPP Customer Support contact information, is available at www.ipp.gov or any successor site.

(c) The Contractor may submit payment requests using other than IPP only when the Contracting Officer authorizes alternate procedures in writing in accordance with Treasury procedures.

(d) If alternate payment procedures are authorized, the Contractor shall include a copy of the Contracting Officer's written authorization with each payment request.

(End of clause)

[END OF SECTION]

8. Section H - Special Contract Requirements

H.1 TYPE OF CONTRACT

This is a Firm Fixed-Price type contract.

H.2 INTERPRETATION OF CONTRACT REQUIREMENTS

No interpretation of any provision of this contract, including applicable specification(s)/work statement, shall be binding on the Government unless furnished or agreed to in writing by the Contracting Officer (CO).

H.3 NON-PERSONAL SERVICES CONTRACT

This contract is a "non-personal services contract" as defined in the FAR Subpart 37.101. It is understood and agreed that the Contractor and/or Contractor's employees, consultants and Subcontractors:

- (a) Shall perform the services specified herein as independent Contractors, not as employees of the Government.
- (b) Shall be responsible for their own management and administration of the work required, and bear sole responsibility for complying with any and all technical, schedule, or financial requirements or constraints attendant to the performance of this contract.
- (c) Shall be free from any direct or indirect supervision or control by any Government employee with respect to the manner or method of performance of the services specified; however,
- (d) Shall, pursuant to the government rights under contract clauses such as "Inspection," and "Key Personnel" comply with such general direction of authorized Government employees as is necessary and appropriate to ensure accomplishment of the contract requirements and objectives.

H.4 PROPRIETARY RIGHTS IN REPORTS

All property rights, including publication rights, in progress reports and final reports produced by the Contractor in connection with this contract provided for hereunder shall rest in the Government.

H.5 NOTICE TO THE GOVERNMENT OF DELAYS

In the event the Contractor encounters difficulty in meeting performance requirements, or when it anticipates difficulty in complying with the contract delivery schedule or date, or whenever the Contractor has knowledge that any actual or potential situation is delaying or threatens to delay the timely performance of this contract, the Contractor shall immediately notify the CO and the COR, in writing, giving pertinent details, provided, however, that this data shall be informational only in character and that this provision shall not be construed as a waiver by BEP of any delivery schedule or date or of any rights or remedies provided by law or under this contract.

H.6 NON-DISCLOSURE OF NON-PUBLIC INFORMATION AND DATA

During the period of performance of the contract, the Contractor may be granted access to Non- Public information and data, which is the sole property of BEP, as well as proprietary information and data, which is the sole property of entities other than the contracting parties. In particular, the Contractor agrees that all information provided by representatives of BEP, either before or after contract award, concerning the design, manufacture, processing or transporting of United States currency is nonpublic. Such information shall be shared only with employees or agents of the company having a need to know, and shall not be disclosed to other persons without the written consent of the CO.

Further, the Contractor agrees to maintain the confidentiality of all such information and data and shall not disclose any information and data, interpretations of, and/or derivatives of, such information and data to any unauthorized party without the express written approval of the CO, or of the party in which title is wholly vested. The Contractor hereby agrees to include this clause in all subcontracts or consulting agreements relating to work under this contract. The Contractor shall be required to sign a Non-Disclosure Agreement (Attachment A).

H.7 INDEMNIFICATION

- (a) Responsibility for Government Property: The Contractor assumes full responsibility for and shall indemnify the Government against any and all losses or damage of whatsoever kind and nature to any and all Government property, including any equipment, supplies, accessories, or parts furnished, while in his custody and care for storage, repairs, or service to be performed under the terms of this contract, resulting in whole or in part from the negligent acts or omissions of the Contractor, any subcontractor, or any employee, agent or representative of the Contractor or subcontractor.

If due to the fault, negligent acts (whether of commission or omission) and/or dishonesty of the Contractor or its employees, any Government-owned or controlled property is lost or damaged as a result of the Contractor's performance of this contract, the Contractor shall be responsible to the Government for such loss or damage, and the Government, at its option, may in lieu of payment thereof, require the Contractor to replace at his own expense, all property lost or damaged.

- (e) Hold Harmless and Indemnification Agreement: The Contractor shall save and hold harmless and indemnify the Government against any and all liability claims, and cost of whatsoever kind and nature for injury to or death of any person or persons and for loss or damage to any Contractor property or property owned by a third party occurring in connection with or in any way incident to or arising out of the occupancy, use, service, operation, or performance of work under the terms of this contract, resulting in whole or in part from the acts or omissions of the Contractor, any subcontractor, or any employee, agent, or representative of the Contractor or subcontractor.
- (f) Government's Right of Recovery: Nothing in the above paragraphs shall be considered to preclude the Government from receiving the benefits of any insurance the Contractor may carry which provides for the indemnification of any loss or destruction of, or damages to property in the custody and care of the Contractor where such loss, destruction or damage is to Government property. The Contractor shall do nothing to prejudice the Government's right to recover against third parties for any loss, destruction of, or damage to Government property, and upon the request of the Contracting Officer shall, at the Government's expense, furnish to the Government all reasonable assistance and cooperation (including assistance in the prosecution of suit and the execution of instruments of assignment in favor of the Government) in obtaining recovery.
- (g) Government Liability: The Government shall not be liable for any injury to the Contractor's personnel or damage to the Contractor's property unless such injury or damage is due to negligence on the part of the Government and is recoverable under the Federal Torts Claims Act, or pursuant to other Federal statutory authority.

H.8 ORGANIZATIONAL CONFLICTS OF INTEREST

- (a) The Contractor warrants that, to the best of the Contractor's knowledge and belief, there are no relevant facts or circumstances which could give rise to an organizational conflict of interest (OCI), as defined in FAR 9.5, Organizational and Consultants Conflicts of Interest, or that the Contractor has disclosed all such relevant information.
- (b) The Contractor agrees that if an actual or potential OCI is discovered after award, the Contractor shall make a full disclosure in writing to the Contracting Officer. This disclosure must include a description of actions, which the Contractor has taken or proposes to take, after consultation with the Contracting Officer, to avoid, mitigate, or neutralize the actual or potential conflict.
- (c) The Contracting Officer may terminate this contract for convenience, in whole or in part, if it deems such termination necessary to avoid an OCI. If the Contractor was aware of a potential OCI prior to award or discovered an actual or potential conflict after award and did not disclose or misrepresented relevant information to the Contracting Office, the Government may terminate the contract for default, debar the Contractor from Government contracting, or pursue such other remedies as may be permitted by law or this contract.
- (d) The Contractor must include this clause in all subcontracts and in lower tier subcontracts unless a waiver is requested from, and granted by, the Contracting Officer.
- (e) In the event that a requirement changes in such a way as to create a potential conflict of interest for the Contractor, the Contractor must:
 - 1) Notify the Contracting Officer of a potential conflict, and;
 - 2) Recommend to the Government an alternate approach which would avoid the potential conflict, or
 - 3) Present for approval a conflict-of-interest mitigation plan that shall:
 - Describe in detail the changed requirement that creates the potential conflict of

- interest; and
 - Outline in detail the actions to be taken by the Contractor or the Government in the performance of the task to mitigate the conflict, division of subcontractor effort, and limited access to information, or other acceptable means.
- 4) The Contractor must not commence work on a changed requirement related to a potential conflict of interest until specifically notified by the Contracting Officer to proceed.
 - 5) If the Contracting Officer determines that it is in the best interest of the Government to proceed with work, notwithstanding a conflict of interest, a request for waiver must be submitted in accordance with FAR 9.503.

H.9 DISCLOSURE OF CONFLICTS OF INTEREST

It is the BEP policy to award contracts to only those Quoters whose objectivity is not impaired because of any related past, present, or planned interest, financial or otherwise, in organizations regulated by BEP or in organizations whose interests may be substantially affected by Departmental activities. Based on this policy, if at any time during the performance of this contract the Contractor knows of any Conflict-of-Interest situation affecting the organization, any of its officers or Key Persons working under this contract, has reason to believe that a conflict of interest situation might arise, or is made aware of an actual or potential conflict of interest situation:

- (a) The Contractor shall immediately provide to the Contracting Officer a written statement which describes in a concise manner all past, present or planned organizational, financial, contractual or other interest(s) with that organization regulated by BEP, or with that organization or individual whose interests may be substantially affected by Departmental activities, and which is related to the work under this contract. The interest(s) described shall include those of the Contractor, its affiliates, consultants, Subcontractors and key personnel of any of the above. Past interest shall be limited to within one year of the date of the quoter's technical offer. Key personnel shall include any person owning more than 20% interest in the organization, and the organization's corporate officers, its senior managers and any employee who is responsible for making a decision or taking an action on this contract where the decision or action can have an economic or other impact on the interests of a regulated or affected organization.
- (b) The Contractor shall describe in detail when it became aware of the actual or potential conflict of interest, what action the organization has taken or proposes to take to mitigate and / or rectify the situation, and why it believes, in light of the interest(s) identified in (a) above, that performance of the contract can still be accomplished in an impartial and objective manner.
- (c) In the absence of any relevant interest identified in (a) above, the Contractor shall certify in its statement that to its best knowledge and belief no affiliation exists relevant to possible conflicts of interest. The Contractor must obtain the same information from any potential Subcontractors prior to award of a subcontract.
- (d) The Contracting Officer shall review the statement submitted and may require additional relevant information from the Contractor. All such information, and any other relevant information known to BEP, shall be used to determine whether a conflict of interest exists, or a situation exists that may create a conflict of interest. If any such conflict of interest is found to exist, the Contracting Officer may (1) terminate the contract, or (2) determine that it is otherwise in the best interest of the United States to continue the contract with the Contractor and (3) modify the contract to include appropriate provisions to mitigate or avoid such conflicts in the contract.
- (e) If the Contractor refuses to provide the written statement called for in paragraph (a), or any additional information that the Contracting Officer may require, the Contracting Officer may terminate the Contract for convenience if he or she deems that termination is in the best interest of the Government.

H.10 POST AWARD MEETING

At its discretion, BEP may schedule and conduct a post award meeting with the Contractor after contract award. The objectives of this meeting would be to: introduce key participants and explain their roles, review deliverables, review the contract and tasks to ensure a common understanding of the requirements and objectives, as well as other matters of importance and relevance. The Contracting Officer will provide advance notice, agenda, and meeting days and time, which will be between 8AM-4PM Central. If BEP determines that a post award meeting is necessary, the day(s) and time(s) of any such meeting will be determined after contract award.

H.11 EVALUATION OF CONTRACTOR PERFORMANCE

- (a) Interim and final evaluations of Contractor performance shall be prepared for this contract in accordance with FAR 42.1503. The final performance evaluations shall be prepared at the time of completion of work.
- (b) The Contractor can elect to review the evaluation and submit additional information or a rebuttal statement. The

Contractor shall be permitted 60 calendar days to respond. Contractor response is voluntary. If the Contractor does not respond within 60 days, the Government shall presume that the Contractor has no comment. Any disagreement between the parties regarding an evaluation shall be referred to an individual at a level above the Contracting Officer, whose decision is final.

- (c) Copies of the evaluations, Contractor responses, and review comments, if any, shall be retained as part of the contract file, and may be used to support future award decisions.

Bureau of Engraving and Printing utilizes the Contractor Performance Assessment Reporting System (CPARS) and the Federal Awarded Performance and Integrity Information System (FAPIS) to record and maintain past performance information. The past performance systems host a suite of web-enabled applications that are used to document Contractor performance information that is required by Federal Regulations.

The CPARS module assesses performance on contracts for Systems, Services, Information Technology, and Operations Support, Architect-Engineer contracts, and performance on Construction contracts. CPARS reference material can be accessed at <https://cpars.cpars.gov/cpars/app/home.do>

Federal Awarded Performance and Integrity Information System (FAPIS) <http://www.fapis.gov/fapis/govt/datareports.jsp>

The registration process requires the Contractor to identify an individual that shall serve as a primary contact. This individual shall be authorized access to the evaluation for review and comment. In addition, the Contractor is encouraged to identify a secondary contact in the event the primary contact is unavailable to process the evaluation within the required 60-day time period. After the BEP Contract Specialist registers the contract in one of the systems listed above, the Contractor shall receive a system generated e-mail notifying him/her that the contract is registered. A system generated e-mail shall also provide the Contractor with a User ID if the person does not already have a system User ID.

Once a performance evaluation has been prepared and is ready for comment, the Contractor representative shall receive a system generated e-mail notification that the performance evaluation is electronically available for review and comment. The Contractor representative shall receive an automated e-mail whenever an assessment is completed and can subsequently retrieve the completed assessment from system. Contractors may access evaluations at one of the websites listed above for review and comment in CPARS.

H.12 SAFETY

State "Right to Know" laws and 29 CFR 1910.1200, Employees Hazard Communication Program, require manufacturers, importers and suppliers to label containers of toxic substances or hazardous chemicals with the chemical name and appropriate hazard warning and to provide Material Safety Data Sheets (MSDS) for these substances. Hazard Material Information not meeting the requirement shall not be accepted (off-loaded) by the BEP.

All machinery delivered under this contract shall be in accordance with the BEP's Safety, Health and Environmental requirements.

All on-site work performed by the Contractor and any subcontractor personnel, within the Western Currency Facility (WCF) shall be performed in accordance with the BEP's Safety requirements for on-site work.

H.13 GOVERNMENT FURNISHED MATERIALS (GFM)

The items listed in Technical Exhibit 3 will be supplied by the government for successful completion of the services of this contract. An initial inventory of Government furnished property shall be made jointly by the Contractor and the COR or his or her designate, on or before the contract start date. The operational or condition status shall be jointly determined.

All Government furnished materials, especially security items, shall be safeguarded, accounted for, and returned to the BEP in accordance with the requirements set forth. All Government furnished materials/security items shall be returned to the Government within ten (10) calendar days after written request by the COR.

All requests for GFM shall be submitted to the Bureau no later than thirty (30) calendar days prior to the materials being required for use under this contract. All requests for GFM shall be submitted to the Contracting Officer. No security items will be furnished until completion of a security audit and implementation of appropriate security provisions to ensure their safeguarding and accountability.

The Contractor shall exercise diligence in the care and safekeeping of the property mentioned herein. In the event of the damage to BEP property or equipment caused by the Contractor, the amount of compensation due to the BEP by the Contractor shall be the actual cost of repair, provided such amount does not exceed the economical repair value.

In the case of loss or damage caused by the Contractor beyond economical repair to equipment, the amount of the Contractor's liability shall be depreciated replacement value of the item to be determined by the Contracting Officer. Any failure of the Contractor to agree with such determination shall be treated as a dispute pursuant to the clause of this contract entitle, "Disputes."

The Contractor, any subcontractor, or their employees or agents shall not use Government property in any manner for any personal advantage, business gain, or other personal endeavor.

H.14 ACCIDENT PREVENTION

The Contractor shall comply with safety practices as may be deemed necessary by the Bureau Safety Manager to ensure the safety and health of Contractor and Bureau employees.

When the Contractor's performance requires the use of power-activated devices for welding, cutting, or burning using open-flame or electric-arc equipment, the Contractor shall provide no less than three (3) days advanced written notice to the COR requesting approval for the use of the power-activated devices. The COR shall obtain clearance of such use through the Bureau Safety Manager and provide written confirmation of approval or disposal to the Contractor.

The Contractor shall take any other precautions necessary to protect all persons against injury at the work site and shall be held responsible for all damages to persons and property that occur as a result of his fault or negligence in performing the contract work.

Any Contractor personnel that are deemed to be working in an unsafe manner or endangering their own or others health may be removed from the Bureau under order of the Contracting Officer. Any Contractor personnel removed for failure to maintain a safe and healthy work environment may not be allowed to return to the Bureau's property.

H.15 BUREAU WORKING RESTRICTIONS

When the project specifications permit the undertaking of contract work during Bureau working hours, such work must be performed without:

- Interfering with Government business;
- Unduly restricting traffic;
- Causing unsafe conditions for employees and visitors; and
- Adversely affecting the operation of Bureau equipment.

When, the Contracting Officer has determined that the Contractor's work is in violation of any of the four restrictions above, the Contractor shall be required to perform the work at such time and under such conditions as are in the best interest of the Bureau. In this connection, the directions of the Contracting Officer shall be binding and shall be executed by the Contractor at no additional cost to the Government.

H.16 PARKING

Limited Parking will be available for Contractor personnel at the Fort Worth, TX facility pending availability. All vehicles entering the facility are subject to inspection.

H.17 UTILITIES PROVIDED

For the purpose of this contract, utilities such as water, electricity, etc., shall be furnished by the Government at no cost to the Contractor for the preparation and performance of the BAT and installation of the equipment at the Bureau. All extensions, wiring, hoses, etc., required for connection to such utilities shall be furnished by the Contractor. The Contractor shall be required to participate in all BEP utility conservation programs. Long distance and FTS telephone services shall not be provided. If the Contractor anticipates any interruption to a utility service, the Contractor shall provide written notification to the COR ten (10) calendar days prior to the utility interruption.

H.18 BUREAU'S REGULATIONS

All persons working on Bureau premises under the terms of the Contract shall, while on the premises, be under the

administrative direction of the Contracting Officer and shall be subject to all general rules and regulations governing the Bureau and, in particular, all applicable security regulations. If the contract requires contract employees to work on Bureau premises for a period of time exceeding five calendar days, such employees shall be subject to an appropriate preliminary personnel security check to be conducted by the Bureau's Office of Security. Such employees shall be approved by the Contracting Officer prior to commencing work on the premises. Employees who do not meet established security criteria shall not be permitted to work on the premises.

H.19 PERMITS AND LICENSES – GENERAL

In the performance of work hereunder, the Contractor shall obtain and maintain in effect all necessary permits and licenses required by Federal, State, or local government, or subdivision thereof, or of any other duly constituted public authority. The Contractor shall comply with all laws and regulations applicable to work to be performed hereunder.

H.20 CONTRACTOR'S REPRESENTATIVE (CR) – (Contract Manager)

- (a) Upon contract award, the Contractor shall furnish to the Contracting Officer the name of the person he has designated and assigned exclusively to this contract as his agent or representative. The Contractor's Representative shall exercise overall management responsibility for the contract effort, receive technical direction, and handle problems arising under the contract, such as dismissals, disciplinary matters, etc. The CR is further responsible for coordinating matters of mutual concern with BEP representatives. In the event questions of responsibility arise, they shall be resolved by the Contracting Officer or his authorized representative.
- (b) The CR may not be diverted to other projects for fourteen (14) consecutive days or more without giving prior notification to the Contracting Officer or his representative. Such notification shall include a justification for the diversion, together with information on the proposed substitute in sufficient detail to permit analysis of any potential negative effects on contract performance. No substitution shall be made without the written consent of the Contracting Officer; provided however, that the Contracting Officer may grant such consent retroactively. Any such substitution of a permanent nature will be made a part of this contract through issuance of a modification.
- (c) When the CR is temporarily unavailable to manage the contract effort for a period longer than seventy-two (72) hours including absences due to vacation or illness, the Contractor shall provide to the COR written designation of an alternative representative, itemizing any limitations in the alternate's authority. The procedures of paragraph (b) above do not apply to such temporary designations unless they are expected to exceed the time period indicated in that paragraph.

H.21 COMPLIANCE WITH OCCUPATIONAL SAFETY AND HEALTH ACT OF 1980 GOVERNMENT OWNED FACILITIES/EQUIPMENT

Performance of work hereunder shall comply with the provisions of the Occupational Health and Safety Act of 1980, as amended (OSHA). If at any time during the performance of this contract, the Government - furnished facilities and/or equipment do not conform to OSHA standards, the Contractor must so notify the Contracting Officer, in writing, including a recommendation of the corrective action needed.

H.22 SECURITY REQUIREMENTS

BEP's facilities are considered to be secure government facilities; therefore, visitors to BEP may be given a visitor's security badge by security personnel and escorted by Government authorized personnel. Visitor security badges shall be worn above the waist, clearly visible, with picture or front side front forward at all times. Visitor security badges are to be returned upon leaving the site.

H.23 PERSONNEL SECURITY REQUIREMENTS

Personnel Security Clearance. Contractor and subcontractor employees involved in the repair, maintenance, installation, modification, inspection, or any other capacity requiring access to the BEP, access to the BEP computer systems or information contained therein, or other information pertinent to BEP personnel or security operations shall be subjected to suitability investigations, conducted by the BEP, before assignment to perform work under this contract.

All Contractor and subcontractor personnel requiring access to the BEP or working on the BEP contract shall be required to complete and submit, to the COR, all security forms furnished by the Personnel Security Division, commensurate with the sensitivity of their positions.

Upon receipt of the Performance Work Statement, the Office of Security shall provide an assessment of access level and the type of background investigation that shall be granted as well as the appropriate Position Sensitivity Levels which shall be assigned to all positions occupied by Contractor and Subcontractor employees. The position sensitivity of all positions occupied by Contractor and Subcontractor employees, which involve access to the Personal Computer function, including those involved in the inspection of the work are designated as Low Risk. Should other positions be identified, requiring a higher sensitivity, the position sensitivity shall be designated as High Risk. Access to the BEP and placement in these positions require that the BEP conduct a Full Field Background investigation, and that it be favorably completed. Required security packets are required to be submitted to the COR, within ten (10) working days, for use by Personnel Security Division, Office of Security. The Contractor shall submit packages of all personnel expected to be present at the Bureau for extended periods of time in excess of ten (10) working days no later than ninety (90) days prior to the delivery of the equipment to the Bureaus.

The BEP reserves the right to deny access to its facilities and/or security systems, following adjudicative guidelines set forth in Executive Order 10450 and applicable supplemental directives, to any individual about which an adverse suitability determination is made. Failure to submit the required security investigation packet or to truthfully answer all questions contained in security investigation packets shall constitute grounds for denial of access clearance. The selected Contractor shall not provide access to employees, or subcontract employees, until written access clearance is provided by the Personnel Security Branch, office of Security, BEP. Contractors and subcontractors are responsible for reporting all changes to the COR within five (5) days of the occurrence of the change concerning any of their employees, which may affect the suitability of their employees for access to the BEP or placement in any of these positions including additions, or deletions.

The COR shall maintain a current listing of access requirements and provide that information to the Personnel Security Division, BEP. The Personnel Security Division shall inform the COR of all access denials. The reason for the denial shall not be provided to the company contact in accordance with the Privacy Act of 1974. Denial of access to the BEP does not preclude employment of the individual concerned, by the Contractor, in any capacity not associated with the contract. Reinvestigation may be required throughout the life of the contract to adhere to Government security requirements.

H.24 SECURITY/ACCOUNTABILITY REQUIREMENTS:

The following requirements provide for essential physical security, control, and employee suitability measures to be considered for implementation by contractors. These measures apply to all "prime" and "sub" contractors who, as a result of a contract with the Bureau of Engraving and Printing (BEP), will receive, utilize, process or produce United States securities or instruments of reproduction for the United States Government. United States securities/instruments or reproduction, hereafter referred to as US securities, are defined as designated items or materials included in or used in the manufacture of US paper currency. U.S. securities are considered to be, and remain, the property of the U.S. government. The unauthorized possession and reproduction of any U.S. obligation, security, distinctive components, paper, and/or instruments of reproduction is strictly prohibited by Title 18, U.S.C.

Contractor responsibility regarding protection requirements for U.S. securities encompasses a broad scope of controls and protective measures. These include, but are not limited to comprehensive accountability and control, physical protection, loss prevention, and employee suitability (personnel clearance) programs. Accordingly, it will be the responsibility of the contractor to establish and maintain effective measures that will ensure the integrity of U.S. securities and/or instruments of reproduction throughout all phases of the contract.

A written plan detailing the measures that will be employed for the protection of U.S. securities shall be submitted and approved by the BEP's Office of Security prior to award of a contract and prior to the receipt of any U.S. securities. All security plans and revisions will be effective only after written approval has been obtained from the Chief, Office of Security, BEP. This approval is contingent upon verification of the existence of the protective security measures reflected in the security plan.

The BEP Office of Security reserves the right to conduct initial and unannounced periodic site inspections and surveys to determine the vulnerability of U.S. securities based upon the protective measures proposed by the security plan. No changes in the control, handling, location, and/or storage of U.S. securities shall occur until a revised security plan is approved in writing by the Chief, Office of Security, BEP.

In proposals requiring bid samples of U.S. securities or instruments of reproduction, solicitations requiring the use of U.S. securities or instruments of reproduction only for equipment factory inspection tests, or for specific short-term contracts, the security plan may provide means for temporary protection of the project to include labor intensive measures using appropriately cleared personnel. These temporary measures shall be addressed in the plan. However, prior to contract award, the contractor shall comply with the protection requirements as prescribed herein.

The BEP considers all areas where U.S. securities are processed, manufactured, or stored, including critical

components/features and/or controlled ingredients necessary to produce these items as critical or vulnerable areas. At a minimum, the following categories shall be considered in the development of a physical security program. Compensatory security measures may be proposed for the review/approval of the BEP Office of Security.

Building Exterior is defined as the exterior area of a building where U.S. securities are present and includes exterior doors, walls, and windows. Lighting must be sufficient to allow unrestricted viewing of the building exterior and be free of obstructions that could impair observation of the area by the naked eye.

Building exterior doors allowing access to areas where U.S. securities are present shall be constructed in accordance with Hollow Metal Door Manufacturers (HMM) Specification 863. Doors shall consist of a 14-gauge steel, flush mounted, self-closing and latching, hollow metal door set into a 12-gauge steel frame and shall be hung using nonremovable pins. All hardware shall be appropriate for the door installed. Roof hatches or other related openings shall be of similar construction. Doors and roof hatches should be protected by high-security type locks.

Exterior cargo doors affording access to areas where U.S. securities are present shall be constructed of at least 18-gauge steel slats with continuous end locks. The bottom bar of the door shall consist of two steel angles, at least one-quarter inch thick. Door guides shall be at least one-quarter inch thick. Cargo doors shall be configured with a high-security locking device at each lower corner and installed over concrete floors/surfaces. Authorized employees shall access buildings where U.S. securities are present only through control stations established at entrances and departure points. These control stations shall be controlled by an automated access control system (i.e., card access system).

All visitors/contractors should be identified prior to admittance at the perimeter of the facility. Visitors will be processed at a single designated center. Emergency egress doors shall be constructed to the same standards as prescribed for exterior doors.

Electronic intrusion detection systems should include balanced magnetic switches for all exterior doors permitting access to areas where U.S. securities are present. Cargo doors should be protected by a magnetic switch as well as dual-tech motion detectors on each side of the door. Emergency egress doors, roof doors and /or hatches shall be equipped with balanced magnetic switches and audible, local alarms.

In areas where U.S. securities are present all windows shall be alarmed to detect intrusions. Windows shall be protected by security bars, security screening, or window glazing to preclude window breakage in all areas where U.S. securities are present. In addition, windows that permit public view of U.S. securities will be opaque. Openings, i.e., heating vents, ducts, etc., will be protected by security bars and/or security screening so as to preclude the unauthorized removal of U.S. securities.

H.25 CONTRACTOR CLEARANCE THROUGH U.S. CUSTOMS AND BORDER PROTECTION

In the event the Contractor is to provide equipment of foreign manufacture, which must be imported into the United States, it shall be the responsibility of the Contractor to make entry through United States Customs and Border Protection and pay all duties and charges appurtenant thereto. Imports guidelines, questions and answers can be found at <http://www.cbp.gov/trade>.

H.26 PROTECTING SENSITIVE INFORMATION

(a) Applicability

This clause applies to the Contractor, its subcontractors, and contractor personnel (hereafter referred to collectively as "Contractor") and addresses specific BEP requirements in addition to those included in the Federal Acquisition Regulation (FAR), Privacy Act of 1974 (5 U.S.C. 552a - the Act), the Health Insurance Portability and Accountability Act of 1996 (HIPAA, Pub. L. 104-191, 110 Stat. 1936), the Sarbanes- Oxley Act of 2002 (SOX, Pub. L. 107-204, 116 Stat 745), and other laws, mandates, or executive orders pertaining to the development and operations of information systems and the protection of sensitive information and data. The following should not be construed to alter or diminish civil and/or criminal liabilities provided under various laws or mandates.

(b) Authorization to Use, Store, or Share Sensitive Information

- (1) Written approval by the Chief Information Officer (CIO), or delegate, is required prior to the use or storage of BEP Sensitive Information or sharing of BEP Sensitive Information by the Contractor with any subcontractor, person, or entity other than BEP.
- (2) Contractor must not remove Sensitive Information from approved location(s), electronic device(s), or other container(s), without prior approval of the CIO, or designate.

(c) Information Types

The term Information is synonymous with Data, regardless of format or medium. Personally Identifiable Information (PII) is a subset of Sensitive Information. Sensitive PII is a subset of PII, and therefore a subset of Sensitive Information. All requirements for Sensitive Information apply to PII and Sensitive PII. All requirements for PII apply to Sensitive PII.

- (1) Sensitive Information, Sensitive Information is any information, which if lost, compromised, or disclosed, could result in substantial harm, embarrassment, inconvenience, or unfairness to an individual, the Government, or the Government's interests. Sensitive Information is subject to stricter handling requirements because of the increased risk if the data are compromised. Some categories of Sensitive Information include Intellectual Property, Proprietary Manufacturing Information, Financial, Medical or Health, Legal, Strategic and Business, Human Resources, Personally Identifiable Information (PII), and Sensitive PII. These categories of information require appropriate protection as stand-alone information and may require additional protection in aggregate.
- (2) Personally Identifiable Information (PII) PII, as defined in OMB Memorandum M- 07-16, refers to information that can be used to distinguish or trace an individual's identity, either alone or when combined with other personal or identifying information that is linked or linkable to a specific individual. The definition of PII is not anchored to any single category of information or technology. Rather, it requires a case-by-case assessment of the specific risk that an individual can be identified. In performing this assessment, it is important to recognize that non-PII can become PII whenever additional information that is publicly available — in any medium and from any source — is or can be combined to identify an individual. As an example, PII includes a name and an address because it uniquely identifies an individual, but alone may not constitute Sensitive PII.
- (3) Sensitive PII refers to information that can be used to target, harm, or coerce an individual or entity, assume or alter an individual's or entity's identity, or alter the outcome of an individual's or entity's activities. Sensitive PII requires stricter handling because of the increased risk to an individual or associates if the information is compromised. Some categories of Sensitive PII include stand-alone information, such as Social Security numbers (SSN) or biometric identifiers. Other information such as a financial account, date of birth, maiden names, citizenship status, or medical information, in conjunction with the identity of an individual (directly or indirectly inferred), are also considered Sensitive PII. In addition, the context of the information may determine whether it is sensitive, such as a list of employees with poor performance ratings or a list of employees who have filed a grievance or compliant.

(d) Information Security Incidents

An Information Security Incident is an incident that includes the known, potential, or suspected exposure, loss of control, compromise, unauthorized disclosure, unauthorized acquisition, or unauthorized access of any Contractor or Government systems or information, including, but not limited to, Sensitive Information.

- (1) Information Security Incident Reporting Requirements
All Information Security Incidents must be reported in accordance with the requirements below; even if it is believed the Incident may be limited, small, or insignificant. BEP will determine when an Incident requires additional focus and attention.
 - a. Contractor employees must report all Information Security Incidents to the BEP Service Desk (202) 874-3010 immediately, but not later than 30 minutes, after becoming aware of the Incident, regardless of day or time.
 - b. When notifying the BEP Service Desk, copy the Contracting Officer Representative (COR) if possible, or if reporting by phone or COR's email is not immediately available; contact the COR immediately after reporting the incident to the Service Desk.
 - c. If you have questions regarding these procedures, contact the COR.
 - d. Do NOT include any Sensitive Information in the subject or body of any e-mail. To transmit Sensitive Information, use FIPS 140-2 compliant encryption methods to protect Sensitive Information in attachments to email. Passwords must not be communicated same mechanism used to send the attachment (e.g., do not send the password using email if you sent the attachment by email).
 - e. Contractor employees must also provide any supplementary information or reports related to a previously reported incident directly to the BEP Service Desk; with the following text in the subject line of the email: "Supplementary Information/Report related to previously reported incident ## [insert number]."
- (2) Information Security Incident Response Requirements
 - a. All determinations related to Information Security Incidents, including response activities,

notifications to affected individuals and/or Federal agencies, and related services (e.g., credit monitoring) will be made by authorized BEP officials at BEP's discretion.

- b. The Contractor and contractor employees must provide full access and cooperation for all activities determined by BEP to be required to ensure an effective Incident Response, including providing all requested images, log files, and event information to facilitate rapid resolution of Information Security Incidents.
- c. Incident Response activities determined to be required by BEP may include but are not limited to, inspections; investigations; forensic reviews; data analyses and processing; and final determinations of responsibility for the Incident and/or liability for any additional Response activities.
- d. BEP, at its sole discretion, may obtain the assistance of Federal agencies and/or third-party firms to aid in Incident Response activities.
- e. The Contractor must be responsible for all costs and related resource allocations required for all subsequent Incident Response activities determined to be required by BEP, whether incurred by BEP, agents under contract or on assignment to BEP, or by third party firms.

(e) Contractor Policy Document for Protection of Sensitive Information

The Contractor is responsible for the proper handling and protection of Sensitive Information to prevent unauthorized disclosure. The Contractor must produce policy documentation requiring approval by the CIO, or designate, regarding the protection and handling of Sensitive Information. The policy must address the following, at a minimum:

- (1) Proper marking, control, storage, and handling of Sensitive Information residing electronic media, including computers and removable media, and on paper documents.
- (2) Proper control and storage of mobile technology, portable data storage devices, and communication devices.
- (3) Proper use of FIPS 140-2 compliant encryption methods to protect Sensitive Information while at rest and in transit throughout BEP, contractor, and/or subcontractor networks, and on host and client platforms.
- (4) Proper use of FIPS 140-2 compliant encryption methods to protect Sensitive Information in email attachments, including policy that passwords must not be communicated in the same email as the attachment.
- (5) Information Security Incidents.
- (6) Contractor Access to BEP IT Systems.
- (7) IT Security and Privacy Awareness Training.
- (8) Specialized IT Security Awareness Training for Security Staff.
- (9) Information Systems Policy Compliance requirements and procedures.
- (10) Contract Performance Information.

H.27 INTERNET PROTOCOL VERSION 6 (IPv6)

In accordance with BEP Directives, this acquisition requires all functionality, capabilities and features to be supported and operational in both a dual-stack IPv4/IPv6 environment and an IPv6 only environment. Furthermore, all management, user interfaces, configuration options, reports and other administrative capabilities that support IPv4 functionality will support comparable IPv6 functionality. The Contractor is required to certify that its products have been tested to meet the requirements for both a dual-stack IPv4/IPv6 and IPv6 only environment. BEP reserves the right to require the Contractor's products to be tested within a BEP or third-party test facility to show compliance with this requirement. In accordance with FAR 11.002(g) and BEP Directives, this acquisition must comply with the NIST USGCB Profile and IPv6 Test Program. The Contractor must fund and provide resources necessary to support these testing requirements.

H.28 CONTRACTOR ACCESS TO BEP IT SYSTEMS

Immediately following contract award, the Contractor must provide to the COR an initial and complete list of personnel that require access to BEP information systems. The COR will coordinate with the contractor to complete the necessary paperwork to submit the personnel requested for their Background investigation through the HR Connect system. The contractor is responsible for coordinating the required documentation and background investigation information to the BEP Office of Security and shall allow a minimum of 90 days to complete the background investigation process. Contractors shall not be allowed to access BEP systems or data until the BEP Office of Security has successfully adjudicated the individual for the requested access.

The Contractor must send a staffing change report by the fifth day of each month after contract award to the Contracting Officer's Representative. The report must contain the listing of all staff members who separated or were hired under this contract

in the past 60 days. This form must be submitted even if no separations or hires have occurred during this period. Failure to submit a 'Contractor Staffing Change Report' each month may, at the Government's discretion, may result in the suspension of all accounts associated with this contract.

Each contractor employee is required to utilize a Personal Identity Verification (PIV) card to access BEP IT systems and Sensitive Information. Using shared accounts to access BEP IT systems and Sensitive Information is strictly prohibited. BEP will disable accounts, and access to BEP IT systems will be revoked and denied if contractor employees share accounts. Users of the systems will be subject to periodic auditing to ensure compliance with BEP policies.

BEP, at its discretion, may suspend or terminate the access to any systems and/or facilities when an Information Security Incident or other electronic access violation, use or misuse issue gives cause for such action. The suspension or termination may last until such time as BEP determines that the situation has been corrected or no longer exists. Upon request of BEP, the Contractor must immediately return all Government information, as well as any media type that houses or stores Government information, regardless of potential violations of other contracts the contractor may have in place, including, but not limited to data stored on recovery media, tape backups, images, etc.

The Contracting Officer's Representative (COR) and the BEP Service Desk must be notified at least 5 days prior to a contractor employee being removed from a contract. For unplanned terminations or removals of contractor employees from the contractor organization that occur with less than five-day notice, the COR and BEP Service Desk (202-874-3010) must be notified immediately. BEP PIV cards issued to contractor employees must be returned to the COR prior to departure.

All access to BEP IT systems will be accomplished using Personal Identity Verification (PIV) credentials, in accordance with NIST FIPS 201, Personal Identity Verification (PIV) of Federal Employees and Contractors.

H.29 COMPLIANCE WITH SECURITY IT POLICIES

Information systems and system services provided to BEP by the Contractor must comply with the current BEP IT, IT security, security and privacy policies and guidance.

Contractors are also required to comply with current Federal regulations and guidance found in the Federal Information Security Management Act (FISMA), Privacy Act of 1974, E- Government Act of 2002, Section 208, National Institute of Standards and Technology (NIST), Federal Information Processing Standards (FIPS) and the 800-Series Special Publications (SP), Office of Management and Budget (OMB) memorandum, and other relevant Federal laws and regulations that BEP must comply with.

H.30 IT SECURITY AND PRIVACY AWARENESS TRAINING

All Contractor personnel must complete BEP-provided mandatory security and privacy training prior to gaining access to BEP information systems and provide their completion certificate number to the COR or supervisor. The following training requirements are mandatory. Non-compliance may result in revocation of system access.

Security and privacy refresher training must be completed on an annual basis. BEP will provide notification and instructions on completing this training.

The BEP Rules of Behavior must be signed by each user prior to gaining access to BEP information systems and will be reviewed at least annually. BEP will provide access to the rules of behavior and provide notification when a review is required.

H.31 HSPD-12 COMPLIANCE

All Contractor employees must subject to screening prior to being authorized access to information systems; and rescreening according to change in position risk designation, new position with higher risk designation, or other requirements according to HSPD-12 requirements.

Contracting Officer's Representative (COR) approval is required prior to contractor personnel accessing BEP information and information systems. Contractors must sign access agreements before access is granted to BEP information and information systems.

Procurements for services and products involving facility or system access control must be in accordance with HSPD-12 policy and the Federal Acquisition Regulation.

All development for BEP systems must include requirements to enable the use PIV credentials, in accordance with NIST FIPS 201, Personal Identity Verification (PIV) of Federal Employees and Contractors, prior to being operational or updated.

H.32 SECURITY TECHNICAL IMPLEMENTATION

The Contractor must certify applications are fully functional and operate correctly as intended on systems using the Federal Desktop Core Configuration (FDCC)\United States Government Configuration Baseline (USGCB).

The standard installation, operation, maintenance, updates, and/or patching of software must not alter the configuration settings from the approved FDCC\USGCB configuration. The information technology should also use the Windows Installer Service for installation to the default "program files" directory and should be able to silently install and uninstall. Applications designed for normal end users must run in the standard user context without elevated system administration privileges.

The Contractor must apply due diligence at all times to ensure that the required level of security is always in place to protect BEP systems and information, such as using Defense Information Systems Agency Security Technical Implementation Guides (STIGs).

H.33 FIPS140 ENCRYPTION REQUIREMENTS

Cryptographic modules used to protect BEP information must be compliant with the current FIPS 140 version and validated by the Cryptographic Module Validation Program (CMVP). The Contractor must provide the validation certificate number to BEP for verification. Encryption is required to protect federal and contractor data when transmitting between systems.

H.34 MANDATORY REQUIREMENT FOR CONTRACTOR RETURN OF ALL BEP AND BEP-ACTIVITY-RELATED INFORMATION (INCLUDING BUT NOT LIMITED TO ALL RECORDS, FILES, AND METADATA IN ELECTRONIC OR HARDCOPY FORMAT)

Within thirty (30) days after the end of the contract performance period or after the contract is suspended or terminated by BEP or by the Contractor for any reason, the Contractor must return all original (and at least one duplicate copy of those information types specified by BEP) of all BEP- provided and BEP-Activity-Related Information, (including but not limited to all records, files, and metadata in electronic or hardcopy format); including but not limited to the following:

- (1) Provided by BEP; or
- (2) Obtained by the Contractor while conducting activities in accordance with the contract with BEP; or
- (3) Distributed for any purpose by the Contractor to any other related organization and/or any other component or separate business entity; or
- (4) Received from the Contractor by any other related organization and/or any other component or separate business entity.

Within forty-five (45) days after the end of the contract performance period or after the contract is suspended or terminated by BEP or the Contractor for any reason, the Contractor must provide BEP with an associated Certification of Verified Return of all original (and at least one duplicate copy of those information types specified by BEP) of all BEP and BEP-Activity-Related Information, (including but not limited to all records, files, and metadata in electronic or hardcopy format); including but not limited to the following:

- (1) Provided by BEP; or
- (2) Obtained by the Contractor while conducting activities in accordance with the contract with BEP; or
- (3) Distributed for any purpose by the Contractor to any other related organization and/or any other component or separate business entity; or
- (4) Received from the Contractor by any other related organization and/or any other component or separate business entity.

This certification must be provided by a third-party firm approved by BEP in advance. All costs and resource allocations required for this third-party service must be the sole responsibility of the Contractor.

H.35 MANDATORY REQUIREMENT FOR VERIFIED SECURE DESTRUCTION OF ALL BEP AND BEP-ACTIVITY-RELATED INFORMATION (INCLUDING BUT NOT LIMITED TO ALL RECORDS, FILES, AND METADATA IN ELECTRONIC OR HARDCOPY FORMAT)

Within sixty (60) days after the end of the contract performance period or after the contract is suspended or terminated by BEP or by the Contractor for any reason, BUT ONLY after BEP has accepted and approved the Contractor's compliance with the Certified Verification of Return of Information Requirement, the Contractor must execute secure destruction (either by the contractor or third party firm approved in advance by BEP) of all existing active and archived originals and/or copies of all BEP and BEP-activity-related files and information, (including but not limited to all records, files, and metadata in electronic or hardcopy format); by procedures approved by BEP in advance and in accordance with applicable BEP IT Security Policy Requirements; including but not limited to the following:

- (1) Provided by BEP; or

- (2) Obtained by the Contractor while conducting activities in accordance with the contract with BEP; or
- (3) Distributed for any purpose by the Contractor to any other related organization and/or any other component or separate business entity; or
- (4) Received from the Contractor by any other related organization and/or any other component or separate business entity.

Within seventy-five (75) days after the end of the contract performance period or after the contract is suspended or terminated by BEP or the Contractor for any reason, BUT ONLY after BEP has accepted and approved the Contractor's compliance with the Certified Verification of Return of Information Requirement, the Contractor must provide BEP with Certification of Secure Destruction of all existing active and archived originals and/or copies of all BEP and BEP-activity-related files and information, (including but not limited to all records, files, and metadata in electronic or hardcopy format); by procedures approved by BEP in advance and in accordance with applicable BEP IT Security Policy Requirements; including but not limited to the following:

- (1) Provided by BEP; or
- (2) Obtained by the Contractor while conducting activities in accordance with the contract with BEP; or
- (3) Distributed for any purpose by the Contractor to any other related organization and/or any other component or separate business entity; or
- (4) Received from the Contractor by any other related organization and/or any other component or separate business entity.

This certification must be provided by a third-party firm approved by BEP in advance. All costs and resource allocations required for this third-party service must be the sole responsibility of the contractor.

H.36 MANDATORY REQUIREMENT FOR CONTRACTOR RETURN OF ALL BEP- OWNED AND LEASED COMPUTING AND INFORMATION STORAGE EQUIPMENT

Within sixty (60) days after the end of the contract performance period or after the contract is suspended or terminated by BEP or by the Contractor for any reason; or within a time period approved by BEP, the Contractor must return all BEP-owned and leased computing and information storage equipment.

Within seventy-five (75) days after the end of the contract performance period or after the contract is suspended or terminated by BEP or the Contractor for any reason, the Contractor must provide BEP with Certification of Verified Return of all BEP-Owned and Leased Computing and Information Storage Equipment. This certification must be provided by a third-party firm approved by BEP in advance. All costs and resource allocations required for this third-party service must be the sole responsibility of the Contractor.

H.37 QUALITY ASSURANCE PLAN

The Government shall evaluate the contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan. This plan is a government only document primarily focused on what the Government must do to assure that the contractor has performed in accordance with the requirements of the contract.

Additionally, if any of the work required under the contract is subcontracted, the Contractor shall require that the Subcontractor submit and adhere to a Quality Assurance Plan. The Quality Assurance plan submitted by Subcontractor to the Contractor shall be accepted by the CO for this contract which will be incorporated and made part of this contract as an Attachment (prior to contract award).

H.38 SPARE PARTS

The Bureau intends to procure parts, on a competitive basis, as needed during the life of the contract. To assist the Bureau in procuring parts, a complete list shall be provided for all parts and components of the press and subsystems are required in the Performance Work Statement. The name of the subsystem along with its corresponding position number within each group shall be listed. All components listed shall be cross-referenced and supplied with the technical drawings, manufacturers' literature, and any other purchased part documentation. The listing shall be organized by the type of the part, i.e., bearings, relays, etc.

[END OF SECTION]

9. Section I - Contract Clauses

Clauses incorporated by reference

Article Number	Reference Text
52.202-1	52.202-1 Definitions (JUN 2020)
52.203-3	52.203-3 Gratuities (APR 1984)
52.203-5	52.203-5 Covenant Against Contingent Fees (MAY 2014)
52.203-6	52.203-6 Restrictions on Subcontractor Sales to the Government (JUN 2020), <i>Alternate I</i> (NOV 2021)
52.203-7	52.203-7 Anti-Kickback Procedures (JUN 2020)
52.203-8	52.203-8 Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity (MAY 2014)
52.203-10	52.203-10 Price or Fee Adjustment for Illegal or Improper Activity (MAY 2014)
52.203-12	52.203-12 Limitation on Payments to Influence Certain Federal Transactions (JUN 2020)
52.203-17	52.203-17 Contractor Employee Whistleblower Rights and Requirement to Inform Employees of Whistleblower Rights (NOV 2023)
52.204-4	52.204-4 Printed or Copied Double-Sided on Recycled Paper (MAY 2011)
52.204-13	52.204-13 System for Award Management Maintenance (OCT 2018)
52.204-19	52.204-19 Incorporation by Reference of Representations and Certifications (DEC 2014)
52.210-1	52.210-1 Market Research (NOV 2021)
52.215-14	52.215-14 Integrity of Unit Prices (NOV 2021)
52.222-50	52.222-50 Combating Trafficking in Persons (NOV 2021)
52.223-18	52.223-18 Encouraging Contractor Policy to Ban Text Messaging While Driving (JUN 2020)
52.224-1	52.224-1 Privacy Act Notification (APR 1984)
52.224-2	52.224-2 Privacy Act (APR 1984)
52.224-3	52.224-3 Privacy Training (JAN 2017)
52.225-13	52.225-13 Restrictions on Certain Foreign Purchases (FEB 2021)
52.232-1	52.232-1 Payments (APR 1984)
52.232-8	52.232-8 Discounts for Prompt Payment (FEB 2002)
52.232-11	52.232-11 Extras (APR 1984)
52.232-17	52.232-17 Interest (MAY 2014)
52.232-39	52.232-39 Unenforceability of Unauthorized Obligations (JUN 2013)
52.233-3	52.233-3 Protest after Award (AUG 1996)
52.233-4	52.233-4 Applicable Law for Breach of Contract Claim (OCT 2004)

52.237-1	52.237-1 Site Visit (APR 1984)	Page 59 of
52.242-13	52.242-13 Bankruptcy (JUL 1995)	
52.243-1	52.243-1 Changes – Fixed Price (AUG 1987)	
52.244-6	52.244-6 Subcontracts for Commercial Items (DEC 2023)	
52.245-1	52.245-1 Government Property (SEPT 2021)	
52.246-25	52.246-25 Limitation of Liability – Services (FEB 1997)	
52.249-2	52.249-2 Termination for Convenience of Government (Fixed-Price (APR 2012)	
52.249-8	52.249-8 Default (Fixed-Price Supply and Service) (APR 1984)	

Clauses incorporated by full text

52.204-1 52.204-1 Approval of Contract (DEC 1989)

This contract is subject to the written approval of the BEP Contracting Officer and shall not be binding until so approved.

(End of Clause)

52.212.4 52.212-4 Contract Terms and Conditions – Commercial Products and Commercial Services (NOV 2023)

(a) *Inspection/Acceptance.* The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or performance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post-acceptance rights-

- (1) Within a reasonable time after the defect was discovered or should have been discovered; and
- (2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(b) *Assignment.* The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act ([31 U.S.C. 3727](#)). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(c) *Changes.* Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(d) *Disputes.* This contract is subject to [41 U.S.C. chapter 71](#), Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause at Federal Acquisition Regulation (FAR) [52.233-1](#), Disputes, which is incorporated herein by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(e) *Definitions.* The clause at FAR [52.202-1](#), Definitions, is incorporated herein by reference.

(f) *Excusable delays.* The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence such as, acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. The Contractor shall notify the Contracting Officer in writing as soon as it is reasonably possible after the commencement of any excusable delay, setting forth the full particulars in connection therewith, shall remedy such occurrence with all reasonable dispatch, and shall promptly give written notice to the Contracting Officer of the cessation of such occurrence.

(g) *Invoice.* (1) The Contractor shall submit an original invoice and three copies (or electronic invoice, if authorized) to the address designated in the contract to receive invoices. An invoice must include-

- (i) Name and address of the Contractor;
- (ii) Invoice date and number;
- (iii) Contract number, line item number and, if applicable, the order number;

- (iv) Description, quantity, unit of measure, unit price and extended price of the items delivered
 - (v) Shipping number and date of shipment, including the bill of lading number and weight of shipment if shipped on Government bill of lading;
 - (vi) Terms of any discount for prompt payment offered;
 - (vii) Name and address of official to whom payment is to be sent;
 - (viii) Name, title, and phone number of person to notify in event of defective invoice; and
 - (ix) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.
 - (x) Electronic funds transfer (EFT) banking information.
 - (A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.
 - (B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision, contract clause (e.g., [52.232-33](#), Payment by Electronic Funds Transfer-System for Award Management, or [52.232-34](#), Payment by Electronic Funds Transfer-Other Than System for Award Management), or applicable agency procedures.
 - (C) EFT banking information is not required if the Government waived the requirement to pay by EFT.
- (2) Invoices will be handled in accordance with the Prompt Payment Act ([31 U.S.C.3903](#)) and Office of Management and Budget (OMB) prompt payment regulations at 5 CFR Part 1315.

(h) *Patent indemnity.* The Contractor shall indemnify the Government and its officers, employees and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) *Payment.- (1) Items accepted.* Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act ([31 U.S.C.3903](#)) and prompt payment regulations at 5 CFR Part 1315.

(3) *Electronic Funds Transfer (EFT).* If the Government makes payment by EFT, see [52.212-5\(b\)](#) for the appropriate EFT clause.

(4) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date which appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(5) *Overpayments.* If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6) *Interest.*

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in [41 U.S.C. 7109](#), which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions.* The Contracting Officer will issue a final decision as required by [33.211](#) if-

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see [32.607-2](#)).

- (iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.
 - (v) Amounts shall be due at the earliest of the following dates:
 - (A) The date fixed under this contract.
 - (B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.
 - (vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-
 - (A) The date on which the designated office receives payment from the Contractor;
 - (B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or
 - (D) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.
 - (vii) The interest charge made under this clause may be reduced under the procedures prescribed in FAR [32.608-2](#) in effect on the date of this contract.
- (j) *Risk of loss.* Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon:
- (1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or
 - (2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.
- (k) *Taxes.* The contract price includes all applicable Federal, State, and local taxes and duties.
- (l) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work hereunder and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.
- (m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.
- (n) *Title.* Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.
- (o) *Warranty.* The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.
- (p) *Limitation of liability.* Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.
- (q) *Other compliances.* The Contractor shall comply with all applicable Federal, State and local laws, executive orders, rules and regulations applicable to its performance under this contract.
- (r) *Compliance with laws unique to Government contracts.* The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 18 U.S.C. 431 relating to officials not to benefit; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Fly American; and 41 U.S.C. chapter 21 relating to procurement integrity.
- (s) *Order of precedence.* Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:
- (1) The schedule of supplies/services.
 - (2) The Assignments, Disputes, Payments, Invoice, Other Compliances, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;
 - (3) The clause at [52.212-5](#).
 - (4) Addenda to this solicitation or contract, including any license agreements for computer software.
 - (5) Solicitation provisions if this is a solicitation.
 - (6) Other paragraphs of this clause.
 - (7) The [Standard Form 1449](#).

- (8) Other documents, exhibits, and attachments.
- (9) The specification.

(t) [Reserved]

(u) Unauthorized Obligations. (1) Except as stated in paragraph (u)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

- (i) Any such clause is unenforceable against the Government.
- (ii) Neither the Government nor any Government authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.
- (iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (u)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(v) Incorporation by reference. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

52.212-5

52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services (DEC 2023)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

- (1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (Nov 2021) (Section 1634 of Pub. L. 115- 91).
- (3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).
- (5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).
- (6) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).
- (7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

- ☒ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with *Alternate I* (Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).
- ☒ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).
- ☐ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)
- ☒ (4) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR 3.900(a).
- ☒ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).
- ☐ (6) [Reserved].
- ☐ (7) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).
- ☐ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).
- ☒ (9) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).
- ☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) (Pub. L. 115–390, title II).
- ☐ (11) (i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) (Pub. L. 115–390, title II).
- ☐ (ii) Alternate I (Dec 2023) of 52.204–30.
- ☒ (12) 52.209-6, Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment. (Nov 2021) (31 U.S.C. 6101 note).
- ☐ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).

- ___(14) [Reserved]
- ___(15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a).
- ___(16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).
- ___(17) [Reserved]
- X (18) (i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).
- ___(ii) Alternate I (Mar 2020) of 52.219-6.
- ___(19) (i) 52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).
- ___(ii) Alternate I (Mar 2020) of 52.219-7.
- ___(20) 52.219-8, Utilization of Small Business Concerns (Oct 2022) (15 U.S.C. 637(d)(2) and (3)).
- ___(21) (i) 52.219-9, Small Business Subcontracting Plan (Oct 2022) (15 U.S.C. 637(d)(4)).
- ___(ii) Alternate I (Nov 2016) of 52.219-9.
- ___(iii) Alternate II (Nov 2016) of 52.219-9.
- ___(iv) Alternate III (Jun 2020) of 52.219-9.
- ___(v) Alternate IV (Sep 2021) of 52.219-9.
- ___(22) (i) 52.219-13, Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).
- ___(ii) Alternate I (Mar 2020) of 52.219-13.
- ___(23) 52.219-14, Limitations on Subcontracting (Oct 2022) (15 U.S.C. 637s).
- ___(24) 52.219-16, Liquidated Damages—Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).
- ___(25) 52.219-27, Notice of Service-Disabled Veteran-Owned Small Business Set-Aside (Oct 2022) (15 U.S.C. 657f).
- ___(26) (i) 52.219-28, Post Award Small Business Program Rerepresentation (Mar 2023) (15 U.S.C. 632(a)(2)).
- ___(ii) Alternate I (Mar 2020) of 52.219-28.
- ___(27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).
- ___(28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).
- ___(29) 52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C. 644(r)).
- ___(30) 52.219-33, Nonmanufacturer Rule (Sep 2021) (15 U.S.C. 637(a)(17)). X (28) 52.222-3, Convict Labor (Jun 2003) (E.O.11755).
- ___(31) 52.222-3, Convict Labor (Jun 2003) (E.O.11755).
- X (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (Dec 2022) (E.O.13126).
- X (33) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).
- X (34) (i) 52.222-26, Equal Opportunity (Sep 2016) (E.O.11246).
- ___(ii) Alternate I (Feb 1999) of 52.222-26.
- X (35) (i) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).
- ___(ii) Alternate I (Jul 2014) of 52.222-35.
- X (36) (i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).
- ___(ii) Alternate I (Jul 2014) of 52.222-36.
- X (37) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).
- X (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).
- ___(39) (i) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).
- ___(ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- ___(40) 52.222-54, Employment Eligibility Verification (May 2022) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)
- ___(41) (i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA–Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ___(ii) Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ___(42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (Jun 2016) (E.O. 13693).
- ___(43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (Jun 2016) (E.O. 13693).
- ___(44) (i) 52.223-13, Acquisition of EPEAT®-Registered Imaging Equipment (Jun 2014) (E.O.s 13423 and 13514).
- ___(ii) Alternate I (Oct 2015) of 52.223-13.
- ___(45) (i) 52.223-14, Acquisition of EPEAT®-Registered Televisions (Jun 2014) (E.O.s 13423 and 13514).
- ___(ii) Alternate I (Jun 2014) of 52.223-14.
- ___(46) 52.223-15, Energy Efficiency in Energy- Consuming Products (May 2020) (42 U.S.C. 8259b).
- ___(47) (i) 52.223-16, Acquisition of EPEAT®-Registered Personal Computer Products (Oct 2015) (E.O.s 13423 and 13514).
- ___(ii) Alternate I (Jun 2014) of 52.223-16.
- X (48) 52.223-18, Encouraging Contractor Policies to Ban Text Messaging While Driving (Jun 2020) (E.O. 13513).
- ___(49) 52.223-20, Aerosols (Jun 2016) (E.O. 13693).
- ___(50) 52.223-21, Foams (Jun 2016) (E.O. 13693).
- ___(51) (i) 52.224-3 Privacy Training (Jan 2017) (5 U.S.C. 552 a).
- ___(ii) Alternate I (Jan 2017) of 52.224-3.
- ___(52) (i) 52.225-1, Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).

- ____(ii) Alternate I (Oct 2022) of 52.225-1
- ____(53) (i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (Dec 2022) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).
- ____(ii) Alternate I [Reserved].
- ____(iii) Alternate II (Dec 2022) of 52.225-3.
- ____(iv) Alternate III (Jan 2021) of 52.225-3.
- ____(v) Alternate IV (Oct 2022) of 52.225-3.
- X (54) 52.225-5, Trade Agreements (Nov 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note). X (52) 52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ____(55) 52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ____(56) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- ____(57) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).
- ____(58) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov2007) (42 U.S.C. 5150).
- ____(59) 52.229-12, Tax on Certain Foreign Procurements (Feb 2021).
- ____(60) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ____(61) 52.232-30, Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- X (62) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (Oct2018) (31 U.S.C. 3332).
- ____(63) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).
- ____(64) 52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).
- ____(65) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).
- ____(66) 52.242-5, Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).
- ____(67) (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).
- ____(ii) Alternate I (Apr 2003) of 52.247-64.
- ____(iii) Alternate II (Nov 2021) of 52.247-64.
- (c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:
- X (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).
- X (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- X (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- X (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- ____(5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- ____(6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).
- X (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).
- ____(8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).
- ____(9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).
- (d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.
- (1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.
- (2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.
- (3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.
- (e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial

services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

- (i) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).
- (ii) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712)
- (iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (Nov 2021) (Section 1634 of Pub. L. 115- 91).
- (v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (vi) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).
- (vii) 52.204-30, Federal Acquisition Supply Chain Security Act Orders – Prohibition. (Dec 2023) (Pub. L. 115-390, title II)
- (viii) 52.219-8, Utilization of Small Business Concerns (Sept 2023) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.
- (ix) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).
- (x) 52.222-26, Equal Opportunity (Sep 2015) (E.O.11246).
- (xi) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).
- (xii) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).
- (xiii) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).
- (xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222- 40.
- (xv) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).
- (xvi) (A) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O 13627).
(B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- (xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- (xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).
- (xix) 52.222-54, Employment Eligibility Verification (May 2022) (E.O. 12989).
- (xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).
- (xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).
- (xxii) (A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).
(B) Alternate I (Jan 2017) of 52.224-3.
- (xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- (xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.
- (xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c)

of 52.232-40.

- (xxvi) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.216-24 52.216-24 Limitation of Government Liability (APR 1984)

(a) In performing this contract, the Contractor is not authorized to make expenditures or incur obligations exceeding the total not to exceed ceiling amount of the contract.

(b) The maximum amount for which the Government shall be liable if this contract is terminated is zero dollars.

(End of clause)

52.216-25 52.216-25 Contract Definitization (OCT 2010)

(a) A firm fixed price definitive contract is contemplated. The Contractor agrees to begin promptly negotiating with the Contracting Officer the terms of a definitive contract that will include (1) all clauses required by the Federal Acquisition Regulation (FAR) on the date of execution of the letter contract, (2) all clauses required by law on the date of execution of the definitive contract, and (3) any other mutually agreeable clauses, terms, and conditions. The Contractor agrees to submit a proposal, including data other than certified cost or pricing data, and certified cost or pricing data, in accordance with FAR 15.408, Table 15-2, supporting its proposal.

- (b) The schedule for definitizing this contract is: date of contract award.
- (c) If agreement on a definitive contract to supersede this letter contract is not reached by the target date in paragraph (b) of this section, or within any extension of it granted by the Contracting Officer, the Contracting Officer may, with the approval of the head of the contracting activity, determine a reasonable price or fee in accordance with Subpart 15.4 and Part 31 of the FAR, subject to Contractor appeal as provided in the Disputes clause. In any event, the Contractor shall proceed with completion of the contract, subject only to the Limitation of Government Liability clause.
- (1) After the Contracting Officer's determination of price or fee, the contract shall be governed by-
- (i) All clauses required by the FAR on the date of execution of this letter contract for either fixed-price or cost-reimbursement contracts, as determined by the Contracting Officer under this paragraph (c);
 - (ii) All clauses required by law as of the date of the Contracting Officer's determination; and
 - (iii) Any other clauses, terms, and conditions mutually agreed upon.
- (2) To the extent consistent with paragraph (c)(1) of this section, all clauses, terms, and conditions included in this letter contract shall continue in effect, except those that by their nature apply only to a letter contract.

(End of clause)

52.217-7 Option for Increased Quantity – Separately Priced Line Item (MAR 1989)

The Government may require the delivery of the numbered line item, identified in the Schedule as an option item, in the quantity and at the price stated in the Schedule. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days. Delivery of added items shall continue at the same rate that like items are called for under the contract, unless the parties otherwise agree.

(End of clause)

52.217-8 Option to Extend Services (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 calendar days.

(End of clause)

52.217-9 Option to Extend the Term of the Contract (MAR 2000)

- (a) The Government may extend the term of this contract by written notice to the Contractor within 30 calendar days of the current Period of Performance; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.
- (b) If the Government exercises this option, the extended contract shall be considered to include this option clause.
- (c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five (5) years six (6) months.

(End of clause)

52.237-3 Continuity of Services (JAN 1991)

- (a) The Contractor recognizes that the services under this contract are vital to the Government and must be continued without interruption and that, upon contract expiration, a successor, either the Government or another contractor, may continue them. The Contractor agrees to-
 - (1) Furnish phase-in training; and
 - (2) Exercise its best efforts and cooperation to affect an orderly and efficient transition to a successor.
- (b) The Contractor shall, upon the Contracting Officer's written notice, (1) furnish phase-in, phase-out services for up to 90 days after this contract expires and (2) negotiate in good faith a plan with a successor to determine the nature and extent of phase-in, phase-out services required. The plan shall specify a training program and a date for transferring responsibilities for each division of work described in the plan and shall be subject to the Contracting Officer's approval. The Contractor shall provide sufficient experienced personnel during the phase-in, phase-out period to ensure that the services called for by this contract are maintained at the required level of proficiency.
- (c) The Contractor shall allow as many personnel as practicable to remain on the job to help the successor maintain the continuity and consistency of the services required by this contract. The Contractor also shall disclose necessary personnel records and allow the successor to conduct on-site interviews with these employees. If selected employees are agreeable to the change, the Contractor shall release them at a mutually agreeable date and negotiate transfer of their earned fringe benefits to the successor.
- (d) The Contractor shall be reimbursed for all reasonable phase-in, phase-out costs (i.e., costs incurred within the agreed period after contract expiration that result from phase-in, phase-out operations) and a fee (profit) not to exceed a pro rata portion of the fee (profit) under this contract.

(End of clause)

52.245-1 52.245-1 Government Property (SEPT 2021)

(a) Definitions. As used in this clause-

Cannibalize means to remove parts from Government property for use or for installation on other Government property.

Contractor-acquired property means property acquired, fabricated, or otherwise provided by the Contractor for performing a contract, and to which the Government has title.

Contractor inventory means-

(1) Any property acquired by and in the possession of a Contractor or subcontractor under a contract for which title is vested in the Government and which exceeds the amounts needed to complete full performance under the entire contract;

(2) Any property that the Government is obligated or has the option to take over under any type of contract, e.g., as a result either of any changes in the specifications or plans thereunder or of the termination of the contract (or subcontract thereunder), before completion of the work, for the convenience or at the option of the Government; and

(3) Government-furnished property that exceeds the amounts needed to complete full performance under the entire contract.

Contractor's managerial personnel means the Contractor's directors, officers, managers, superintendents, or equivalent representatives who have supervision or direction of-

(1) All or substantially all of the Contractor's business;

(2) All or substantially all of the Contractor's operation at any one plant or separate location; or

(3) A separate and complete major industrial operation.

Demilitarization means rendering a product unusable for, and not restorable to, the purpose for which it was designed or is customarily used.

Discrepancies incident to shipment means any differences (e.g., count or condition) between the items documented to have been shipped and items actually received.

Equipment means a tangible item that is functionally complete for its intended purpose, durable, nonexpendable, and needed for the performance of a contract. Equipment is not intended for sale, and does not ordinarily lose its identity or become a component part of another article when put into use. Equipment does not include material, real property, special test equipment or special tooling.

Government-furnished property means property in the possession of, or directly acquired by, the Government and subsequently furnished to the Contractor for performance of a contract. Government-furnished property includes, but is not limited to, spares and property furnished for repair, maintenance, overhaul, or modification. Government-furnished property also includes contractor-acquired property if the contractor-acquired property is a deliverable under a cost contract when accepted by the Government for continued use under the contract.

Government property means all property owned or leased by the Government. Government property includes both Government-furnished and Contractor-acquired property. Government property includes material, equipment, special tooling, special test equipment, and real property. Government property does not include intellectual property and software.

Loss of Government property means unintended, unforeseen or accidental loss, damage or destruction to Government property that reduces the Government's expected economic benefits of the property. Loss of Government property does not include purposeful destructive testing, obsolescence, normal wear and tear or manufacturing defects. Loss of Government property includes, but is not limited to-

(1) Items that cannot be found after a reasonable search;

(2) Theft;

(3) Damage resulting in unexpected harm to property requiring repair to restore the item to usable condition; or

(4) Destruction resulting from incidents that render the item useless for its intended purpose or beyond economical repair.

Material means property that may be consumed or expended during the performance of a contract, component parts of a higher assembly, or items that lose their individual identity through incorporation into an end item. Material does not include equipment, special tooling, special test equipment or real property.

Nonseverable means property that cannot be removed after construction or installation without substantial loss of value or damage to the installed property or to the premises where installed.

Precious metals means silver, gold, platinum, palladium, iridium, osmium, rhodium, and ruthenium.

Production scrap means unusable material resulting from production, engineering, operations and maintenance, repair, and research and development contract activities. Production scrap may have value when re-melted or reprocessed, e.g., textile and metal clippings, borings, and faulty castings and forgings.

Property means all tangible property, both real and personal.

Property Administrator means an authorized representative of the Contracting Officer appointed in accordance with agency procedures, responsible for administering the contract requirements and obligations relating to Government property in the possession of a Contractor.

Property records means the records created and maintained by the contractor in support of its stewardship responsibilities for the management of Government property.

Provide means to furnish, as in Government-furnished property, or to acquire, as in contractor-acquired property.

Real property See Federal Management Regulation 102-71.20 (41 CFR 102-71.20).

Sensitive property means property potentially dangerous to the public safety or security if stolen, lost, or misplaced, or that shall be subject to exceptional physical security, protection, control, and accountability. Examples include weapons, ammunition, explosives, controlled substances, radioactive materials, hazardous materials or wastes, or precious metals.

Unit acquisition cost means-

(1) For Government-furnished property, the dollar value assigned by the Government and identified in the contract; and

(2) For contractor-acquired property, the cost derived from the Contractor's records that reflect consistently applied generally accepted accounting principles.

- (b) *Property management.* (1) The Contractor shall have a system of internal controls to manage (control, use, preserve, protect, repair, and maintain) Government property in its possession. The system shall be adequate to satisfy the requirements of this clause. In doing so, the Contractor shall initiate and maintain the processes, systems, procedures, records, and methodologies necessary for effective and efficient control of Government property. The Contractor shall disclose any significant changes to its property management system to the Property Administrator prior to implementation of the changes. The Contractor may employ customary commercial practices, voluntary consensus standards, or industry-leading practices and standards that provide effective and efficient Government property management that are necessary and appropriate for the performance of this contract (except where inconsistent with law or regulation).
- (2) The Contractor's responsibility extends from the initial acquisition and receipt of property, through stewardship, custody, and use until formally relieved of responsibility by authorized means, including delivery, consumption, expending, sale (as surplus property), or other disposition, or via a completed investigation, evaluation, and final determination for lost property. This requirement applies to all Government property under the Contractor's accountability, stewardship, possession or control, including its vendors or subcontractors (see paragraph (f)(1)(v) of this clause).
- (3) The Contractor shall include the requirements of this clause in all subcontracts under which Government property is acquired or furnished for subcontract performance.
- (4) The Contractor shall establish and maintain procedures necessary to assess its property management system effectiveness and shall perform periodic internal reviews, surveillances, self assessments, or audits. Significant findings or results of such reviews and audits pertaining to Government property shall be made available to the Property Administrator.
- (c) *Use of Government property.* (1) The Contractor shall use Government property, either furnished or acquired under this contract, only for performing this contract, unless otherwise provided for in this contract or approved by the Contracting Officer.
- (2) Modifications or alterations of Government property are prohibited, unless they are-
- (i) Reasonable and necessary due to the scope of work under this contract or its terms and conditions;
 - (ii) Required for normal maintenance; or
 - (iii) Otherwise authorized by the Contracting Officer.

(3) The Contractor shall not cannibalize Government property unless otherwise provided for in this contract or approved by the Contracting Officer.

(d) *Government-furnished property.* (1) The Government shall deliver to the Contractor the Government-furnished property described in this contract. The Government shall furnish related data and information needed for the intended use of the property. The warranties of suitability of use and timely delivery of Government-furnished property do not apply to property acquired or fabricated by the Contractor as contractor-acquired property and subsequently transferred to another contract with this Contractor.

(2) The delivery and/or performance dates specified in this contract are based upon the expectation that the Government-furnished property will be suitable for contract performance and will be delivered to the Contractor by the dates stated in the contract.

(i) If the property is not delivered to the Contractor by the dates stated in the contract, the Contracting Officer shall, upon the Contractor's timely written request, consider an equitable adjustment to the contract.

(ii) In the event property is received by the Contractor, or for Government-furnished property after receipt and installation, in a condition not suitable for its intended use, the Contracting Officer shall, upon the Contractor's timely written request, advise the Contractor on a course of action to remedy the problem. Such action may include repairing, replacing, modifying, returning, or otherwise disposing of the property at the Government's expense. Upon completion of the required action(s), the Contracting Officer shall consider an equitable adjustment to the contract (see also paragraph (f)(1)(ii)(A) of this clause).

(iii) The Government may, at its option, furnish property in an "as-is" condition. The Contractor will be given the opportunity to inspect such property prior to the property being provided. In such cases, the Government makes no warranty with respect to the serviceability and/or suitability of the property for contract performance. Any repairs, replacement, and/or refurbishment shall be at the Contractor's expense.

(3) (i) The Contracting Officer may by written notice, at any time-

(A) Increase or decrease the amount of Government-furnished property under this contract;

(B) Substitute other Government-furnished property for the property previously furnished, to be furnished, or to be acquired by the Contractor for the Government under this contract; or

(C) Withdraw authority to use property.

(ii) Upon completion of any action(s) under paragraph (d)(3)(i) of this clause, and the Contractor's timely written request, the Contracting Officer shall consider an equitable adjustment to the contract.

(e) *Title to Government property.* (1) All Government-furnished property and all property acquired by the Contractor, title to which vests in the Government under this paragraph (collectively referred to as "Government property"), is subject to the provisions of this clause. The Government shall retain title to all Government-furnished property. Title to Government property shall not be affected by its incorporation into or attachment to any property not owned by the Government, nor shall Government property become a fixture or lose its identity as personal property by being attached to any real property.

(2) Title vests in the Government for all property acquired or fabricated by the Contractor in accordance with the financing provisions or other specific requirements for passage of title in the contract. Under fixed price type contracts, in the absence of financing provisions or other specific requirements for passage of title in the contract, the Contractor retains title to all property acquired by the Contractor for use on the contract, except for property identified as a deliverable end item. If a deliverable item is to be retained by the Contractor for use after inspection and acceptance by the Government, it shall be made accountable to the contract through a contract modification listing the item as Government-furnished property.

(3) Title under Cost-Reimbursement or Time-and-Material Contracts or Cost-Reimbursable line items under Fixed-Price contracts. (i) Title to all property purchased by the Contractor for which the Contractor is entitled to be reimbursed as a direct item of cost under this contract shall pass to and vest in the Government upon the vendor's delivery of such property.

(ii) Title to all other property, the cost of which is reimbursable to the Contractor, shall pass to and vest in the Government upon-

(A) Issuance of the property for use in contract performance;

(B) Commencement of processing of the property for use in contract performance; or

(C) Reimbursement of the cost of the property by the Government, whichever occurs first.

(f) *Contractor plans and systems.* (1) Contractors shall establish and implement property management plans, systems, and procedures at the contract, program, site or entity level to enable the following outcomes:

(i) *Acquisition of Property.* The Contractor shall document that all property was acquired consistent with its engineering, production planning, and property control operations.

(ii) Receipt of Government Property. The Contractor shall receive Government property and document the receipt, record the information necessary to meet the record requirements of paragraph (f)(1)(iii)(A)(1) through (5) of this clause, identify as Government owned in a manner appropriate to the type of property (e.g., stamp, tag, mark, or other identification), and manage any discrepancies incident to shipment.

(A) Government-furnished property. The Contractor shall furnish a written statement to the Property Administrator containing all relevant facts, such as cause or condition and a recommended course(s) of action, if overages, shortages, or damages and/or other discrepancies are discovered upon receipt of Government-furnished property.

(B) Contractor-acquired property. The Contractor shall take all actions necessary to adjust for overages, shortages, damage and/or other discrepancies discovered upon receipt, in shipment of Contractor-acquired property from a vendor or supplier, so as to ensure the proper allocability and allowability of associated costs.

(iii) Records of Government property. The Contractor shall create and maintain records of all Government property accountable to the contract, including Government-furnished and Contractor-acquired property.

(A) Property records shall enable a complete, current, auditable record of all transactions and shall, unless otherwise approved by the Property Administrator, contain the following:

(1) The name, part number and description, National Stock Number (if needed for additional item identification tracking and/or disposition), and other data elements as necessary and required in accordance with the terms and conditions of the contract.

(2) Quantity received (or fabricated), issued, and balance-on-hand.

(3) Unit acquisition cost.

(4) Unique-item identifier or equivalent (if available and necessary for individual item tracking).

(5) Unit of measure.

(6) Accountable contract number or equivalent code designation.

(7) Location.

(8) Disposition.

(9) Posting reference and date of transaction.

(10) Date placed in service (if required in accordance with the terms and conditions of the contract).

(B) Use of a Receipt and Issue System for Government Material. When approved by the Property Administrator, the Contractor may maintain, in lieu of formal property records, a file of appropriately cross-referenced documents evidencing receipt, issue, and use of material that is issued for immediate consumption.

(iv) Physical inventory. The Contractor shall periodically perform, record, and disclose physical inventory results. A final physical inventory shall be performed upon contract completion or termination. The Property Administrator may waive this final inventory requirement, depending on the circumstances (e.g., overall reliability of the Contractor's system or the property is to be transferred to a follow-on contract).

(v) Subcontractor control. (A) The Contractor shall award subcontracts that clearly identify items to be provided and the extent of any restrictions or limitations on their use. The Contractor shall ensure appropriate flow down of contract terms and conditions (e.g., extent of liability for loss of Government property).

(B) The Contractor shall assure its subcontracts are properly administered and reviews are periodically performed to determine the adequacy of the subcontractor's property management system.

(vi) Reports. The Contractor shall have a process to create and provide reports of discrepancies, loss of Government property, physical inventory results, audits and self-assessments, corrective actions, and other property-related reports as directed by the Contracting Officer.

(vii) Relief of stewardship responsibility and liability. The Contractor shall have a process to enable the prompt recognition, investigation, disclosure and reporting of loss of Government property, including losses that occur at subcontractor or alternate site locations.

(A) This process shall include the corrective actions necessary to prevent recurrence.

(B) Unless otherwise directed by the Property Administrator, the Contractor shall investigate and report to the Government all incidents of property loss as soon as the facts become known. Such reports shall, at a minimum, contain the following information:

- (1) Date of incident (if known).
- (2) The data elements required under (f)(1)(iii)(A).
- (3) Quantity.
- (4) Accountable contract number.
- (5) A statement indicating current or future need.
- (6) Unit acquisition cost, or if applicable, estimated sales proceeds, estimated repair or replacement costs.
- (7) All known interests in commingled material of which includes Government material.
- (8) Cause and corrective action taken or to be taken to prevent recurrence.
- (9) A statement that the Government will receive compensation covering the loss of Government property, in the event the Contractor was or will be reimbursed or compensated.
- (10) Copies of all supporting documentation.
- (11) Last known location.
- (12) A statement that the property did or did not contain sensitive, export controlled, hazardous, or toxic material, and that the appropriate agencies and authorities were notified.

(C) Unless the contract provides otherwise, the Contractor shall be relieved of stewardship responsibility and liability for property when-

- (1) Such property is consumed or expended, reasonably and properly, or otherwise accounted for, in the performance of the contract, including reasonable inventory adjustments of material as determined by the Property Administrator;
- (2) Property Administrator grants relief of responsibility and liability for loss of Government property;
- (3) Property is delivered or shipped from the Contractor's plant, under Government instructions, except when shipment is to a subcontractor or other location of the Contractor; or
- (4) Property is disposed of in accordance with paragraphs (j) and (k) of this clause.

(viii) *Utilizing Government property.* (A) The Contractor shall utilize, consume, move, and store Government Property only as authorized under this contract. The Contractor shall promptly disclose and report Government property in its possession that is excess to contract performance.

(B) Unless otherwise authorized in this contract or by the Property Administrator the Contractor shall not commingle Government material with material not owned by the Government.

(ix) *Maintenance.* The Contractor shall properly maintain Government property. The Contractor's maintenance program shall enable the identification, disclosure, and performance of normal and routine preventative maintenance and repair. The Contractor shall disclose and report to the Property Administrator the need for replacement and/or capital rehabilitation.

(x) *Property closeout.* The Contractor shall promptly perform and report to the Property Administrator contract property closeout, to include reporting, investigating and securing closure of all loss of Government property cases; physically inventorying all property upon termination or completion of this contract; and disposing of items at the time they are determined to be excess to contractual needs.

(2) The Contractor shall establish and maintain Government accounting source data, as may be required by this contract, particularly in the areas of recognition of acquisitions, loss of Government property, and disposition of material and equipment.

(g) Systems analysis. (1) The Government shall have access to the Contractor's premises and all Government property, at reasonable times, for the purposes of reviewing, inspecting and evaluating the Contractor's property management plan(s), systems, procedures, records, and supporting documentation that pertains to Government property. This access includes all site locations and, with the

Contractor's consent, all subcontractor premises.

(2) Records of Government property shall be readily available to authorized Government personnel and shall be appropriately safeguarded.

(3) Should it be determined by the Government that the Contractor's (or subcontractor's) property management practices are inadequate or not acceptable for the effective management and control of Government property under this contract, or present an undue risk to the Government, the Contractor shall prepare a corrective action plan when requested by the Property Administrator and take all necessary corrective actions as specified by the schedule within the corrective action plan.

(h) Contractor Liability for Government Property. (1) Unless otherwise provided for in the contract, the Contractor shall not be liable for loss of Government property furnished or acquired under this contract, except when any one of the following applies-

(i) The risk is covered by insurance or the Contractor is otherwise reimbursed (to the extent of such insurance or reimbursement). The allowability of insurance costs shall be determined in accordance with 31.205-19.

(ii) Loss of Government property that is the result of willful misconduct or lack of good faith on the part of the Contractor's managerial personnel.

(iii) The Contracting Officer has, in writing, revoked the Government's assumption of risk for loss of Government property due to a determination under paragraph (g) of this clause that the Contractor's property management practices are inadequate, and/or present an undue risk to the Government, and the Contractor failed to take timely corrective action. If the Contractor can establish by clear and convincing evidence that the loss of Government property occurred while the Contractor had adequate property management practices or the loss did not result from the Contractor's failure to maintain adequate property management practices, the Contractor shall not be held liable.

(2) The Contractor shall take all reasonable actions necessary to protect the property from further loss. The Contractor shall separate the damaged and undamaged property, place all the affected property in the best possible order, and take such other action as the Property Administrator directs.

(3) The Contractor shall do nothing to prejudice the Government's rights to recover against third parties for any loss of Government property.

(4) The Contractor shall reimburse the Government for loss of Government property, to the extent that the Contractor is financially liable for such loss, as directed by the Contracting Officer.

(5) Upon the request of the Contracting Officer, the Contractor shall, at the Government's expense, furnish to the Government all reasonable assistance and cooperation, including the prosecution of suit and the execution of instruments of assignment in favor of the Government in obtaining recovery.

(i) Equitable adjustment. Equitable adjustments under this clause shall be made in accordance with the procedures of the Changes clause. However, the Government shall not be liable for breach of contract for the following:

(1) Any delay in delivery of Government-furnished property.

(2) Delivery of Government-furnished property in a condition not suitable for its intended use.

(3) An increase, decrease, or substitution of Government-furnished property.

(4) Failure to repair or replace Government property for which the Government is responsible.

(j) Contractor inventory disposal. Except as otherwise provided for in this contract, the Contractor shall not dispose of Contractor inventory until authorized to do so by the Plant Clearance Officer or authorizing official.

(1) Predisposal requirements. (i) If the Contractor determines that the property has the potential to fulfill requirements under other contracts, the Contractor, in consultation with the Property Administrator, shall request that the Contracting Officer transfer the property to the contract in question, or provide authorization for use, as appropriate. In lieu of transferring the property, the Contracting Officer may authorize the Contractor to credit the costs of Contractor-acquired property (material only) to the losing contract, and debit the gaining contract with the corresponding cost, when such material is needed for use on another contract. Property no longer needed shall be considered contractor inventory.

(ii) For any remaining Contractor-acquired property, the Contractor may purchase the property at the unit acquisition cost if desired or make reasonable efforts to return unused property to the appropriate supplier at fair market value (less, if applicable, a reasonable restocking fee that is consistent with the supplier's customary practices.)

(2) Inventory disposal schedules. (i) Absent separate contract terms and conditions for property disposition, and provided the property was not reutilized, transferred, or otherwise disposed of, the Contractor, as directed by the

Plant Clearance Officer or authorizing official, shall use Standard Form 1428, Inventory Disposal Schedule or electronic equivalent, to identify and report-

- (A) Government-furnished property that is no longer required for performance of this contract;
- (B) Contractor-acquired property, to which the Government has obtained title under paragraph (e) of this clause, which is no longer required for performance of that contract; and
- (C) Termination inventory.

(ii) The Contractor may annotate inventory disposal schedules to identify property the Contractor wishes to purchase from the Government, in the event that the property is offered for sale.

(iii) Separate inventory disposal schedules are required for aircraft in any condition, flight safety critical aircraft parts, and other items as directed by the Plant Clearance Officer.

(iv) The Contractor shall provide the information required by FAR 52.245-1(f)(1)(iii) along with the following:

- (A) Any additional information that may facilitate understanding of the property's intended use.
- (B) For work-in-progress, the estimated percentage of completion.
- (C) For precious metals in raw or bulk form, the type of metal and estimated weight.
- (D) For hazardous material or property contaminated with hazardous material, the type of hazardous material.
- (E) For metals in mill product form, the form, shape, treatment, hardness, temper, specification (commercial or Government) and dimensions (thickness, width and length).

(v) Property with the same description, condition code, and reporting location may be grouped in a single line item.

(vi) Scrap should be reported by "lot" along with metal content, estimated weight and estimated value.

(3) *Submission requirements.* (i) The Contractor shall submit inventory disposal schedules to the Plant Clearance Officer no later than-

- (A) 30 days following the Contractor's determination that a property item is no longer required for performance of this contract;
- (B) 60 days, or such longer period as may be approved by the Plant Clearance Officer, following completion of contract deliveries or performance; or
- (C) 120 days, or such longer period as may be approved by the Termination Contracting Officer, following contract termination in whole or in part.

(ii) Unless the Plant Clearance Officer determines otherwise, the Contractor need not identify or report production scrap on inventory disposal schedules, and may process and dispose of production scrap in accordance with its own internal scrap procedures. The processing and disposal of other types of Government-owned scrap will be conducted in accordance with the terms and conditions of the contract or Plant Clearance Officer direction, as appropriate.

(4) *Corrections.* The Plant Clearance Officer may-

- (i) Reject a schedule for cause (e.g., contains errors, determined to be inaccurate); and
- (ii) Require the Contractor to correct an inventory disposal schedule.

(5) *Post submission adjustments.* The Contractor shall notify the Plant Clearance Officer at least 10 working days in advance of its intent to remove an item from an approved inventory disposal schedule. Upon approval of the Plant Clearance Officer, or upon expiration of the notice period, the Contractor may make the necessary adjustments to the inventory schedule.

(6) *Storage.* (i) The Contractor shall store the property identified on an inventory disposal schedule pending receipt of disposal instructions. The Government's failure to furnish disposal instructions within 120 days following acceptance of an inventory disposal schedule may entitle the Contractor to an equitable adjustment for costs incurred to store such property on or after the 121 st day.

(ii) The Contractor shall obtain the Plant Clearance Officer's approval to remove property from the premises where the property is currently located prior to receipt of final disposition instructions. If approval is granted, any costs incurred by the Contractor to transport or store the property shall not increase

the price or fee of any Government contract. The storage area shall be appropriate for assuring the property's physical safety and suitability for use. Approval does not relieve the Contractor of any liability for such property under this contract.

(7) Disposition instructions. (i) The Contractor shall prepare for shipment, deliver f.o.b. origin, or dispose of Contractor inventory as directed by the Plant Clearance Officer. Unless otherwise directed by the Contracting Officer or by the Plant Clearance Officer, the Contractor shall remove and destroy any markings identifying the property as U.S. Government-owned property prior to its disposal.

(ii) The Contracting Officer may require the Contractor to demilitarize the property prior to shipment or disposal. In such cases, the Contractor may be entitled to an equitable adjustment under paragraph (i) of this clause.

(8) *Disposal proceeds.* As directed by the Contracting Officer, the Contractor shall credit the net proceeds from the disposal of Contractor inventory to the contract, or to the Treasury of the United States as miscellaneous receipts.

(9) *Subcontractor inventory disposal schedules.* The Contractor shall require its Subcontractors to submit inventory disposal schedules to the Contractor in accordance with the requirements of paragraph (j)(3) of this clause.

(k) Abandonment of Government property. (1) The Government shall not abandon sensitive property or termination inventory without the Contractor's written consent.

(2) The Government, upon notice to the Contractor, may abandon any nonsensitive property in place, at which time all obligations of the Government regarding such property shall cease.

(3) Absent contract terms and conditions to the contrary, the Government may abandon parts removed and replaced from property as a result of normal maintenance actions, or removed from property as a result of the repair, maintenance, overhaul, or modification process.

(4) The Government has no obligation to restore or rehabilitate the Contractor's premises under any circumstances; however, if Government-furnished property is withdrawn or is unsuitable for the intended use, or if other Government property is substituted, then the equitable adjustment under paragraph (i) of this clause may properly include restoration or rehabilitation costs.

(l) *Communication.* All communications under this clause shall be in writing.

(m) *Contracts outside the United States.* If this contract is to be performed outside of the United States and its outlying areas, the words "Government" and "Government-furnished" (wherever they appear in this clause) shall be construed as "United States Government" and "United States Government-furnished," respectively.

(End of clause)

Alternate I (Apr 2012).

(h)(1) The Contractor assumes the risk of, and shall be responsible for, any loss of Government property upon its delivery to the Contractor as Government-furnished property. However, the Contractor is not responsible for reasonable wear and tear to Government property or for Government property properly consumed in performing this contract.

52.245-2

52.245-2 Government Property Installation Operation Services (APR 2012)

- (a) This Government Property listed in paragraph (e) of this clause is furnished to the Contractor in an "as-is, where is" condition. The Government makes no warranty regarding the suitability for use of the Government property specified in this contract. The Contractor shall be afforded the opportunity to inspect the Government property as specified in the solicitation.
- (b) The Government bears no responsibility for repair or replacement of any lost Government property. If any or all of the Government property is lost or becomes no longer usable, the Contractor shall be responsible for replacement of the property at Contractor expense. The Contractor shall have title to all replacement property and shall continue to be responsible for contract performance.
- (c) Unless the Contracting Officer determines otherwise, the Government abandons all rights and title to unserviceable and scrap property resulting from contract performance. Upon notification to the Contracting Officer, the Contractor shall remove such property from the Government premises and dispose of it at Contractor expense.
- (d) Except as provided in this clause, Government property furnished under this contract shall be governed by the Government Property clause of this contract.
- (e) Government property provided under this clause: Please refer to Government furnished equipment and property in Technical Exhibit 3 under Section C.

(End of clause)

52.252-1

52.252-1 Solicitation Provisions Incorporated by Reference (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): <https://acquisition.gov/browsefar>

(End of Clause)

52.252-2

52.252-2 Clauses Incorporated by Reference (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be assessed electronically at this/these address(es): <https://www.acquisition.gov/>

(End of Clause)

DTAR 1052.210-70, Contractor Publicity (APR 2015)

The Contractor, or any entity or representative acting on behalf of the Contractor, shall not refer to the supplies or services furnished pursuant to the provisions of this contract in any news release or commercial advertising, or in connection with any news release or commercial advertising, without first obtaining explicit written consent to do so from the Contracting Officer. Should any reference to such supplies or services appear in any news release or commercial advertising issued by or on behalf of the Contractor without the required consent, the Government shall consider institution of all remedies available under applicable law, including 31 U.S.C. 333, and this contract. Further, any violation of this clause may be considered as part of the evaluation of past performance.

(End of clause)

DTAR 1052.228-70, Insurance Requirements (APR 2015)

In accordance with FAR clause 52.228-5, entitled "Insurance—Work on a Government Installation" [or FAR clause 52.228-7 entitled, "*Insurance—Liability to Third Persons*"], insurance of the following kinds and minimum amounts shall be provided and maintained during the period of performance of this contract:

- (a) *Worker's compensation and employer's liability.* The Contractor shall, as a minimum, meet the requirements specified at FAR 28.307-2(a).
- (b) *General liability.* The Contractor shall, at a minimum, meet the requirements specified at FAR 28.307-2(b).
- (c) *Automobile liability.* The Contractor shall, at a minimum, meet the requirements specified at FAR 28.307-2(c).

(End of clause)

DTAR 1052.232-7003, Electronic Submission of Payment Requests (APR 2015)

- (a) Definitions. As used in this clause—
 - (1) "Payment request" means a bill, voucher, invoice, or request for contract financing payment with associated supporting documentation. The payment request must comply with the requirements identified in FAR 32.905(b), "Content of Invoices" and the applicable Payment clause included in this contract.
- (b) Except as provided in paragraph (c) of this clause, the Contractor shall submit payment requests electronically using the Invoice Processing Platform (IPP). Information regarding IPP, including IPP Customer Support contact information, is available at www.ipp.gov or any successor site.
- (c) The Contractor may submit payment requests using other than IPP only when the Contracting Officer authorizes alternate procedures in writing in accordance with Treasury procedures.
- (d) If alternate payment procedures are authorized, the Contractor shall include a copy of the Contracting Officer's written authorization with each payment request.

(End of clause)

[END OF SECTION]

10. Section J - List of Documents, Exhibits, and other Attachments

Identifier	Title/Description
Attachment A	Past Performance Questionnaire
Attachment B	Wage Determination 2015-5231, Revision December 2023
Attachment C	Pricing Worksheet
Attachment D	WCF Security O&M QASP

Clauses incorporated by reference

None

Clauses incorporated by full text

None

[END OF SECTION]

11. Section K - Representations, Certifications, and Other Statements of Offerors

Clauses incorporated by reference

Article Number	Reference Text
52.203-11	52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (SEPT 2007)
52.203-18	52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements Representation (JAN 2017)
52.204-17	52.204-17 Ownership or Control of Offeror (AUG 2020)
52.204-19	52.204-19 Incorporation by Reference of Representations and Certifications (DEC 2014)
52.209-2	52.209-2 Prohibition on Contracting with Inverted Domestic Corporations – Representation (NOV 2015)
52.225-25	52.225-25 Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran--Representation and Certifications (JUN 2020)

Clauses incorporated by full text

52.204-8 52.204-8 Annual Representations and Certifications (MAR 2023)

- (a) (1) The North American Industry Classification System (NAICS) code for this acquisition is 561621 – Security Systems Services.
- (2) The small business size standard is \$25.0 Million.
- (3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition—
- (i) Is set aside for small business and has a value above the simplified acquisition threshold;
 - (ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or
 - (iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.
- (b) (1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of the provision applies.
- (2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:
- (i) ☐ Paragraph (d) applies.
 - (ii) ☐ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.
- (c) (1) The following representations or certifications in SAM are applicable to this solicitation as indicated:
- (i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless—
 - (A) The acquisition is to be made under the simplified acquisition procedures in part 13;
 - (B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or
 - (C) The solicitation is for utility services for which rates are set by law or regulation.
 - (ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.
 - (iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.
 - (iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.
 - (v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that—
 - (A) Are not set aside for small business concerns;
 - (B) Exceed the simplified acquisition threshold; and
 - (C) Are for contracts that will be performed in the United States or its outlying areas.
 - (vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

- (vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations- Representation.
- (viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.
- (ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.
- (x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.
- (xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.
- (xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).
 - (A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.
 - (B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.
 - (C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.
- (xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).
- (xiv) 52.222-22, Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at 52.222-26, Equal Opportunity.
- (xv) 52.222-25, Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at 52.222-26, Equal Opportunity.
- (xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.
- (xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of USDA-designated items; or include the clause at 52.223-2, Affirmative Procurement of Biobased Products Under Service and Construction Contracts.
- (xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.
- (xix) 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals-Representation. This provision applies to solicitations that include the clause at 52.204-7.)
- (xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.
- (xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.
 - (A) If the acquisition value is less than \$50,000, the basic provision applies.
 - (B) If the acquisition value is \$50,000 or more but is less than \$92,319, the provision with its Alternate II applies.
 - (C) If the acquisition value is \$92,319 or more but is less than \$100,000, the provision with its Alternate III applies.
- (xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.
- (xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan- Certification. This provision applies to all solicitations.
- (xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.
- (xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

- ☒ (i) 52.204-17, Ownership or Control of Offeror.
- ☐ (ii) 52.204-20, Predecessor of Offeror.
- ☐ (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.
- ☐ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.
- ☐ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services- Certification.
- ☐ (vi) 52.223-9, with its Alternate I, Estimate of Percentage of Recovered Material Content for EPA-Designated Products (Alternate I only).
- ☐ (vii) 52.227-6, Royalty Information.
 - ☐ (A) Basic.

____(B) Alternate I.
____(viii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause #	Title	Date Change
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Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

52.204-24 **52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment (NOV 2021)**

The Offeror shall not complete the representation in this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in the provision at 52.204-26, Covered Telecommunications Equipment or Services - Representation, or in paragraph (v) of the provision at 52.212-3, Offeror Representations and Certifications - Commercial Items.

(a) Definitions. As used in this provision -

Covered telecommunications equipment or services, critical technology, and substantial or essential component have the meanings provided in clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition. Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Contractors are not prohibited from providing -

- (1) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or
- (2) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) Representation. The Offeror represents that it _ will, _ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will" provide covered telecommunications equipment or services, the Offeror shall provide the following information as part of the offer -

- (1) A description of all covered telecommunications equipment and services offered (include brand; model number, such as original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);
- (2) Explanation of the proposed use of covered telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b) of this provision;
- (3) For services, the entity providing the covered telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known); and
- (4) For equipment, the entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

52.204-26 **52.204-26 Covered Telecommunications Equipment or Services - Representation (OCT 2020)**

(a) Definitions. As used in this provision, "covered telecommunications equipment or services" has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c) Representation. The Offeror represents that it does, does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

52.209-7 52.209-7 Information Regarding Responsibility Matters (OCT 2018)

(a) Definitions. As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means—

- (1) The total value of all current, active contracts and grants, including all priced options;
and
 - (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).
Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).
- (b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.
- (c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:
- (1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:
 - (i) In a criminal proceeding, a conviction.
 - (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
 - (iii) In an administrative proceeding, a finding of fault and liability that results in—
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or
 - (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.
 - (iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.
 - (2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.
- (d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.215-6 52.215-6 Place of Performance (OCT 1997)

(a) The offeror or respondent, in the performance of any contract resulting from this solicitation, ☐ intends, ☐ does not intend [check applicable block] to use one or more plants or facilities located at a different address from the address of the offeror or respondent as indicated in this proposal or response to request for information.

(b) If the offeror or respondent checks "intends" in paragraph (a) of this provision, it shall insert in the following spaces the required information:

Place of Performance (Street Address, City, State, County, ZIP Code)	Name and Address of Owner and Operator of the Plant or Facility if Other than Offeror or Respondent

(End of provision)

[END OF SECTION]

12. Section L - Instructions, Conditions and Notices to Offerors

Clauses incorporated by reference

Article Number	Reference Text
52.204-7	52.204-7 System For Award Management (OCT 2018)
52.204-16	52.204-16 Commercial And Government Entity Code Reporting (AUG 2020)
52.204-18	52.204-18 Commercial And Government Entity Code Maintenance (AUG 2020)
52.214-7	52.214-7 Late Submissions, Modifications, and Withdrawals of Bids (NOV 1999)
52.214-34	52.214-34 Submission Of Offers In The English Language (APR 1991)
52.214-35	52.214-35 Submission Of Offers In U.S. Currency (APR 1991)
52.215-1	52.215-1 Instructions To Offerors—Competitive Acquisition (NOV 2021)
52.222-24	52.222-24 Pre Award On-Site Equal Opportunity Compliance Evaluation (FEB 1999)
52.237-1	52.237-1 Site Visit (APR 1984)

Clauses incorporated by full text

52.212-1 Instructions to Offerors—Commercial Products and Commercial Services (Sep 2023)

(a) *North American Industry Classification System (NAICS) code and small business size standard.* The NAICS code(s) and small business size standard(s) for this acquisition appear elsewhere in the solicitation. However, the small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

- (1) Is set aside for small business and has a value above the simplified acquisition threshold;
- (2) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or
- (3) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b) *Submission of offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. Offers may be submitted on the [SF 1449](#), letterhead stationery, or as otherwise specified in the solicitation. As a minimum, offers must show—

- (1) The solicitation number;
- (2) The time specified in the solicitation for receipt of offers;
- (3) The name, address, and telephone number of the offeror;
- (4) A technical description of the items being offered in sufficient detail to evaluate compliance with the requirements in the solicitation. This may include product literature, or other documents, if necessary;
- (5) Terms of any express warranty;
- (6) Price and any discount terms;
- (7) "Remit to" address, if different than mailing address;
- (8) A completed copy of the representations and certifications at Federal Acquisition Regulation (FAR) [52.212-3](#) (see FAR [52.212-3\(b\)](#) for those representations and certifications that the offeror shall complete electronically);
- (9) Acknowledgment of Solicitation Amendments;

(10) Past performance information, when included as an evaluation factor, to include recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers and other relevant information); and

(11) If the offer is not submitted on the [SF 1449](#), include a statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation. Offers that fail to furnish required representations or information, or reject the terms and conditions of the solicitation may be excluded from consideration.

(c) *Period for acceptance of offers.* The offeror agrees to hold the prices in its offer firm for 30 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(d) *Product samples.* When required by the solicitation, product samples shall be submitted at or prior to the time specified for receipt of offers. Unless otherwise specified in this solicitation, these samples shall be submitted at no expense to the Government, and returned at the sender's request and expense, unless they are destroyed during preaward testing.

(e) *Multiple offers.* Offerors are encouraged to submit multiple offers presenting alternative terms and conditions, including alternative line items (provided that the alternative line items are consistent with FAR [subpart 4.10](#)), or alternative commercial products or commercial services for satisfying the requirements of this solicitation. Each offer submitted will be evaluated separately.

(f) Late submissions, modifications, revisions, and withdrawals of offers.

(1) Offerors are responsible for submitting offers, and any modifications, revisions, or withdrawals, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that offers or revisions are due.

(2)

(i) Any offer, modification, revision, or withdrawal of an offer received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and-

(A) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of offers; or

(B) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(C) If this solicitation is a request for proposals, it was the only proposal received.

(ii) However, a late modification of an otherwise successful offer, that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(3) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the offer wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(4) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(5) Offers may be withdrawn by written notice received at any time before the exact time set for receipt of offers. Oral offers in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile offers, offers may be withdrawn via facsimile received at any time before the exact time set for receipt of offers, subject to the conditions specified in the solicitation concerning facsimile offers. An offer may be withdrawn in person by an offeror or its authorized representative if, before the exact time set for receipt of offers, the identity of the person requesting withdrawal is established and the person signs a receipt for the offer.

(g) *Contract award (not applicable to Invitation for Bids).* The Government intends to evaluate offers and award a contract without discussions with offerors. Therefore, the offeror's initial offer should contain the offeror's best terms from a price and technical standpoint. However, the Government reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary. The

Government may reject any or all offers if such action is in the public interest; accept other than the lowest offer; and waive informalities and minor irregularities in offers received.

(h) *Multiple awards.* The Government may accept any item or group of items of an offer, unless the offeror qualifies the offer by specific limitations. Unless otherwise provided in the Schedule, offers may not be submitted for quantities less than those specified. The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit prices offered, unless the offeror specifies otherwise in the offer.

(i) Availability of requirements documents cited in the solicitation.

(1)

(i) The GSA Index of Federal Specifications, Standards and Commercial Item Descriptions, FPMR Part 101–29, and copies of Federal specifications, standards, and product descriptions can be downloaded from the ASSIST website at <https://assist.dla.mil>.

(ii) If the General Services Administration, Department of Agriculture, or Department of Veterans Affairs issued this solicitation, a copy of specifications, standards, and commercial item descriptions cited in this solicitation may be obtained from the address in paragraph (i)(1)(i) of this provision.

(2) Most unclassified Defense specifications and standards may be downloaded from the ASSIST website at <https://assist.dla.mil>.

(3) Defense documents not available from the ASSIST website may be requested from the Defense Standardization Program Office by—

(i) Using the ASSIST feedback module (<https://assist.dla.mil/feedback>); or

(ii) Contacting the Defense Standardization Program Office by telephone at 571–767–6688 or email at assisthelp@dlamail.

(4) Nongovernment (voluntary) standards must be obtained from the organization responsible for their preparation, publication, or maintenance.

(j) *Unique entity identifier.* (Applies to all offers that exceed the micro-purchase threshold, and offers at or below the micro-purchase threshold if the solicitation requires the Contractor to be registered in the System for Award Management (SAM).) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the unique entity identifier that identifies the Offeror's name and address. The Offeror also shall enter its Electronic Funds Transfer (EFT) indicator, if applicable. The EFT indicator is a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the Offeror to establish additional SAM records for identifying alternative EFT accounts (see FAR [subpart 32.11](#)) for the same entity. If the Offeror does not have a unique entity identifier, it should contact the entity designated at www.sam.gov for unique entity identifier establishment directly to obtain one. The Offeror should indicate that it is an offeror for a Government contract when contacting the entity designated at www.sam.gov for establishing the unique entity identifier.

(k) [Reserved]

(l) *Debriefing.* If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(3) The overall ranking of all offerors when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award;

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

(6) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

(End of provision)

52.222-56 52.222-56 Certification Regarding Trafficking in Persons Compliance Plan (OCT 2020)

- (a) The term "commercially available off-the-shelf (COTS) item," is defined in the clause of this solicitation entitled "Combating Trafficking in Persons" (FAR clause [52.222-50](#)).
- (b) The apparent successful Offeror shall submit, prior to award, a certification, as specified in paragraph (c) of this provision, for the portion (if any) of the contract that-
 - (1) Is for supplies, other than commercially available off-the-shelf items, to be acquired outside the United States, or services to be performed outside the United States; and
 - (2) Has an estimated value that exceeds \$550,000.
- (c) The certification shall state that-
 - (1) It has implemented a compliance plan to prevent any prohibited activities identified in paragraph (b) of the clause at [52.222-50](#), Combating Trafficking in Persons, and to monitor, detect, and terminate the contract with a subcontractor engaging in prohibited activities identified at paragraph (b) of the clause at [52.222-50](#), Combating Trafficking in Persons; and
 - (2) After having conducted due diligence, either-
 - (i) To the best of the Offeror's knowledge and belief, neither it nor any of its proposed agents, subcontractors, or their agents is engaged in any such activities; or
 - (ii) If abuses relating to any of the prohibited activities identified in [52.222-50\(b\)](#) have been found, the Offeror or proposed subcontractor has taken the appropriate remedial and referral actions.

(End of provision)

52.233-2 52.233-2 Service of Protest (Sept 2006)

- (a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from: Terry Lawrence, Terry.Lawrence@bep.gov, (817)847-3813.
- (b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

L.1 PRE-PROPOSAL SITE VISIT

In accordance with 52.237-1 Site Visit (Apr 1984), the BEP WCF – Physical Security Branch is hosting a Pre-Proposal Site Visit during the solicitation phase to allow offerors to obtain a better understanding of site conditions and the work required, as well as gather quality information about the solicitation and familiarize offerors with the procuring agency. The site visit is scheduled at 8:00am CST on Monday, March 18, 2024 at 9000 Blue Mound Rd, Fort Worth, TX 76131. Prospective offerors are encouraged to attend.

Registration

All interested offerors attending this site visit will need to forward PII information of each attendee, including full name (as it appears on identification), date of birth, place of birth, phone number, email address, and company information no later than 3:00pm (CST), Wednesday, March 6, 2024 to Terry.Lawrence@bep.gov.

Interested parties who are confirmed to this visit should be at the entrance no later than 30 minutes prior to the start of the visit. Each visitor will need to bring a valid (not expired) government issued (Driver's License, Passport, etc.) photo ID to gain access to the WCF.

L.2 GENERAL INFORMATION

- L.2.1** Offeror is expected to examine this entire Request for Proposal. Failure to do so will be at the Offeror's own risk.
- L.2.2** Proposal shall set forth full, accurate, and complete information as required by this RFP package (including Attachments). The penalty for making false statements is prescribed in 18 U.S.C. 1001.
- L.2.3** In responding to this RFP, it is the Offeror's responsibility to provide current, complete, and accurate information in their proposal. If in reviewing the proposal the Government identifies or otherwise learns that the provided proposal information is not accurate or misrepresents the Offeror's status or capabilities, that information may be used by the Contracting Officer as part of the Offeror's responsibility determination and could result in the Offeror not being eligible for award.
- L.2.4** Proposal must be clear, coherent, and prepared in sufficient detail for effective evaluation. Proposal must clearly

demonstrate how the Offeror intends to accomplish the work required and must include convincing rationale and substantiation of all claims. Offeror shall assume that the Government has no prior knowledge of their facilities and experience and will base its evaluation on the information presented in the proposal. To be eligible for evaluation and award, offerors are required to substantially meet all solicitation requirements, such as terms and conditions, technical factors, and pricing information. Failure to comply with all terms and conditions of the solicitation may result in the offeror being removed from further consideration.

- L.2.5** The Government may award a contract without discussions with offeror (except clarifications as described in FAR 15.306(a)); therefore, the offeror's initial proposal should be clear and complete and contain the offeror's best terms from a technical, past performance and cost/price standpoint. The Government reserves the right to conduct discussions if later it is deemed necessary. The Government further reserves the right to reject any or all offers if such action is in the Government's best interest.

L.3 **PROPOSAL SUBMISSION AND PREPARATION**

L.3.1 **Proposal Submission**

Offerors shall examine and follow all instructions. Failure to do so may result in the proposal being determined to be unacceptable, not evaluated further and removed from consideration for award. Proposals shall conform to solicitation provision FAR 52.215-1, Instructions to Offerors – Competitive Acquisition and be prepared in accordance with this section. To aid in the evaluation, proposals shall be clearly and concisely written and well indexed (cross-indexed as appropriate) and logically assembled. Prospective Offerors are asked to bear in mind that all material submitted should be directly pertinent to the requirements of this RFP. Extraneous narratives, elaborate brochures, uninformative "PR" material and so forth, shall not be submitted. All pages of each part shall be appropriately numbered, and identified with the name of the Offeror, the date, and the solicitation number to the extent practical.

Proposal Due Date

The entire proposal (all Volumes) shall be submitted via email to TERRY.LAWRENCE@bep.gov no later than the date and time specified in SF1449 (Solicitation Section 9), April 1, 2024 12:00PM CST.

L.3.2 Submission Process

Proposal Section	Format	Page Limitation
Volume I, Technical	Written: Adobe PDF	25 Pages
Volume II, Past Performance	Written: Adobe PDF	No Limitation (Past Performance Questionnaire provided)
Volume III, Price	Written: Adobe PDF and MS Excel	No Limitation (Optional pricing worksheet provided)

L.3.3 General Format

Following is the specified format for Volumes I, Technical and Volume II, Past Performance:

- Volumes I and II **shall NOT** include price data.
- Pages shall be standard 8 ½" by 11" size.
- 12-point size type shall be used. The font shall be Times New Roman. The font size for tables and figures can be no smaller than 8-point. The font size for any graphics as it appears on the printed page can be no smaller than 8-point.
- Margins shall be one-inch at top/bottom and left/right of the page and pages may not be reduced. Headers and footers are allowed in the margins and their font size can be no smaller than 10-point.
- Pages shall be printed doubled-sided.
- Multiple pages or foldouts are limited to 11" by 17" size paper and shall count towards the page limit.
- Pages must be sequentially numbered.
- Caution:** Pages submitted in excess of the page limits enumerated above will not be evaluated. Text and graphics with font size smaller than the minimum specified will not be evaluated.

Table of Contents

Each Volume shall contain a Table of Contents, which shall provide sufficient detail so that all the important elements may be easily located. The use of tables and dividers is encouraged. The Table(s) of Contents, dividers, tabs, and cover sheets are excluded from the page count; no content within these pages will be considered for evaluation. Offerors should ensure these document pages are used solely for organization of the proposals.

Cross Reference Matrix

Each Volume shall contain a cross-reference matrix relating the proposal information to Sections L and M of the RFP. The matrix shall be sorted by RFP section number and placed at the beginning of Volumes I and III.

Response to the Requirements

Each Offeror shall submit a proposal that clearly and concisely describes and defines the Offeror's response to the requirements contained in the RFP.

Use of general or vague statements such as “standard procedures will be used”, “noted”, “good engineering practices”, or “contractor will comply” will not satisfy this requirement. Simply repeating or paraphrasing the RFP requirements without substantive, meaningful discussion will not be acceptable. The Government may consider an Offeror's unsupported assertions or mere restatement or paraphrasing of the Government's requirements, without further explanation, clarification, or context to be deficient. Unnecessary elaboration or presentation beyond that which is sufficient to present a complete and effective proposal is not desired and may be construed as an indication of the Offeror's lack of understanding or cost consciousness. Elaborate artwork, expensive paper or bindings, and expensive visual or other presentation aids is neither necessary nor desired. The desire is for clear, succinct pictorials, graphs, etc.

L.3.4 Volume I, Technical Proposal

Offeror's proposal shall reflect an in-depth approach and solution for achieving the objectives of the BEP. Offeror shall present in detail the technical approach, methodologies, technologies, support materials and/or techniques that will be applied in meeting the government requirement.

The Offerors shall address in sufficient details each of the factors, subfactors, and/or elements as described in each of the Sections in the Performance Work Statement.

At a minimum, the Offeror shall address the following:

- Factor 1 – Technical Approach
 - The Offeror shall provide a clear and detailed approach to meeting the Government's objective and executing all PWS requirements. The Offeror shall describe, in detail, how the proposal will meet the BEP requirements as described in the Performance Work Statement. MANDATORY MINIMUM REQUIREMENT
- Factor 2 – Management and Staffing Plan
 - The Offeror shall provide a management plan that discusses, at a minimum, the contractor's ability to recruit/source, onboard, and retain the talent and breadth of support required to perform on this contract. The Offeror shall describe, in detail, how the proposal will meet the BEP requirements as described in the Performance Work Statement. MANDATORY MINIMUM REQUIREMENT
- Factor 3 – Experience of Key Personnel
 - The Offeror shall provide a resume of their proposed key personnel that meets the qualifications of the position in the PWS. If the proposed key personnel is/are not a current employee of the Contractor, the Offeror shall include a signed commitment letter from the employee that reflects their intention and willingness to perform in the event the Contractor is awarded the contract. The Offeror shall describe, in detail, how the proposal will meet the BEP requirements as described in the Performance Work Statement. MANDATORY MINIMUM REQUIREMENT

L.3.5 Volume II, Past Performance Summary

- Factor 4 – Past Performance
 - The Government will consider the relevance of past performance information obtained in relation to similar complexity and magnitude of this procurement, considering factors as similar size, scope, and complexity completed by the Contractor. For each identified contract, Offeror's are to have client(s) complete and submit the Past Performance Questionnaire and return directly to the Contracting Officer.

L.3.6 Volume III, Price Proposal

- Factor 5 – Price
 - The Offeror must submit firm-fixed prices for every line item listed under each performance period in the attached pricing worksheet. The Offeror must also provide a Total Evaluated Price for the overall performance period. All prices quoted shall be inclusive of all labor, materials, and equipment to successfully perform the services identified.

- This requirement includes Contract Line Item Number(s), which are referred to as CLIN(s).

L.4 **PERIOD FOR ACCEPTANCE OF OFFER**

The Offeror agrees to hold the prices in its proposal firm for 180 calendar days from the date specified for receipt of proposal unless another time period is specified in an amendment to the RFP.

L.5 **COMMUNICATIONS PRIOR TO CONTRACT AWARD**

Offerors shall direct all communications to the attention of the Contracting Officer cited below in this RFP. Communications with the project officer or other officials may compromise the competitiveness of this acquisition and may result in cancellation of the requirement.

L.6 **RELEASE OF INFORMATION**

Contract selection and award information will be disclosed in accordance with regulations applicable to negotiated acquisitions. Prompt written notice will be provided.

L.7 **NOTICE TO OFFERORS REGARDING CLASSIFIED PROPOSALS**

BEP does not currently anticipate that proposals will be classified. If you choose to submit a classified proposal, you must provide notification of your intent to submit a classified proposal to TERRY.LAWRENCE@bep.gov.

L.8 **SIGNATURE REQUIREMENTS**

Each Offeror shall complete the appropriate sections of the SF1449 and return it with their proposal. All amendments issued under this RFP must also be signed and returned with the proposal. The SF1449 and all other documents must be signed by an official authorized to bind the Offeror.

L.9 **REPRESENTATION AND CERTIFICATIONS**

The Offeror shall complete and provide all applicable elements in Section K: Representations, Certifications, and Other Statements by Offerors documents with their proposal.

L.10 **PREPARATION COSTS**

This RFP does not commit the government to pay for the preparation and submission of a proposal. The Contracting Officer is the only individual who can legally bind the Government to the expenditure of public funds in connection with this procurement.

L.11 **REQUEST FOR CLARIFICATION**

All requests for questions and/or clarifications related to the RFP shall be submitted via e-mail to TERRY.LAWRENCE@bep.gov. All questions or requests for clarifications must be submitted in writing no later than 12:00 PM CST, March 22, 2024. The Offeror shall note in the email subject line the Request for Proposal, 2031ZA24R00004 and "Request for Clarification." Prospective offerors are cautioned against contacting Government technical personnel regarding this solicitation prior to award of this procurement. If such a contact occurs and is found to be prejudicial to competing offerors, the offeror making such a contact may be excluded from award consideration. Accordingly, all communications prior to award must be directed to Terry Lawrence, Contracting Officer.

When submitting questions and comments, please refer to the specific text of the RFP in the following format:

- Subject: RFP No. 2031ZA24R00004
- Reference: RFP Section _____, Paragraph(s) __, Page(s) _____.

Answers to questions will be provided to all offerors being solicited, giving due regard to the proper protection of proprietary information.

[END OF SECTION]

13. Section M - Evaluation Factors for Award

M.1 PROPOSAL PREPARATION COMPLIANCE DETERMINATION

The Government will review offeror's proposal to determine compliance with the proposal preparation instructions. If it is determined that the proposal is substantially not in compliance with the instructions in Section L, the Government may deem that proposal to be unacceptable and it will not be evaluated further. The proposal may be removed from consideration for contract award.

A confidence rating system will be used in the rating of each Contractor's proposal for all Evaluation Factors with the exception of Factor 5 - Price.

M.2 EVALUATION FACTORS FOR AWARD

Proposals submitted in response to this solicitation will be evaluated in accordance with the criteria set forth in this Section. Pursuant to FAR Part 12, Acquisition of Commercial Items and FAR Part 13.5, Simplified Acquisition Procedures for Certain Commercial Products and Commercial Services offerors are advised that the Government may evaluate proposals and award a contract based on best value. Therefore, the initial proposal should contain the offeror's best terms from a cost or price and technical standpoint. Offerors are reminded that unsupported promises to comply with the requirements will not be sufficient. Proposals must document clear and convincing evidence that fully substantiates proposal claims relating to promised performance. Inconsistencies between the various sections of an offeror's proposal may indicate a lack of understanding of the complexity of the requirements and increased proposal risk and could result in a reduced rating in the applicable factor(s) and/or subfactor(s).

M.3 BASIS FOR AWARD

The Government intends to award a contract resulting from this solicitation to the responsible offeror(s) whose proposal(s) represents the best value after evaluation in accordance with the factors and subfactors in the solicitation (see FAR 52.215-1(f)). "Best value" as defined in FAR Part 2, means the expected outcome of an acquisition that, in the Government's estimation, provides the greatest overall benefit in response to the requirement.

The Government intends to award a single contract. However, the Government reserves the right to make no award, depending on the quality of the proposals received and the availability of funds. The Government may reject any proposal that is evaluated to be unrealistic in terms of program commitments, contract terms and conditions, or unrealistically high or low in price when compared to Government estimates, such that the proposal is deemed to reflect an inherent lack of competence or failure to comprehend the complexity and risks of the procurement herein.

M.4 RELATIVE IMPORTANCE OF EVALUATION FACTORS

The Government will conduct a tradeoff process in order to determine which Offeror represents the best value to the Government. In determining which proposal provides the best value to the Government, Technical Approach, Management/Staffing Plan, and Experience of Key Personnel are significantly more important than Past Performance and Price. Technical Approach, Management/Staffing Plan, and Experience of Key Personnel are of equal importance, followed by Past Performance, and then Price. Based upon the results of the integrated assessment of the technical factors, past performance, and price proposals, the Government may make an award to other than the lowest-priced offeror or the offeror with the highest technical rating if the source selection official determines that doing so represents the best value to the Government.

A final rating of no less than "Some Confidence" must be achieved for all Technical factors and no less than "Satisfactory Confidence" (or "Unknown" where there is no relevant past performance information available) for Past Performance in order for an award to be made.

Best value for the Government will be determined by comparing differences in the non-price factors with differences in price to the Government. In making this comparison the Government is more concerned with obtaining superior technical or performance capabilities than with making an award at the lowest overall price to the Government. The Government will not make an award at a significantly higher overall price to the Government to achieve slightly superior technical or performance capabilities. The degree of importance of price as a factor could become greater depending upon the equality of the proposals for the non-price factors evaluated; where competing proposals are determined to be substantially equal for non-price factors, price would become the controlling factor. The Government will determine price fair and reasonable in accordance with FAR 13.106-3.

M.5 MANDATORY MINIMUM ELEMENTS

Each proposal must demonstrate the offeror's ability to meet the specified requirements outlined in Sections C of the

RFP.

Offerors should note certain elements within the RFP have been identified as Mandatory which the Offeror must demonstrate can be met, at a minimum, before it may be considered for award. If Offers received do not demonstrate an ability to meet the mandatory minimum elements summarized below, the Government will reject the proposal from further consideration. The mandatory minimum elements that shall be met are as follows:

- Factor 1 – Technical Approach
- Subfactor 1 – Risk Assessment of Technical Approach
- Factor 2 – Management and Staffing Plan
- Factor 3 – Experience of Key Personnel

A final rating of no less than “Some Confidence” must be achieved for all mandatory minimum elements identified above. Failure to meet the mandatory minimum for any specified element is cause for rejection of the proposal as technically unacceptable.

M.6 **EVALUATION APPROACH**

The Government will evaluate each proposal strictly in accordance with its content and will not assume that performance will include areas omitted from the offeror's proposal. The Government will evaluate the completeness of the offer based on the documentation provided. The evaluation will assess the strengths and weaknesses offered by each offeror as they relate to the requirements contained in the solicitation. Each proposal will be evaluated based on how well the offeror has complied with the requirements specified in Section L and M of the solicitation, as represented by the contents of the offeror's proposal, and against the evaluation factors. The evaluation factors are as follows, in descending order of importance:

- (1 – Equal) Factor 1 – Technical Approach
- (1 – Equal) Subfactor 1 – Risk Assessment of Technical Approach
- (1 – Equal) Factor 2 – Management and Staffing Plan
- (1 – Equal) Factor 3 – Experience of Key Personnel
- (2 –) Factor 4 – Past Performance
- (3 –) Factor 5 – Price

The Government will assess the extent to which the offeror's proposal possesses clear understanding of the technical areas delineated in the solicitation and the offeror's overall approach for accomplishing the technical requirements of the effort. The Government will also assess the degree to which an offeror's proposed technical approach meets or exceeds the requirements of the solicitation. This assessment will account for risk of disruption of schedule, degradation of performance, the need for increased Government oversight, or the likelihood of unsuccessful contract performance. Risk will be assessed as an inherent part of the Technical Approach factor.

M.7 **EVALUATION FACTORS**

The following factors will be used to evaluate all offers:

- **Factor 1: Technical Approach**
The technical approach shall discuss and describe realistic approaches that are sound and easily understandable in demonstrating the level of the Offeror's ability to perform the work being proposed. Essentially, an Offerors approach shall be specifically tailored to and address the work the Offeror is proposing to perform.
 - i. Technical approach is to be evaluated as follows:
 - a. The technical approach demonstrates the Offeror has a thorough understanding of the requirements of the RFP and the goals / objectives of the BEP and an ability to perform the work being proposed.
 - b. The technical approach demonstrates a determinable benefit to the BEP.
 - c. The technical approach demonstrates a determinable degree that the required effort will be performed successfully.
 - **Subfactor 1: Risk Assessment of Technical Approach**
The technical approach demonstrates **minimal** risk to:
 - i. Disruption of schedule
 - ii. Degradation of performance
 - iii. Increased Government oversight
 - iv. Increased likelihood of unsuccessful contract performance
 - v. The following ratings will be used to complete the Risk Assessment of the Offeror's

technical approach:

TECHNICAL APPROACH PROPOSAL RISK RATINGS AND DEFINITIONS

Rating	Description
High Risk	Likely to cause significant serious disruption of schedule, increase in cost, or degradation of performance, even with special contractor emphasis.
Moderate Risk	Can potentially cause some disruption of schedule, increase in cost, or degradation of performance. However, special contractor emphasis will probably be able to overcome any difficulties.
Low Risk	Has little or no potential to cause disruption of schedule, increase in cost, or degradation of performance. Normal contractor effort will probably be able to overcome any difficulties.

- **Factor 2: Management and Staffing Plan**

Management plan must describe the Offeror's management processes, procedures, methods, abilities, skills, integration and application of resources. Management plan must also demonstrate the Offeror's understanding and ability to support and manage the Western Currency Facility (WCF) Security Device Maintenance Services.

Staffing plan needs to meet the requirements set forth in the PWS, and also includes sufficient backup staff so that it is evident that the offeror will be able to work through contingencies (e.g. absences of staff members).

This factor will be evaluated by:

- The offeror presents a clear understanding of the requirements and clearly explains how the offeror will meet those PWS requirements in Section 1.6.4.
- The offeror presents the likely ability to provide the sufficient number of qualified personnel with the experience to meet the requirements of the PWS Section 1.6.4.

- **Factor 3: Experience of Key Personnel**

The education, experience and accomplishments of key personnel will be evaluated to determine the degree to which they possess the qualifications and knowledge to perform their proposed duties under the contract. Key personnel must meet the requirements stated in the PWS in Sections 1.6.10 through 1.6.11.4. A resume will have to be provided for each prospective key personnel and will be evaluated in regards to their proposed primary function(s) and responsibilities as well as the proposed minimum qualifications (i.e. years of experience, educational, certification level, capabilities) that the individual performing the role must meet. If the proposed key personnel is/are not a current employee of the Contractor, the Offeror shall include a signed commitment letter from the employee that reflects their intention and willingness to perform in the event the Contractor is awarded the contract. The Offeror shall describe, in detail, how the proposal will meet the BEP requirements as described in the Performance Work Statement.

This factor's evaluation will ensure:

- The expressed ability to provide a Contract Manager who will be available during normal duty hours, is responsible for the performance of the work, and has the authority to act for the contractor on all operational matters.
- The expressed ability to provide a Project Manager and Quality Control Inspector with a Senior Electronics Technician/Project Management background, with a working knowledge of industry ISS system components like those utilized at the WCF, and have the ability to create and modify designs utilizing autoCAD.
- The expressed ability to provide a Senior Electronics Technician III, with 10 or more years of documented experience in design, installation, and maintenance of electronic security devices.
- The expressed ability to provide a Senior CCTV Operator with three (3) or more years of video monitoring experience, as well as, supervision and staffing experience, and creating work schedules for a 24/7 operation.

RATING SYSTEM

The table below shows the ratings the Government will assign in its evaluation of offers when evaluating Factors 1, 2, and 3. A combined confidence ratings will also be assessed for each proposal.

FACTORS 1 – 3 RATINGS AND DEFINITIONS

Rating	Description
High Confidence	The Government has high confidence that the offeror understands the requirement, proposes a sound approach, and will be successful in performing the work.
Some Confidence	The Government has some confidence that the offeror understands the requirement, proposes a sound approach, and will be successful in performing the work.
Low Confidence	The Government has low confidence that the offeror understands the requirement, proposes a sound approach, or will be successful in performing the work.

- Factor 4: Past Performance**

An Offeror's description of its past performance, questionnaires completed by their clients, and information developed by the Government, will be used to develop a performance relevancy and confidence level. The Government will evaluate the offeror's record of past and current performance to ascertain the probability of successfully performing the required efforts of the PWS. The Past Performance evaluation establishes a performance relevancy and confidence assessment by combining the ratings.

Past performance will be evaluated to determine the Offeror's performance relevancy and confidence for the subject solicitation. Past performance will be evaluated on how well the Offeror, as well as any proposed major subcontractors, performed the contracts/work referenced in the Offeror's proposal. Past performance will also evaluate overall contract/work performance as it relates to quality, schedule, management and cost control.

The Government will give consideration to relevant past performance over the past five (5) years. Relevant past performance is considered to be federal, state, and local government or commercial contracts/work performed or being performed that were/are similar in size, scope, and complexity in nature to the current acquisition. The Government shall make the determination as to the relevance of an Offeror's past performance. Past Performance information shall be gathered from Government references identified by the Offeror.

The Government reserves the right to obtain past performance information from any and all sources including Contractor Performance Assessment Reporting System (CPARS), Past Performance Information Retrieval System (PPIRS), and sources outside the Government, regardless of whether such information has been referenced or provided by the Offeror. The Government also reserves the right to contact references and points of contact provided by the Offeror and otherwise verify statements and representations made in the Offeror's proposal. The Government will determine which past performance data is most relevant. Past performance information obtained independently of the Offeror's proposal may be more relevant than past performance information submitted by the Offeror. It is incumbent upon the Offeror to explain the relevance of the references provided. Offerors are reminded that while the Government may elect to consider data obtained from other sources, the burden of providing thorough and complete past performance source data, including the return of questionnaires, rests with the Offerors.

In the case of an Offeror, together with any proposed major subcontractors, without a record of relevant past performance or past performance information is not available, a Neutral rating and an Unknown Confidence rating will be assigned to the Past Performance Factor. In conducting a performance relevancy assessment, an offeror will be assigned one of the ratings below:

PAST PERFORMANCE RELEVANCY RATINGS

Rating	Description
Very Relevant	Present/past performance effort involved <u>essentially the same</u> scope and magnitude of effort and complexities this solicitation requires.
Relevant	Present/past performance effort involved <u>similar</u> scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/past performance effort involved <u>some</u> of the scope and magnitude of effort and complexities this solicitation requires.
Not Relevant	Present/past performance effort involved <u>little or none</u> of the scope and magnitude of effort and complexities this solicitation requires.
Neutral	No recent/relevant past performance record is available, a meaningful assessment rating cannot be assigned.

PAST PERFORMANCE CONFIDENCE RATINGS

Rating	Description
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a <u>high expectation</u> that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a <u>reasonable expectation</u> that the offeror will successfully perform the required effort.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a <u>low expectation</u> that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has a <u>no expectation</u> that the offeror will successfully perform the required effort.
Unknown	No recent/relevant past performance record is available or the offeror's performance record is so sparse that <u>no meaningful confidence</u> assessment rating cannot be assigned.

The offeror shall submit a list of projects where they have at least three years of experience within the last five years providing preventive and corrective maintenance of equipment identified in the PWS. The experience provided, should be of similar scope and scale to the requirements identified in the PWS. Name, company/government organization, address, contract number (if applicable), email address, and telephone number will need to be provided for each reference. The absence of past performance reference data will be rated neither favorably nor unfavorably.

Past Performance is to be evaluated by:

- i. The offeror shall submit a list of projects where they have at least three years of experience within the last five years providing preventive and corrective maintenance of equipment identified in the PWS Section 1.6.11.5.3.
- ii. The demonstrated capabilities of the Offeror to effectively and efficiently deliver high quality services throughout performance, timely and responsive service and provide solutions and solve problems, and consistently demonstrate a commitment to customer satisfaction.
- iii. The level of and degree of performance on other contracts that are similar in size, scope and/or complexity as this requirement.

- **Factor 5: Price**

The offeror shall submit fair and reasonable FFP proposed prices (unit prices and total amounts) for each contract line item number (CLIN). Pricing should include a breakdown of the total price of each performance period; and a total price that includes the base period and the four (4) option periods.

The price volume will be evaluated for fairness, reasonableness, and completeness in order to make a fair and reasonable determination. An assessment that the proposal is not fair and reasonable or complete will result in the offer being considered unacceptable for award.

Fairness and Reasonableness: The price that will be evaluated is the Offeror's "total proposed price". The techniques and procedures in accordance with FAR 15.404-1(b) Price Analysis will be the primary means of assessing price reasonableness. For a price to be fair and reasonable, it must represent a price to the Government that a prudent person would pay in the conduct of competitive business assuming reasonable economy and efficiency.

Completeness: Price proposals shall be evaluated for completeness by assessing the responsiveness of the proposed price; by assessing the level of detail the Offeror provided price data for all requirements in the PWS and assessing the traceability of the price. For the price data to be complete, the Offeror must provide all the data necessary to support traceability of the offer.

[END OF SECTION]